

Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961

Source: <https://indiankanoon.org/doc/182350003/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

271

]

State of Tamilnadu- Act

Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961

TAMILNADU

India

Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961

Act 58 of 1961

Published on 13 April 1962

Commenced on 13 April 1962

[This is the version of this document from 13 April 1962.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961

(Tamil Nadu Act

58 of 1961

)

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu 58 of 1961). - Having regard to the recommendations of the Planning Commission in the Second Five-Year Plan for reducing the glaring inequalities in the ownership of agricultural land, the Government have decided to undertake legislation for prescribing the maximum extent of agricultural land that a person may hold. The ceiling will, except as otherwise provided in the Bill, apply to all agricultural lands held by a person either as owner or as an usufructuary mortgagee or as a tenant or as an intermediary or in one or more of those capacities. The provisions of the Bill will apply to the whole of the State of Madras. The Bill contains provisions for controlling future acquisition of agricultural land.

2. The provisions of the Bill are explained in Notes on Clauses.

Published in Part IV-A of the Fort St. George Gazette Extraordinary, dated the 16th April 1960.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1967 (Tamil Nadu Act 22 of 1967). - Section 59 of the Madras Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Madras Act

58 of 1961

) originally provided that the provisions of Chapter VIII of that Act shall remain in force for a period of three years from the date of publication of the Act, namely, the 2nd May 1962. The life of this chapter was extended by three years by the Madras Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1965 (Madras Act 10 of 1965). The chapter will now expire on the 2nd May 1968.

2. Chapter VIII of the Act deals with the cultivating tenant's ceiling area. The proposal to enact a single Comprehensive Tenancy Act embodying all the tenancy enactments in force in the State including Chapter VIII of the Madras Land Reforms (Fixation of Ceiling on Land) Act, 1961, with suitable modifications with reference to the recommendations made by the Planning Commission, the Government of India etc., from time to time is separately under the Consideration of the Government. This Comprehensive Tenancy Bill is not likely to come up before the expiry of the life of Chapter VIII of the Madras Land Reforms (Fixation of Ceiling on Land) Act, 1961. It has, therefore, been decided to amend section 59 of the Madras Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Madras Act

58 of 1961

) so as to extend the life of Chapter VIII for a further period of two years from the 2nd May 1968.

3. The Bill seeks to achieve the above object.

Published in Part IV-Section 3, of the Fort St. George Gazette Extraordinary, dated the 25th November 1967.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1970 (Tamil Nadu Act 9 of 1970). - Section 59 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

) originally provided that the provisions of Chapter VIII of that Act, relating to cultivating tenant's ceiling area, shall remain in force for a period of three years from the date of publication of the Act, namely, the 2nd May 1962. By the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1965 (Tamil Nadu Act 10 of 1965), the life of this chapter was extended by three years from the 2nd May 1965. The life of this chapter was further extended by another two years by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1967 (Tamil Nadu Act 22 of 1967). The chapter will now expire on the 2nd May 1970.

2. A proposal to enact a single comprehensive Tenancy Act is separately under consideration of the Government. This proposal is not likely to materialise before the expiry of the life of the said Chapter VIII. The Government have therefore decided to amend section 59 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

) so as to extend the life of Chapter VIII for a further period of two years from the 2nd May 1970.

3. The Bill seeks to achieve the above object.

Published in Part IV-Section 3 page 62 of the Tamil Nadu Government Gazette Extraordinary, dated the 4th April 1970.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970). - According to section 5 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961, the ceiling area in the case of every person and in the case of every family consisting of not more than five members, is 30 standard acres. Even after the implementation of the said Act, there is disparity in the ownership of agricultural land leading to the concentration of such land in the hands of certain persons to the common detriment. As a further step towards 'agrarian reform' it is considered necessary to reduce such disparity. With a view to achieve this object it is considered necessary to reduce the ceiling area from 30 standard acres to 15 standard acres.

The Bill seeks to achieve the above object.

Published in Part IV-Section 3 page 54 of the Tamil Nadu Government Gazette Extraordinary, dated the 31st March 1970.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970). - According to section 5 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961, the ceiling area in the case of every person and in the case of every family consisting of not more than five members, is 30

standard acres. Even after the implementation of the said Act, there is disparity in the ownership of agricultural land leading to the concentration of such land in the hands of certain persons to the common detriment. As a further step towards agrarian reform, it is considered necessary to reduce such disparity. With a view to achieve this object, it is considered necessary to reduce the ceiling area from 30 standard acres to 15 standard acres.

The Bill seeks to achieve the above object.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 31st March 1970.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971). - Under the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961, the ceiling area in the case of every person and in the case of every family consisting of not more than five members, was 30 standard acres. Even after the implementation of the said Act, there has been disparity in the ownership of agricultural land leading to the concentration of such land in the hands of certain persons to the common detriment. Therefore, by the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970, the Government reduced the ceiling area from 30 standard acres to 15 standard acres.

2. As a further step towards agrarian reform and for the effective implementation of the Act, the Government decided to review the exemptions contained in the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961. Accordingly, a Committee consisting of legislators of both the Houses was constituted to go into the question and recommend on the continuance or otherwise of the various exemptions contained in the Land Ceiling Act of 1961. The Committee has also recommended that the exemptions contained in the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 in respect of lands used exclusively for grazing and assessed to land revenue at Rs. 1.25 and below per acre and lands used for the cultivation of sugar-cane and in respect of which the Sugar Factory Board has granted permission under section 40 or 43 of the Act, may be deleted. The Government have accepted the recommendation of the Committee and have decided to withdraw the exemption in regard to the two items mentioned above.

3. Provision has been made in the Bill for acquisition of surplus land held by Sugar Factories and for cultivation of such land by a corporation (including a company) owned or controlled by the State. The lands held on a tenancy basis which is within the ceiling area of the landowner shall be deemed to be held on a tenancy basis by the corporation to ensure continued supply of sugar-cane to the factory. Such land will be held by the factory only till the expiry of the period of contract of tenancy. An extent of land not exceeding 100 standard acres held by the sugar factory solely for research and seed farm purposes has also been exempted from the operation of the Act.

4. Provision has been made to the effect that the surplus land acquired from the sugar factory may be redistributed in accordance with the rules made under section 94. Incidental provision for the abolition of the Sugar Factory Board and the Sugar Factory Tribunal has also been made.

5. The Bill seeks to achieve the above objects.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 7th July 1971.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1972 (Tamil Nadu Act 20 of 1972). - Section 59 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

), originally provided that the provisions of Chapter VIII of that Act relating to cultivating tenant's ceiling area shall remain in force for a period of three years from the date of the publication of the Act, namely, the 2nd May 1962. The life of this Chapter was extended, from time to time, by legislation. By the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1970 (Tamil Nadu Act 9 of 1970), the life of this Chapter was last extended up to the 1st May 1972. The life of this Chapter will expire on the 2nd May 1972. The Government have decided to retain this Chapter permanently by omitting section 59 of the Act.

2. The Bill seeks to achieve the above object.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 28th March 1972.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972). - Under sub-section (5) of section 5 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

), the maximum extent of land which a family consisting of more than five members can hold is 60 standard acres. It has been decided to reduce this maximum extent from 60 standard acres to 40 standard acres.

2. The Committee of Legislators of both Houses constituted to review the exemptions contained in the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961, has recommended the deletion of the exemption in respect of hill areas contained in section 73(v) of the Act. The Government have accepted this recommendation and the Bill seeks to give effect to the deletion of the exemption in respect of hill areas.

3. Sub-clause (2) of clause (40) of section 3 of Tamil Nadu Act 58 of 1961

prescribes the formula for conversion of ordinary acres into standard acres in respect of lands in the Kanyakumari district. The wet lands irrigated by rain-fed tanks in Kanyakumari district are not covered by this formula. It has, therefore, been decided to amend sub-clause (2) of clause (40) of section 3 so as to treat the wet-lands irrigated by rain-fed tanks in the Kanyakumari district to be on a par with the dry lands irrigated by rain-fed tanks for the purpose of calculation of standard acre.

4. Under section 60 of the said Act, the cultivating tenant's ceiling area means 5 standard acres. According to sub-rule (2-A) of rule 51 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962, where the authorized officer finds that the land held by a cultivating tenant excess of the cultivating tenant's ceiling area is more than 1/2 an acre in the case of wet lands and one acre in the case of dry lands, the authorized officer may for reasons to be recorded in writing leave such excess land in the possession of the cultivating tenant. On the recommendation of the Committee on Subordinate Legislation, it has been decided to incorporate the above provision in the Act by amending section 62 suitably, as it was felt that the power given under the rules to the authorized officer to allow any land in excess of the cultivating tenant's ceiling area to remain with the tenant would not be proper.

5. According to clause (iv) of section 73 of the said Act, nothing contained in the Act will apply to any land held by any industrial or commercial undertaking other than a co-operative society which in the opinion of the Government bona fide carries on industrial or commercial operation and which is approved by the Government. Under this section, if the approval is given by the Government, then, the industrial or commercial undertaking can hold any extent of land. There is no power under this section to restrict the extent of land in respect of which the undertaking should enjoy the exemptions. It has, therefore, now been decided to provide in new section 37-A that an industrial or commercial undertaking should apply to the Government for permission to hold or acquire land in excess of the ceiling area. The exemption will be applicable only in respect of those lands specified in the order granting permission, provided that the conditions specified in the order granting exemption are complied with.

6. Section 111 of the said Act empowers the Government to issue orders to remove any difficulty that may arise in giving effect to any of the provisions of the Act. The Supreme Court in *Messrs. Jalan Trading Company v. Mill Mazdoor Sabha* [1967] 1 SCJ 189 has observed that the power to remove difficulty by altering the provisions of the Act would in substance amount to exercise of legislative authority and that such power cannot be delegated to an executive authority. This opportunity has, therefore, been availed of to omit section 111.

7. The Bill seeks to achieve the above objects. This Bill attempts to make the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 a comprehensive one by incorporating provisions which are in line with the change of time and which are really beneficial to the tillers of the soil. It may be remembered that before the Act came into force, there were large scale transactions resulting in benami alienations of lands in order to defeat the very purpose of this Act and in fact the surplus land declared was negligible in contrast to the vast tract of land in our State. Several agitations were carried on and many people laid their lives to rectify such loop-holes. Further, even the ceiling fixed in the Act, was not in tune with the public demand. Taking the demands from the public and of the progressive movements, amendments have been proposed in this Bill. If the proposed amendments are carried out, it means:-

Absentee landlordism is abolished for ever; tenant is given his option to purchase the land comprised in his holding at a very reasonable price; tenant is granted fixity of tenure and the safeguard not to be evicted under no circumstances; small landholders is protected from his land; ceiling limit to which a person or family is entitled to hold is reduced; exemption granted under the present Act is totally removed except in the case of the Government lands; and ways and means are provided for disposal of the land to the landless poor.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 30th March 1972.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972). - Under section 73F(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961, the ceiling limit will not apply to any land held by-

(a) any charitable or educational institution of a public nature;

(b) any trust;

(c) any University constituted by any law.

According to section 3(49) "Trust" means Trust for a public purpose of a religious or charitable or of an educational nature and any temple, math, mosque, church or other place, by includes whatever name known which is dedicated to, or for the benefit of, or used as of right by any community or section thereof as a place of public religious worship. Section 2 of the Act says that nothing contained in the Act shall apply to lands held by religious Trusts of a public nature.

2. In the budget speech presented on 1st March 1972, the Chief Minister announced that all exemptions in favour of trusts created after 26th January 1950 the date on which our Constitution came into force would be withdrawn except for a limited extent to be allowed for trusts for educational purposes and medical facilities.

3. The Government have examined the matter further. They have decided that lands held by religious institutions as patta lands should continue to be exempted from the Land Ceiling Act. They have also decided that "Trust" as such need not continue to be exempted whether such Trust is created before or after the 26th January 1950. However, the Government have examined the requirements of various Colleges, High Schools and Hospitals in the State. After taking all relevant aspects into consideration, they have decided that in the case of colleges which are mentioned in Part I of Schedule I, the ceiling area will be 60 standard acres. In the case of High Schools which are mentioned in Part II of Schedule I, the ceiling area will be 20 standard acres. In the case of hospitals mentioned in Part III of Schedule I, the ceiling area will be the extent of the land held by such hospital as on the 1st March 1972. These hospitals cannot acquire in future any land in excess of the land already held by them on 1st March 1972.

4. The ceiling area in pursuance of the Bill, when enacted into law, will be fixed with reference to the 1st day of March 1972, the date on which the Chief Minister made the announcement in the budget speech.

5. The Bill seeks to achieve the above objects.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 3rd April 1972.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972). - The Committee of legislators of both the Houses constituted to review the exemptions contained in the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act 1961 has recommended the deletion of the exemption in respect of lands used for dairy farming or live-stock breeding contained in section 73(x) of the Act. The Government have accepted the recommendation of the Committee.

2. Consequent on the deletion of the exemption in respect of lands used for dairy farming or live-stock breeding, the functions of the Land Board will be confined only to grant of permission under section 31 of the Act to hold lands interspersed among or contiguous to any plantation. The Government have, therefore, decided to change the constitution of the Land Board.

3. Under sub-section (5) of section 5 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), as amended by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act (Tamil Nadu Act 20 of 1972), the maximum extent of land which a family consisting more than five members can hold is 40 standard acres. It has been decided to reduce this maximum extent from 40 standard acres to 30 standard acres, viz., twice the extent allowed for a family consisting of five members or less.

4. The High Court has held that a person who has a right to enjoy the land during his life time without a power to alienate is not a limited owner as defined in clause (28) of section 3 of the Act. It has, therefore, been decided to amend this section to the effect that a person who has right to enjoy the land during his life time shall be deemed to be a limited owner notwithstanding that he has no power to alienate the land. This amendment take effect from 6th April 1960 which is the date of commencement of Tamil Nadu Act

58 of 1961

5. At present there is no power vested in any authority to reopen a case finalised under the Act, if for any reason the extent of any land held by a person has been omitted to be included in the total extent of the land held by such person for the purposes of the Act. It has, therefore, been decided to insert a new provision giving power to the Land Commissioner to direct authorised officer to reopen the cases in cases of omission of land to be included in the total extent held by a person.

6. Section 8(1) allows a time limit of 90 days for filing returns by a person holding land in excess of the ceiling limit.

Section 10(5) allows 60 days time to file objections by a person interested in the land in respect of which draft statement has been published. Section 50(2) allows 60 plus 30 days time for preferring claim for compensation for the land acquired. Section 50(3)(a)(ii) allows 60 plus 30 days time for preferring objections to the draft compensation assessment roll. Section 51(1) allows 90 days time for preferring claims by mortgagees or charge holders of the land acquired. Section 78(1) allows 60 days time to land holders to file appeal to the Land Tribunal against the decision of the authorised officer. The time now allowed for filing returns, filing of objections, etc., under the various provisions referred to above is considered too long as this leads to prolongation of the proceedings of the Act in each case resulting in delay in the implementation of the Act. It has, therefore, been decided to reduce the time allowed under the various sections referred to above except section 51(1) to 30 days and to reduce the time allowed under section 51(1) to 60 days.

7. It has been decided to omit the existing section 81 of the Act relating to the revisional jurisdiction of the Land Tribunal and to entrust the revisional jurisdiction to the Land Commissioner in respect of the matters specified in that section.

8. At the conference of Chief Ministers held on 23rd July 1972 at New Delhi, it was decided that the compensation for surplus land acquired should be on a slab basis with the quantum decreasing with increase in the size of the holding. The existing provision in Schedule HI to Act

58 of 1961

provides for calculation of the compensation on the basis of the multiples of net annual income. The net annual income is the amount of fair rent less the land revenue. It has been decided to revise the slabs prescribed in paragraph 6 of Part I of Schedule III for purposes of calculation of the compensation so that the quantum of compensation will decrease with the increase in the size of the holding. It has also been decided that for the purpose of determining the normal gross produce of the lands acquired, the value of gross produce as furnished in the return filed by the landowner under the Tamil Nadu Agricultural Income-tax Act, 1955 (Tamil Nadu Act V of 1955), shall be taken account. It has also been decided that the compensation payable for any building, machinery, plant, etc., acquired under the Act shall be the written down value determined in accordance with the provisions of the Income-tax Act, 1961 (Central Act 43 of 1961), of such building, machinery, plant, etc., on the date of the publication of the notification under section 18(1). The revised formula for determination of the compensation will take effect on and from the date of the publication of the amending Act, that is, to lands which vest in the Government after the date of publication of the amending Act.

9. The Bill seeks to give effect to the above objects.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 12th August 1972.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Sixth Amendment Act, 1972 (Tamil Nadu Act 7 of 1974). - Under existing section 18(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), the surplus land vests in the Government with effect from the date of the publication of the notification under sub-section (1) of section 18. This notification is published after all the procedural formalities are complied with. Though section 7 prohibits that no person should hold land in excess of the ceiling area after the date of the commencement of the Act, by reason of sub-section (3) of section 18, the owner continues to be in possession of the surplus land after the date of the commencement of the Act and before the date of the vesting of the surplus land in the Government. In some cases, this period ranges to some years, during which the owner continues to enjoy the surplus land. It has been suggested that having regard to the spirit of the land reform measure, the surplus land as finally declared by the competent authority should vest in the Government even from the date of the commencement of the Act which is the crucial date for the purposes of fixing the ceiling area and that the owner of the land or any person deriving benefit therefrom should be made liable to pay to the Government an amount as compensation for the use and occupation of the land for the period for which he was in possession of the surplus land. Clause 3(2) seeks to achieve this object.

2. Under section 22, any transfer made after the date of the commencement of the Act, but before the notified date is declared as void by the authorised officer if such transfer defeats the provisions of the Act. Under section 10(4), owner has the option to choose the land which is to be included within his ceiling area. In many cases the owners of land, who have transferred the land during the period mentioned in section 22, have indicated in their return their desire that the land so transferred and which transfer has been declared as void, should be taken over by the Government as surplus land. This results in a double advantage to the land owner, namely, that in addition to the consideration received by him from the purchaser, he is entitled to compensation from the Government for such surplus land. The Government have decided that such unintended benefit should not enure to the owner of land and that lands declared as void under

section 22 should be compulsorily included within the ceiling area of the transferor by the authorised officer, without affecting the rights of the transferee. The result will be that the purchaser will not be disturbed from the possession of his land and the transferor will not be entitled to any compensation. Clause 3(1) of the Bill seeks to achieve this object.

3. Under section 21-A as amended by clause 3(8) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Bill, 1972, partition is permissible between 15-2-1970 and 2-10-1970. The intention is that the partitions effected to defeat the purpose of the Act made after 2-10-1970 and during the period referred to in section 22 should not be permitted. Clause 4 of the Bill seeks to achieve this object.

4. A new section 88-A is proposed to be inserted providing for punishment for those persons who have specified in their return that the lands, the transfer of which was declared void under section 22, should be taken over by the Government as surplus land of the transferor. Clause 5 seeks to achieve this object.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 4th December 1972.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fifth Amendment Act, 1972 (Tamil Nadu Act 10 of 1974). - Under section 73(vii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961, lands converted on or before the 1st day of July 1959 into orchards or topes or areca nut gardens are exempt from the Ceiling Act so long as they continue to be orchards, topes or areca nut gardens. The High Court has held in *State of Madras v. Thadikkara Vanniar* (C. R. P. No. 859/67) that plantain is a fruit bearing tree falling under the definition of the term "tope" in section 3(47) of the Act and consequently lands grown with plantain crops on the first day of July 1959 may become eligible for exemption from the ceiling law. The Government have, therefore, decided to exclude plantain from the definitions of the terms "orchards and tope" so as to bring the lands grown with plantain crops within the ceiling law.

2. Under section 73(iii) of the Act, any land owned by such co-operative societies (other than societies registered or deemed to have been registered under the Tamil Nadu Cooperative Societies Act, 1932 or under the Travancore-Cochin Co-operative Societies Act, 1951), as are approved by the Government are exempt from the provisions of the ceiling law. The Government have decided that the above provision should be amended so as to confine the exemption only to any land assigned by the Government to, and held by, any Land Colonisation Co-operative Society.

3. Under section 73(vi) of Tamil Nadu Act 58 of 1961

, all plantations in existence on the date of the commencement of the Act are exempt from the ceiling law. Similarly, under section 73 (viii), any land used exclusively for growing fuel trees on the date of the commencement of the Act is exempt from the ceiling law. The date of the commencement of the Act with reference to the principal Act was 6th April 1960 and consequently plantations and fuel trees that were in existence on 6th April 1960 in any area other than the hill area were exempt from the ceiling law. Further, under section 31 of the Act, any plantation could be permitted to hold any land interspersed among or contiguous to such plantation, up to 20 per cent of the extent of such plantation which existed on 6th April 1960. By the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), the definition of the date of the commencement of the Act in clause (11) of section 3 of the principal Act was modified as 15th day of February 1970. Consequently, the exemption in respect of plantations specified in section 73(vi) and fuel trees specified in section 73(viii) should be construed to apply to the extent of plantations and fuel trees as were in existence on 15th February 1970. The exemption in respect of lands in hill areas has been withdrawn with effect from 1st March 1972. The Government have now decided that the exemption in respect of plantations and fuel trees should be restricted to the extent of plantations and fuel trees that were in existence on 6th April 1960 and that the permission to be granted under section 31 of the Act to any plantation to hold additional extent of land should be restricted to 20 per cent of the extent of such plantation as was in existence on 6th April 1960.

4. The Bill seeks to give effect to the above objects.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 22nd August 1972.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1973 (Tamil Nadu Act 8 of 1974). - Under section 82 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961, the Land Commissioner may call for and examine the record of any Authorised Officer in respect of any proceeding under the Act not being a proceeding in respect of which a suit or an appeal to the Land Tribunal is provided, to satisfy himself as to the regularity of such proceedings or the correctness, legality or propriety of any decision or order passed thereon, and if in any case it appears to the Land Commissioner that any such proceeding, decision or order should be modified, reversed or remitted for reconsideration, he can pass orders accordingly.

2. The Act does not prescribe any time-limit within which the parties can invoke the revisionary powers of the Land Commissioner under section 82. It is necessary to prescribe a time-limit for preferring application for revision to the Land Commissioner under the said section in order to give finality to the proceedings under the Act. It is accordingly proposed to take powers for prescribing by rules the time-limit for preferring application for revision under the said section.

3. The Bill seeks to achieve the above object.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 26th November 1973.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1974 (Tamil Nadu Act 15 of 1974). - The surplus land specified in the final statement under section 12 or 14 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 vests in the Government absolutely on the publication of the notification by the Government under sub-section (1) of section 18. At present, there is no provision in the Act empowering the Government either to modify or cancel the notification issued under section 18(1). Cases have been brought to the notice of the Government where as a result of decisions in appeal or revision, the notification issued under section 18(1) requires cancellation or modification to give effect to such decision. There have also been cases where the authorised officer has corrected under section 15 bona fide mistakes and clerical errors in the final statement under sections 12 and 14 and consequently the notifications issued under section 18(1) have also to be corrected. Cases may also arise where in pursuance of a direction under section 18-A by the Land Commissioner, the notification issued under section 18(1) may require modification. It is, therefore, proposed to take necessary power for the Government to modify or cancel the notification published by them under sub-section (1) of section 18 to give effect to decisions in appeal or revision or other proceeding, or in pursuance of a direction under section 18-A. It is also proposed to empower the Government to make consequential changes in section 18(1) notification in pursuance of the corrections made by the authorised officer under section 15. Necessary supplemental and incidental provisions have also been proposed.

2. The Bill seeks to achieve the above objects.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 25th January 1974.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1978 (Tamil Nadu Act 25 of 1978). - According to section 18(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

), as it stood prior to the amendment made by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Sixth Amendment Act, 1972 (Tamil Nadu Act 7 of 1974), surplus land notified under section 18(1) of that Act shall be deemed to have been acquired and vested in the Government with effect from the date of publication of such notification under the said section 18(1).

The rates of compensation specified in Schedule III in Tamil Nadu Act 58 of 1961

have been revised by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972) fixing a lower rate of compensation and the revised rates came into force on the 21st December, 1972, the date on which the said Tamil Nadu Act 39 of 1972 was published in the Tamil Nadu Government Gazette.

Subsequently, by the said Tamil Nadu Act 7 of 1974, section 18(3) was amended, with retrospective effect from the 1st March 1972 to the effect that lands notified under section 18(1) of the Act as surplus lands shall be deemed to have been acquired, and vested in the Government from the date of commencement of the Act. The deeming provision made by Tamil Nadu Act 7 of 1974 providing for vesting of surplus lands with effect from the date of commencement of the Act has given rise to certain practical difficulties in the implementation of the Act. In interpreting section 18(3), as amended by Tamil Nadu Act 7 of 1974, Madras High Court had held that under section 18(3), as amended, notwithstanding the fact that notification under section 18(1) was published on a later date, such lands declared to have been surplus shall be deemed to have vested in the Government with effect from the date of commencement of the Act, i.e., the 15th January 1972 and the revised formula prescribed in Schedule III of the principal Act as amended by Tamil Nadu Act 39 of 1972 cannot be made applicable to such cases and the authorised officer has to adopt the rates in the unamended Schedule III. It is, therefore, proposed to amend the Act so that this surplus lands notified under section 18(1) may vest with the Government only from the date of publication of the notification under the said section 18(1) as it stood prior to the amendment made by Tamil Nadu Act 7 of 1974 and compensation can be determined with reference to the date of such vesting of the surplus lands in the Government. Clause 4(1) of the Bill seeks to provide for this purpose.

The Government are also of the view that the existing provision under section 18(3-A) should be amended to the effect that the liability of the erstwhile land-owner for the payment of compensation must accrue only if the land-owner continues to occupy or derive benefit from the property, even after the date of vesting of the property in the Government. It is accordingly proposed to omit section 18(3-A) and insert a new provision as section 18-F for this purpose. Clause 4(2) of the Bill provides for this purpose.

Clause 4(3) seeks to amend section 50(1) of the principal Act, to the effect that compensation shall be paid at the rates specified in Schedule III as in force on the date of acquisition of surplus land.

2. The Bill seeks to achieve the above objects.

Published in Part IV-Section 1 page 242 of the Tamil Nadu Government Gazette Extraordinary, dated the 28th March 1978.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1979 (Tamil Nadu Act 11 of 1979). - Under the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), the compensation for the surplus lands of a family is determined for the family as a whole. The High Court has held in a case to the effect that for the purpose of fixing the compensation, every person whose right, title or interest on the land has been acquired by Government should be treated separately and the compensation payable to each member should be worked out and paid separately. If the compensation is so worked out and paid separately, it would involve additional financial commitment to the Government, as higher amount of compensation will have to be paid. It was, therefore, proposed to amend the said Act suitably, with effect from the 6th April 1960, to give effect to the intention that the amount payable is determined for the family as a whole, with necessary provisions for validating cases, conforming to the provisions of the Act as proposed to be amended and for re-opening cases not conforming to the provisions of the Act as proposed to be amended for disposal according to the provisions of the Act as proposed to be amended.

2. It was also proposed to change the reference to 'compensation' in the Act as 'amount' so as to be consistent with the provisions of Article 31(2) of the Constitution, with effect from the 20th April 1972, that is, the date of coming into force of the Constitution (Twenty-fifth Amendment) Act, 1971.

3. The amount payable for the surplus lands taken over under Tamil Nadu Act

58 of 1961

was found in certain cases to be higher than the market value of such land. This results in difficulty in collecting the land value from the assignees of the surplus lands, as the amount paid to the landowner is collected as land value from the assignees. It was, therefore, proposed to change with prospective effect, the basis for calculation of the amount as a multiple of the annual value, the annual value being a suitable multiple of the land revenue with additions for irrigated dry or manavari lands, subject to a maximum of Rs. 350 per acre, so that the amount payable for the best category of land will not exceed Rs. 3,500 per acre. In addition, tree value and value for buildings, machinery, etc., will also be payable as laid down.

4. It was also considered necessary to take power for the Government to constitute Land Tribunals with officers not below the rank of District Revenue Officer also, to clear the accumulation of appeals against the orders of the authorised officers, etc., and to empower the Land Commissioner to transfer appeals, from one Land Tribunal to another Land Tribunal wherever necessary.

5. The proviso to section 94 of the said Tamil Nadu Act

58 of 1961

, lays down that the rules for disposal of surplus lands framed under that section shall not come into force unless they are approved by the Legislature. In order to obviate the delay arising in view of this provision in amending the rules, it was proposed to omit the said proviso, and to provide that the rules be placed on the Table of both the Houses of the Legislature after issue of the same.

6. Certain amendments with reference to the administrative point of view were also proposed to be made.

7. To give effect to the above proposals, the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Ordinance, 1978 (Tamil Nadu Ordinance 14 of 1978), was promulgated by the Governor.

8. The Bill seeks to replace the said Ordinance.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 16th February 1979.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act,

1979 (Tamil Nadu Act 8 of 1980). - Surplus lands acquired under the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), can be assigned to a person under the Tamil Nadu Land Reforms (Disposal of Surplus Land) Rules, 1965, up to a maximum of 5 standard acres. It has been brought to the notice of the Government that a large extent of land, that is, exceeding 15 ordinary acres, but within the admissible maximum of 5 standard acres, has been assigned to eligible persons under the said rules. The present maximum limit of 5 standard acres was fixed in the year 1965. The maximum limit for assignment of Government poramboke land was reduced to 3 ordinary acres of dry land or 1-1/2 ordinary acres of wet land with effect from the year 1971. Most of the surplus lands taken over by the Government are cultivable and more valuable than poramboke or assessed waste lands. If the maximum limit in the case of surplus lands is reduced as in the case of poramboke land, a large number of persons will be benefited by the scheme, of Land Reforms. It has, therefore, been proposed to reduce the maximum extent of the said surplus lands to be assigned to an eligible person under the said rules, from the existing 5 standard acres to 3 ordinary acres of dry land or 1-1/2 ordinary acres of wet land. The above proposal will involve amendment to section 94(2)(a) of the said Act, as under the said section, preference in the assignment of surplus land has to be given to any person who is completely dispossessed of his holding or whose extent of holding is reduced below 3 standard acres, held by him partly as cultivating tenant and partly as owner or wholly as cultivating tenant, by virtue of the provisions of the said Act.

2. The Bill seeks to achieve above object.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 29th October 1979.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1980 (Tamil Nadu Act 21 1980). - The exemption granted to lands used for the cultivation of sugarcane by section 73 (xiii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), was withdrawn by section 3 (10) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971). Consequent on such withdrawal, the Government constituted a Corporation as provided for under section 94-A(2) of Tamil Nadu Act

58 of 1961

to administer the surplus lands of Thiru Arooran Sugars Limited taken over by the Government. According to section 94-B(l) of the said Act, any land which is held as tenant by any sugar factory under a contract of tenancy which is subsisting and where such land is within the ceiling area of the landowner concerned, such land shall be deemed to be held as tenant by the Corporation for the unexpired period of the contract, and accordingly the contract of tenancy shall be of as full force and effect against the said Corporation, and may be enforced or acted upon as fully and effectually as if in the place of the sugar factory, the Corporation had been a party thereto. Under this provision, more than 3,000 acres of land held on lease by Thiru Arooran Sugars Limited had been taken over by the Tamil Nadu Sugarcane Farm Corporation Limited. The lease period of all the lease lands held by the Corporation before the 30th June 1974 was extended for a further period of five years from the date of the expiry of the period of such lease by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1975 (Tamil Nadu Act 11 of 1975).

2. By the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Ordinance, 1980 (Tamil Nadu Ordinance 4 of 1980), the lease period was extended by one year from the date of expiry of the lease period, pending alternative arrangements, if any, being made for the supply of sugarcane to the sugar factory.

3. The period of lease in respect of some of the lands, as extended by Tamil Nadu Ordinance 4 of 1980, is due to expire on the 30th June 1980. Due to the shortness of the time for the Government to make any alternative arrangements for the supply of sugarcane to the sugar factory, the Government have now decided to continue the period of lease in respect of the lease lands held by the said Corporation for a further period of two years from the date of the expiry of the period of such lease as extended by the said Tamil Nadu Act 11 of 1975.

4. The Bill seeks to replace the said Tamil Nadu Ordinance 4 of 1980 and to give effect to the above decision.

Published in Part IV-Section 1 page 111 of the Tamil Nadu Government Gazette Extraordinary, dated the 28th June 1980.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1980 (Tamil Nadu Act 8 Of 1980). - Under section 60 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), "cultivating tenant's ceiling area" means 5 standard acres held by any person partly as cultivating tenant and partly as owner or wholly as cultivating tenant. The Government have decided to reduce the cultivating tenant's ceiling area under the said Act from 5 standard acres to 3 standard acres and to include within the proposed reduced ceiling limit, not only the lands held by a cultivating tenant as tenant or as owner or as possessory mortgagee, but also such lands held by his spouse, minor sons and unmarried daughters. The excess lands available under the proposed measure will not revert to the landowner but they will be taken over and distributed by the Authorised Officer on behalf of the Government in accordance with the provisions of Chapter VIII of the said Act.

2. It has also been decided to provide that for the purposes of In fixing the cultivating tenant's ceiling area of any person under the Act, the leases, etc, made on or after the 17th April 1979, but before the notified date shall be void.

3. To give effect to the above decisions, the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Ordinance, 1979 (Tamil Nadu Ordinance 23 of 1979), was promulgated by the Governor.

4. The Bill seeks to replace the said Ordinance.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 5th February 1980.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1980 (Tamil Nadu Act 21 of 1980). - The exemption granted to lands used for the cultivation of sugarcane by section 73(xiii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), was withdrawn by section 3(10) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971). Consequent on such withdrawal, the Government constituted a Corporation as provided for under section 94-A(2) of Tamil Nadu Act

58 of 1961

to administer the Surplus lands of Thiru Arooran Sugars Limited taken over by the Government According to section 94-B(l) of the said Act, any land which is held as tenant by any sugar factory under a contract of tenancy which is subsisting and where such land is within the ceiling area of the landowner concerned, such leased shall be deemed to be held as tenant by the Corporation for the unexpired period of the contract, and accordingly the contract of tenancy shall be of as full force and effect against the said Corporation, and may be enforced or acted upon as fully and effectually as if in the place of the sugar factory, the Corporation had been a party thereto. Under this provision, more than 3,000 acres of land held on lease by Thiru Arooran Sugars Limited had been taken over by the Tamil Nadu Sugarcane Farm Corporation Limited. The lease period of all the lease lands held by the Corporation before the 30th June 1974 was extended for a further period of five years from the date of the expiry of the period of such lease by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1975 (Tamil Nadu Act 11 of 1975).

2. By the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Ordinance, 1980 (Tamil Nadu Ordinance 4 of 1980), the lease period was extended by one year from the date of expiry of the lease period, pending alternative arrangements, if any, being made for the supply of sugarcane to the sugar factory.

3. The period of lease in respect of some of the lands, as extended by Tamil Nadu Ordinance 4 of 1980, is due to expire on the 30th June 1980. Due to the shortness of the time for the Government to make any alternative arrangements for the supply of sugarcane to the sugar factory, the Government have now decided to continue the period of lease in respect of the lease lands held by the said Corporation for a further period of two years from the date of the expiry of the period of such lease as extended by the said Tamil Nadu Act 11 of 1975.

4. The Bill seeks to replace the said Tamil Nadu Ordinance 4 of 1980 and to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 28th June 1980.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1981 (Tamil Nadu Act 59 of 1981). - The exemption granted to lands used for the cultivation of sugarcane by section 73 (xiii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

) was withdrawn by section 3(10) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971). Consequent on such withdrawal, the Government constituted a Corporation, namely, the Tamil Nadu Sugar-cane Farm Corporation limited, as provided for under section 94-A (2) of Tamil Nadu Act

58 of 1961

to administer the surplus lands of Thiru Arooran Sugars Limited, taken over by the Government.

2. According to section 94-B(l) of the said Act, any land which is held as tenant by any sugar factory under a contract of tenancy which is subsisting and where such land is within the ceiling area of the landowner concerned, such land shall be deemed to be held as tenant by the Corporation for the unexpired period of the contract, and accordingly the contract of tenancy shall be of as full force and effect against the said Corporation, and may be enforced or acted upon as fully and effectually as if in the place of the sugar factory, the Corporation had been a party thereto.

Under this provision, the lands held on lease by Thiru Arooran Sugars Limited had been taken over by the Tamil Nadu Sugarcane Farm Corporation Limited. The lease period of all the lease lands held by the said Corporation before the 30th June 1974 was first extended for a period of five years from the date of the expiry of the period of such lease by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1975 (Tamil Nadu Act 11 of 1975). As it was considered necessary that the lease lands should continue to be under the occupation of the said corporation for some more time, to ensure regular supply of sugar-cane to the sugar factory, the lease period was further extended for a period of two years by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1980 (Tamil Nadu Act 21 of 1980). The extended lease period in respect of some of the Lands was due to expire on the 30th June 1981.

3. On the representation given by the owners of the lease lands that these lands might be released to them, the Government decided that except the lease lands which are interspersed with the Government lands held by the Corporation, other lease lands should be released to the landowners at the end of the fasli year ending with the 30th June 1981. As it was not possible for the above work to be completed before the 30th June 1981, the Government decided that the term of the lease hold extent be extended for a further period of one year beyond the 30th July 1981, in general terms for application to all lease lands and that at the same time the Corporation be vested with powers to terminate the lease with the owners of the lands concerned which are proposed to be released by the Corporation as and when considered necessary, by suitably amending Tamil Nadu Act

58 of 1961

4. To give effect to the above decision, the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Ordinance, 1981 (Tamil Nadu Ordinance 8 of 1981), was promulgated by the Governor.

5. The Bill seeks to replace the said Ordinance.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 21st August 1981.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1983 (Tamil Nadu Act 2 of 1984). - Section 24 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

) provides for the constitution of the Tamil Nadu Land Board consisting of, among other members, one member of the Board of Revenue (other than the Land Commissioner) nominated by the Government. Consequent on the abolition of the Board of Revenue, there is no member of the Board of Revenue as such, to be so nominated. It is, therefore, necessary to specify a suitable officer in the place of the member of the Board of Revenue (other than the Land Commissioner) as a member of the Tamil Nadu Land Board. The Government have proposed that the Chief Conservator of Forests shall be included as an ex-officio member of the Tamil Nadu Land Board in the place of the member of the Board of Revenue, to represent the interests of the Forest Department when decisions are taken by the Tamil Nadu Land Board.

2. According to sub-section (3) of section 24 of the said Act, the Chairman of the Land Board shall be a judicial officer who is, or is qualified for appointment as, or a person who has been, a judge of a High Court, nominated by the Government. With the diminution in the work of the Land Board, there is no need for a whole-time Chairman. For the residuary and continuing work involved in watching the fulfilment of the conditions of grant of permission under section 31 of the Act, the Land Board as an institution is necessary, but it is no longer necessary to have a judicial officer as a member or the Chairman of the Land Board. The Government have, therefore, proposed that the Land Commissioner shall be the Chairman of the Land Board.

3. Consequent on the abolition of the Board of Revenue, the Government have also proposed to appoint the Commissioner of Land Reforms instead of "any member of the Board of Revenue" as Land Commissioner for the State under section 97 of the said Act, to exercise such powers and discharge such duties as are assigned to him by or under the said Act.

4. The Bill seeks to achieve the above objects.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 4th March 1983.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1983 (Tamil Nadu Act 3 of 1984). - To speed up the implementation of the Land Reform measures, the Government have decided to constitute a Special Appellate Tribunal under Article 323-B of the Constitution under the name the Tamil Nadu Land Reforms Special Appellate Tribunal. It has been decided to vest the Special Appellate Tribunal with powers to hear appeals and revisions against the orders passed by the Land Tribunals under the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act, 58 of 1961

), and to omit the existing provisions providing for appeals and revisions to the High Court. The Special Appellate Tribunal will also have revisionary powers against any proceedings of the Land Board, and Land Commissioner. It has also been decided that the Authorised Officer, Tamil Nadu Land Board, Land Tribunal, Land Commissioner and Special Appellate Tribunal shall be the hierarchy of Tribunals for purposes of clause (3)(a) of Article 323-B of the Constitution. To give effect to the above decisions, it has been considered necessary to amend the said Act suitably.

2. The Bills seeks to give effect to the above decisions.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 27th January 1983.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1985 (Tamil Nadu Act 29 of 1987). - In terms of the existing provisions of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

), no public trust and educational institution can acquire any land. Representations have been received by the Government that the above prohibition to acquire land imposed under the said Act has hampered the growth of educational institutions and hospitals. The public trusts, educational institutions and hospitals have not been able to acquire land even for bona fide purposes, that is, for the establishment or for the expansion of educational institutions and hospitals. It has, therefore, been considered necessary to amend the said Act suitably taking power for the Government to grant permission in favour of public trusts, educational institutions and hospitals to hold or acquire land for such educational and hospital purposes subject to the conditions that may be imposed by the Government in the order granting such permission. To give effect to the above proposal, it has been decided to amend the said Act suitably.

2. The Bill seeks to give effect to the above proposal.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 16th July 1985.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1987 (Tamil Nadu Act 55 of 1987). - Section 37-B of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

) recently inserted enables the Government to grant permission, whether prospectively or retrospectively, in favour of public trusts, educational institutions and hospitals to hold or acquire land for educational and hospital purposes, subject to the conditions that may be imposed by the Government in the order granting such permission. It has been decided that the permission to be granted under the said section 37-B should have only prospective effect. It has also been decided that such permission shall be given only to public trusts and that the expression "hospital" occurring in the said section 37-B should be defined. Accordingly, the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Ordinance, 1987 (Tamil Nadu Ordinance 4 of 1987), was promulgated by the Governor.

2. The Bill seeks to replace the said Ordinance.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 10th November 1987.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1987 (Tamil Nadu Act 4 of 1988). - Sections 85(1), 86, 87, 88, 89, 90 and 91 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

), provide for the imposition of fine amounts as penalties for certain offence punishable under the said Act. As the maximum of the fine amounts prescribed in the said sections are meagre, it has been decided to enhance the said fine amounts to Rs. 2,000.

2. The Bill seeks to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 16th November 1987.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment, 1994 (Tamil Nadu Act 47 of 1994). - Section 77-C of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), inter alia, provides for appointment of Chairman, Vice-Chairman and a Member of the Tamil Nadu Land Reforms Special Appellate Tribunal by the Governor of the State after consultation with the Chief Justice of India. Hon'ble Justice Thiru P. K. Sethuraman, appointed as the Chairman of the said Tribunal, expired on the 24th July 1991. The existing provisions of the said Act do not provide for making any interim arrangement by authorising any person to act as Chairman in such an emergency till the appointment of a new Chairman as provided in the said Act. It is, therefore, proposed to amend the said Act so as to provide that in the event of the occurrence of any vacancy in the office of the Chairman, in certain circumstances, the Vice-Chairman shall act as the Chairman, or, as the case may be, discharge the functions of the Chairman, until the date on which a new Chairman appointed in accordance with the provisions of the said Act to fill such vacancy enters upon his office, or as the case may be, the Chairman resumes his duties. It is also proposed to amend the said Act to provide for the resignation by the Chairman, the Vice-Chairman or the other Member.

2. The Bill seeks to give effect to the above proposals.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 25th April 1994.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1994 (Tamil Nadu Act 11 of 1996). - Section 22 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), provides that any transfer or partition made, on or after the date of the commencement of the Act, but before the notified date, may be declared to be void by the authorised officer, if he finds that such transfer or partition defeats any of the provisions of the Act. In many cases, the authorised officers while implementing the Act have passed orders under section 22 holding that the transfers or partitions effected during the said period as void. The orders passed under section 22 have been taken on appeal to the Land Tribunal and the High Court, by parties aggrieved. The High Court in a batch of cases in Civil Revision Petitions Nos. 1824, 1825/65 and 44/66 has held that the transfer made during the said period can be declared void only if the authorised officer can come to the conclusion that the transaction is sham, nominal land bogus. The above judgement of the High Court has been taken on appeal to the Supreme Court by the State Government. However, during the pendency of appeal before the Supreme Court, the authorised officers and the Land Tribunals have followed the judgment of the Madras High Court and in many cases the transfer effected during the said period have been, held to be valid.

2. Subsequently, the Supreme Court in the appeal preferred by the State Government referred to above and reported in *Authorised Officer v. S. Naganatha Ayyar*, AIR 1979 SC 1487 has reversed the judgment of the Madras High Court and interpreted section 22 of the Act to the effect that if any transfer defeats the provisions of the Act by reducing the extent of surplus land in excess of the ceiling available from any person such transaction, bonafide or not, shall be void in the matter of computation of permissible area and the surplus area.

3. Based on the said judgment of the Supreme Court, many cases in which orders have been passed earlier holding the transaction as valid, have been reopened and surplus land has been declared. All the past cases which have been re-opened, are now challenged before the Tamil Nadu Land Reforms Special Appellate Tribunal on the ground that the Act does not confer any right or power on the authorised officer to review such cases which have reached finality.

4. It has, therefore, been decided to amend section 22 of the said Act so as to be in consonance with the principles laid down by the Supreme Court in the case referred to above and to make it clear that if any transfer or partition, has the effect of reducing the extent of surplus land in excess of the ceiling area, such transfer or partition whether bonafide or not, shall be countered as defeating the provisions of the said Act.

5. It has also been decided to make provisions for validating all acts done or proceedings, taken by the authorised officer and to reopen the past cases, based on the said judgment of the Supreme Court.

6. The Bill seeks to give effect to the above decisions.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 9th November 1994.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1998 (Tamil Nadu Act 36 of 1998). - According to section 7 of the Tamil Nadu Land Reforms (Fixation of Ceiling on

Land) Act, 1961 (Tamil Nadu Act
58 of 1961

), no person shall be entitled to hold land in excess of the ceiling area. The proviso to the said section stipulates that, in calculating the total extent of land held by any person, any extent in excess of the ceiling area and not exceeding half an acre in the case of wet land and one acre in the case of dry land shall, irrespective of the assessment of such land, be excluded. Some of the Land Tribunals have interpreted the word "acre" occurring in the said proviso to mean standard acre. If the word, "acre" in the said proviso is interpreted as "standard acre", it will amount to allowing a person to hold 16 standard acres of land or more in certain cases, whereas, only 15 standard acres can be held by a person. Further, once it is construed as standard acre (which is computed with reference to the principles specified in clause (40) of section 3 of the said Act), then, the question of allowing half standard acre in the case of wet land and one standard acre in the case of dry land, in excess of the ceiling area, may amount to allowing double advantage in the case of dry land, in as much as more ordinary acres will have to be allowed in case of dry land.

2. Similarly in the third proviso to section 62 of the said Act, the extent of excess land which can be excluded by the authorised officer in calculating the cultivating tenants, ceiling area has been specified in acre only.

3. It has, therefore, been decided to amend sections 7 and 62 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 so as to make it clear that the word "acre" occurring in the proviso to the said section 7 and in the third proviso to the said section 62, is to mean, "ordinary acre" only.

4. The Bill seeks to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 30th April 1998.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1998 (Tamil Nadu Act 7 of 1999). - Section 108 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu 58 of 1961) provides for the payment of Court-fees for any suit, appeal, application for revision, etc., to the Land Tribunal, Land Commissioner or the Tamil Nadu Land Reforms Special Appellate Tribunal. Taking into account the abnormal increase in the cost of establishment, etc., it is proposed to enhance the Court-fees leviable under the said section 108 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961.

2. The Bill seeks to give effect to the above proposal.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 23rd November 1998.

Statement of Objects and Reasons - Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 2003 (Tamil Nadu Act 26 of 2003). - The Tamil Nadu Land Reforms Special Appellate Tribunal has been constituted under the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

) for adjudication or trial of any dispute or complaint with respect to land reform-matters arising under that Act. It started functioning from 1-11-1990. Consequent on the formation of the Tamil Nadu Land Reforms Special Appellate Tribunal, all the Writ Petitions and Civil Revision Petition pending before the High Court of Madras relating to the said matter were transferred to the Tribunal for disposal. The said Tribunal has appellate and reversionary powers also.

2. The Staff and Expenditure Reforms Commission has stated that the agriculture land reform legislation fixed ceilings as on 1960 and 1970 and the Urban Land Ceiling legislation has been repealed in 1999, hence it is unlikely that a number of fresh appeals are to be filed. For the last 4 years, this Tribunal did not have adequate work. Hence, Staff and Expenditure Reforms Commission has recommended that the Tamil Nadu Land Reforms Special Appellate Tribunal may be wound up.

3. The Government have considered the said recommendation of the Commission and decided to wind up the said Tribunal. Therefore, the Government have decided to amend the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), suitably.

4. The Bill seeks to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 10th May 2003.

Received the assent of the President on the 13th April 1962 and first published in the Fort St. George Gazette, dated the 2nd May 1962.

An Act to provide for the fixation of ceiling on agricultural land holdings and for certain other matters connected therewith in the [State of Tamil Nadu]

[Substituted for the word 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Whereas under clauses (b) and (c) of Article 39 of the Constitution of India, the State should, in particular, direct its policy towards securing that the ownership and control of the material resources of the community are so distributed as best to subserve the common good and that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment;

And Whereas the area of agricultural land available for cultivation in the State is limited;

And Whereas there is great disparity in the ownership of agricultural land leading to the concentration of such land in the hands of certain persons;

And Whereas it is necessary to reduce such disparity in the ownership of agricultural land in the State;

And Whereas it is necessary to fix a ceiling on the agricultural land holdings;

And Whereas it is necessary to acquire the agricultural land in excess of the ceiling area and to distribute such land to the landless and other persons among the rural population;

And Whereas such distribution will best subserve the common good, increase agricultural production and promote justice, social and economic;

And Whereas it is expedient to provide for all these and other matters connected therewith;

Be it enacted in the Twelfth Year of the Republic of India as follows:-

Chapter I

Preliminary

1.

Short title and extent.

(1)

This Act may be called the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Land Reforms (Fixation of Ceiling on Land) Act, 1961.

(2)

It extends to the whole of the [State of Tamil Nadu]

[Substituted for the word 'State of Madras ' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

2.

[Act not to apply to lands held by existing religious institution or religious trust of public nature.

[Substituted for the original section 2 by section 3(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on-the 1st March 1972.]

(1)

Subject to the provisions of sub-sections (2) and (3) and of section 6, nothing contained in this Act shall apply to lands held,-

(i)

by an religious institution, or

(ii)

by any religious trust of a public nature, which in existence on the date of the commencement of this Act.

(2)

Notwithstanding anything contained in sub-section (1), no such religious institution or religious trust of a public nature as is referred to in sub-section (1) shall acquire by any means whatsoever any land after the date of the commencement of this Act.

(3)

Notwithstanding anything contained in this Act, for the purposes of this section-

(a)

where a public trust in existence on the date of the commencement of this Act, has been created both for a public

purpose of a religious nature and for any other public purpose; or

(b)

where the income from a public trust in existence on the date of the commencement of this Act is appropriated both for a public purpose of a religious nature and for any other public purpose, such public trust shall be deemed to be a religious trust of a public nature.]

3.

Definitions.

- In this Act, unless the context otherwise requires,-

(1)

"agriculture" includes-

(a)

horticulture;

(b)

the raising of crops, grass or garden produce;

(c)

the use by an agriculturist of land held by him, or part thereof, for grazing;

(d)

the use of any land for the purpose of raising manure crops;

(e)

dairy farming;

(f)

poultry farming;

(g)

livestock breeding;

(h)

growing of trees;

and "agricultural" shall be construed accordingly;

(2)

"agricultural company" means any company formed for the purpose of carrying on any business that has for its main object the acquisition of gain by the company from agricultural land and "non-agricultural company" means any other company;

(3)

"agricultural year" means the year commencing on the 1st day of April, or, in respect of the whole or a part of any district on such other date as the Collector of the district may specify in that behalf by notification in the District Gazette;

(4)

"ancillary purposes of the plantation" includes replanting;

(5)

"authorized officer" means any Gazetted Officer authorized by the Government by notification to exercise the powers conferred on, and discharge the duties imposed upon, the authorized officer under this Act for such area as may be specified in the notification;

(6)

"Bhoodan Yagna" and "Gramdan land" shall have the same meaning as in clauses (a) and (d), respectively, of section 2 of the Tamil Nadu Bhoodan Yagna Act, 1958 (Tamil Nadu Act XV of 1958);

(7)

"ceiling area" means the extent of land which a person is entitled to hold under section 5;

(8)

"company" means a company as defined in section 3 of the Companies Act, 1956 (Central Act I of 1956);

(9)

"creditor" means a secured creditor and includes any decree-holder who has obtained an attachment of land in execution of a decree or order;

(10)

"cultivating tenant" -

(i)

means a person who contributes his own physical labour or that of any member of his family in the cultivation of any land belonging to another, under a tenancy agreement, express or implied; and

(ii)

includes-

(a)

any such person who continues in possession of the land after the determination of the tenancy agreement, or

(b)

the heir of such person, if the heir contributes his own physical labour or that of any member of his family in the cultivation of such land, or

(c)

a sub-tenant if he contributes his own physical labour or that of any member of his family in the cultivation of such land, but

(iii)

does not include a mere intermediary or his heir;

(11)

["date of the commencement of this Act" means the 15th day of February 1970;] [[Substituted by section 2(1)(a) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970. Before substitution, it read as follows:

'(11) `date of the commencement of this Act' means the date on which the Madras Land Reforms (Fixation of Ceiling on Land) Bill, 1960, was published in the Fort St. George Gazette, namely, the 6th day of April 1960.]]

(12)

["date of the publication of this Act" means the date of publication of the [Tamil Nadu]

[Substituted by section 2(1)(b) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

Land Reforms (Reduction of Ceiling on Land) Act, 1970, in the [Fort St. George Gazette;]

[Now the Tamil Nadu Government Gazette.]

(13)

[***]

[Omitted by section 3(1) of the Tamil Nadu Act 41 of 1971.]

]

(14)

"family" in relation to a person means the person, the wife or husband, as the case may be, as such person and his or her -

(i)

minor sons and unmarried daughters, and

(ii)

minor grand sons and unmarried grand-daughters in the male line, whose father and mother are dead.

Explanation [I]

[The Explanation to clause (14) was numbered as Explanation I of that clause by section 2(1)(c)(i) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

. - For the purpose of this clause, in the case of persons governed by Hindu law, "minor sons" and "minor grandsons" shall not include sons or grand-sons -

(i)

between whom and the other members of the family a partition by means of a registered instrument has taken place; or

(ii)

in respect of whose family properties a preliminary decree for partition has been passed;

before the [notified date]

[Substituted for the words 'date of the commencement of this Act' by section 2(1)(c)(i) of the Tamil Nadu Land Reforms

(Fixation of Ceiling on Land) Amendment Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

[Explanation II.

[This Explanation has been inserted by section 2(1)(c)(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

- For the purpose of this clause-]

(a)

in the case of persons governed by Hindu law, "unmarried daughters" and "unmarried grand-daughters" shall not include "unmarried daughters" or "unmarried grand-daughters"-

(i)

in whose favour any land has been voluntarily transferred by either of whose parents or grand parents on account of natural love and affection; or

(ii)

in whose favour a preliminary decree for partition has been passed before the notified date;

(b)

in the case of persons governed by any law other than Hindu law, "minor sons", "unmarried daughters", "minor grandson", and "unmarried grand-daughters" shall not include "minor sons", "unmarried daughters" "minor grand-sons" and "unmarried grand-daughters"-

(i)

in whose favour any land has been voluntarily transferred by either of whose parents or grand parents on account of natural love and affection; or

(ii)

in whose favour a preliminary decree for partition has been passed; before the notified date;

(15)

"forest land" includes any waste land containing trees or shrubs;

(16)

"full owner" means a person entitled to the absolute proprietorship of land;

(17)

"Government" means the State Government;

(18)

[***]

[Omitted '(18) hill area' means any local area specified in column (3) of Schedule I and such other local area comprising a hill as the Government may, by notification, from time to time, specify;' by section 3(l)(a) of this Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 29 of 1972), which was deemed to have come into force on the 1st day of March 1972]

(19)

"to hold land" , with its grammatical variations and cognate expressions, means to own land as owner or to possess or enjoy land as possessory mortgage or as tenant or as intermediary or in one or more of those capacities;

(20)

"inam land" , in any area in the State except the transferred territory,-

(a)

means any land the grant of which in inam has been made, confirmed or recognized by the Government; and

(b)

includes-

(i)

any land in any lease-hold village;

(ii)

any land which is exempt either in whole or in part, from payment of land revenue;

(iii)

any land of which the land revenue alone or portion thereof has been granted in inam to any person, provided that such grant has been made, confirmed or recognized by the Government; and

(iv)

any inam constituting an estate under the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969.]

Estate Land Act, 1908 ([Tamil Nadu]

[Substituted for the word 'Madras ' by the Tamil Nadu Adaptation of Laws Order, 1969.]

Act I of 1908); but does not include any inam land on which full assessment of revenue has been levied under the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969.]

Inams (Assessment) Act, 1956 ([Tamil Nadu]

[Substituted for the word 'Madras '-by the Tamil Nadu Adaptation of Laws Order, 1969.]

Act XL of 1956);

(21)

"intermediary" means any person who, not being an owner or a possessory mortgage, has an interest in land, and is entitled, by reason of such interest, to possession thereof, but has transferred such possession to others;

(22)

"land" means agricultural land, that is to say, land which is used or capable of being used for agricultural purposes of purposes subservient thereto and includes forest land, pasture land, plantation and tope, but does not include house-site or land used exclusively for non-agricultural purposes;

(23)

"Land Board" means the [Tamil Nadu Land Board]

[Substituted for 'Madras Land Board' by paragraph 3(1)(b), of and the Scheduled to, the Tamil Nadu Adaptation of Laws order, 1970 which was deemed to have come into force on the 14th January 1969.]

constituted under section 24;

(24)

"Land Commissioner" means the Land Commissioner appointed under section 97;

(25)

"land owner" means the owner of the land let for cultivation by a tenant and includes the heirs, assignees, legal representatives of such owner or persons deriving rights through him;

(26)

"Land Tribunal" means a Land Tribunal constituted under section 76;

(27)

"ease-hold village" means any village specified in column (4) of Schedule II and such other village or part thereof as the Government may by notification from time to time, specify;

(28)

"limited owner" means any person entitled to a life estate in any land and includes persons deriving rights through him.

[Explanation.

[This Explanation was inserted by section 5 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972), which was deemed to have come into force on the 6th April 1960.]

- A person who has a right to enjoy the land during his lifetime shall be deemed to be a limited owner notwithstanding that he has no power to alienate the land;]

(29)

"member of the Armed Forces" means a person in the service of the Air Force, Army or Navy of the Union of India and included a seaman: Provided that if a question arises whether any person is a member of the Armed Forces, such question shall be decided by the Government and their decision shall be final;

(30)

[***]

[Omitted '(30) 'new sugar factory' means any sugar factory which has come into existence on or after the date of the commencement of this Act;' by section 3(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1972 (Tamil Nadu Act 41 of 1972).]

(31)

["notified date" means the date specified by the Government in a notification, which shall be a date after the date of the publication of this Act;]

[Substituted for the original clause (31) by section 2 (1)(d) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970.)]

(32)

"orchard" means an enclosure or assemblage of fruit or nut-bearing trees, constituting the main crop therein, whether of spontaneous or artificial growth, but does- not include trees on such bunds as are not within or adjunct to such enclosure or assemblage.

[Explanation.

[This Explanation was added by Section 3(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fifth Amendment Act, 1972 (Tamil Nadu Act 10 of 1974), which was deemed to have come into force on the 6th April 1960.]

- The expression "fruit or nut bearing "trees" shall not include plantain tree;]

(33)

"owner" -

(a)

means-

(i)

any person holding land in severally or jointly or in common under a ryotwari settlement or in anyway subject to the payment of revenue direct to the Government, or

(ii)

a landholder as defined in the .[Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969]

Estates Land Act, 1908 [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act I of 1908], or a ryot as defined in that Act, or

(iii)

an inamdar not being landholder defined as aforesaid, and

(b)

includes-

(i)

full owner or limited owner, or

(ii)

the lessee of any lease-hold village or his heirs, assignees, legal representatives or person deriving rights through him;

(34)

"person" includes any [***]

[Word 'trust' was omitted by Tamil Nadu Act 37 of 1972, which was deemed to have come into force on 1st March 1972.]
company, family firm, society or association of individuals, whether incorporated or not [or any private trust or public trust]

[Added by section 3(2)(a), of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972.]

(35)

"plantation" means any land used for growing all or any of the following, namely cardamom, cinchona, coffee, rubber or tea;

(36)

"Possessory mortgagee" means a mortgagee entitled to the possession of the whole or part of the mortgaged property and to receive the rents and profits accruing from such property or any part of such rents and profits and to appropriate the same in lieu of interest or in payment of the mortgage money or partly in lieu of interest or partly in payment of the

mortgage money [and "possessory mortgage" and "possessory mortgagor" shall be construed accordingly].

[Added by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1965 (Tamil Nadu Act 10 of 1965), which was deemed to come into force on the 2nd May 1962.]

[(36-A) "private trust" includes a trust under which the beneficiaries are persons, who are ascertained or capable of being ascertained.

[Inserted by section 3(2)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972).]

Explanation.-Notwithstanding anything contained in this Act, for the purpose of this clause, where the income from a public trust is substantially appropriated for the benefit of the founder of the trust or his heirs or of the family of the founder or of his heirs, such trust shall be deemed to be a private trust notwithstanding the terms of the trust;]

[[(36AA)]

[This clause was inserted by section 6(i) of the Tamil Nadu Tenancy (Amendment) Act, 1965 (Tamil Nadu Act 9 of 1965).]

"Proclamation of Emergency" means the proclamation issued under clause (1) of Article 352 of the Constitution on the 26th October 1962;]

(36AAA)

["public trust" means a trust for a public purpose of a religious, charitable or of an educational nature;]

[This clause was inserted by section 3(2)(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972) which was deemed to have come into force on the 1st March 1972.]

(36-B) "religious institution" means any-

(i)

temple;

(ii)

math;

(iii)

mosque; or

(iv)

church,

which is dedicated to, or for the benefit of or used as right by, the public as a place of religious worship;

(37)

"Schedule" means a Schedule appended to this Act;

(38)

"seaman" means every person including a master, pilot or apprentice employed or engaged as a member of the crew of a ship or a sailing vessel to which the Merchant Shipping Act, 1958 (Central Act 44 of 1958) applies;

(39)

"Settlement Officer" means an officer appointed under sub-section (1) of section 58;

(39-A) "Special appellate Tribunal" means the Tamil Nadu Land Reforms Special Appellate Tribunal constituted under section 77-C;

(40)

"standard acre" means-

(1)

in any area in the State except the transferred territory-

(a)

0.8 acre of wet land assessed to land revenue at any rate above Rs.15 per acre; or

(b)

1 acre of wet land assessed to land revenue at the rate of Rs.10 and above but not exceeding Rs.15 per acre; or

(bb)

[1.6 acres of wet land irrigated by any Government source other than a source mentioned in item (a); or]

[Inserted by section 3(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1983 (Tamil Nadu Act 3 of 1984).]

(c)

1.2 acres of wet land assessed to land revenue at the rate of Rs. 8 and above but below Rs. 10 per acre; or

(d)

1.6 acres of wet land assessed to land revenue at the rate of Rs. 6 and above but below Rs. 8 per acre; or

(e)

1.75 acres of wet land assessed to land revenue at the rate of Rs. 4 and above but below Rs. 6 per acre; or

(f)

2 acres of wet land assessed to land revenue at rate the below Rs. 4 per acre; or

(g)

2.5 acres of dry land assessed to land revenue at the rate of Rs. 2 and above per acre; or

(h)

3 acres of dry land assessed to land revenue at the rate of Rs. 1.25 and above but below Rs. 2 per acre; or

(i)

4 acres of dry land assessed to land revenue at any rate below Rs, 1.25 per acre.

(2)

in the Kanyakumari district-

(a)

1 acre of registered wet land irrigated by any source forming part of or benefited by, any project; or

(b)

1.2 acres of registered dry land irrigated by any source mentioned in item (a); or

(bb)

[1.6 acres of dry land irrigated by any Government source other than a source mentioned in item (a); or]

[Inserted by section 3(1)(b) of the Tamil Nadu Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1971).]

(c)

1.6 acres of dry land irrigated by any Government source other than a source mentioned in item (a); or

(d)

4 acres of dry land unirrigated by any source mentioned in item (a) or by any other Government source of irrigation.

(3)

in the Shencottah taluk of the Tirunelveli district-

(a)

1.2 acres of wet land irrigated by any river or stream or by tank fed by any river or stream;

(b)

1.6 acres of wet land irrigated by any Government source other than a source mentioned in item (a); or

(c)

2 acres of dry land irrigated by any Government source; or

(d)

4 acres of dry land unirrigated by any source mentioned in item (a) or by any other Government source of irrigation;

[Explanation I. - For the purpose of sub-clause (1) of clause (40), "land revenue" shall mean-]

[The additional assessment, additional water-cess or surcharge payable under the Tamil Nadu Additional Assessment and Additional Water-cess Act, 1963 (Tamil Nadu Act 8 of 1963) or the Tamil Nadu Land Revenue and Water-cess (Surcharge) Act, 1965 (Tamil Nadu Act 34 of 1965, as the case may be, shall not deemed to be land revenue for the purpose of calculating standard acre under the Tamil Nadu Act

58 of 1961

. Please see section 17(ii) of the Tamil Nadu Act 8 of 1963 and section 15(vi) of the Tamil Nadu Act 34 of 1965.]

(i)

in the case of any land in respect of which a ryotwari settlement is in force on the date of the commencement of this Act, the ryotwari assessment payable on that date;

(ii)

in the case of any inam land, on which full assessment of revenue has been levied under the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order 1969 as Amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Inams (Assessment) Act, 1956 (Tamil Nadu Act XL of 1956), such assessment;

(iii)

in the case of any land other than an inam land referred to in clause (ii) in respect of which a ryotwari settlement is not in force on the date of the commencement of this Act, but is brought into force after that date but before the date of publication of the draft statement under sub-section (5) of section 10, the ryotwari assessment payable under such settlement after it is brought into force;

(iv)

in the case of any land in respect of which a ryotwari settlement effected in pursuance of section 22 of the [Tamil Nadu] [Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order 1969 as Amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Estates (Abolition and Conversion into Ryotwari) Act, 1948 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order 1969 as Amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXVI of 1948) has not been brought into force before the date of publication of the draft statement under sub-section (5) of section 10, or in the case of any inam land, the land revenue notified by the Government in this behalf with due regard to the highest rate of ryotwari assessment payable for any land of a similar description and with similar advantages in the nearest ryotwari village:

Provided that no notification shall be issued under this clause, unless the persons likely to be affected by such notification are given a reasonable opportunity to make representation and adduce evidence in respect of the rates proposed to be specified in the notification:

Provided further that the land revenue notified by the Government under this clause shall not be modified notwithstanding that a different rate of assessment is fixed under-

(i)

any settlement that may be brought into force; or

(ii)

the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order 1969 as Amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Inam (Assessment) Act, 1956 (Tamil Nadu Act XL of 1956);

Explanation II. - In sub-clauses (2) and (3) of clause (40) "wet land" and "dry land" shall include inam wet land and inam dry land respectively.

Explanation III. - For the purpose of sub-clause (2) of clause (40), "project" means any of the following irrigation systems, namely:-

(i)

Kodayar project system proper;

(ii)

(a)

Pazhayar System;

(b)

Valliar system;

(c)

Thirparappu Right Bank Channel and Left Bank Channel system;

(d)

Champakulam system;

(iii)

Alathuraiyar system

Explanation IV. - In any area in the State except the transferred territory, one acre of dry land-

(a)

irrigated by direct flow of water from any Government source of irrigation supplying water-

(i)

for two crops and above, shall be deemed to be equivalent to one acre of wet land assessed to land revenue at the rate

of Rs. 8 and above but below Rs. 10 per acre.

(ii)

for only one crop, shall be deemed to be equivalent to one acre of wet land assessed to land revenue at the rate of Rs. 4 and above but below Rs. 6 per acre.

(b)

irrigated by lifting water from any Government source of irrigation shall be deemed to be equivalent to one acre of wet land assessed to land revenue at the rate of Rs. 4 and above but below Rs. 6 per acre:

Provided that the Government may, in respect of any particular area, by notification, direct that one acre of dry land irrigated from any Government source of irrigation shall be deemed to be equivalent to any specified extent of any of the categories of land specified in sub-clause (1) of clause (40) on the ground of quality of the soil or on any other ground:

Provided further that such notification shall not come into force unless it is approved by the Legislature.

Explanation V. - Where the land held by a person consists of more than one of the kinds of the land specified in clause (40), the extent of the land held by him shall, for the purpose of this Act, be reduced to standard acres calculated according to the proportions specified in clause (40);

(41)

"State" means the [State of Tamil Nadu]

[Substituted for the word 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

:

(42)

"stridhana land" means any land held on the date of the commencement of this Act by any female member of a family on her own name;

(43)

and (44) [***]

[Clauses (43) and (44) were omitted by section 3(1) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971)]

(45)

"surplus land" means the land held by a person in excess of the ceiling area and declared to be surplus land under sections 12,13 or 14;

(46)

"tenant" means any person who has paid or has agreed to pay rent or other consideration for his being allowed by another to enjoy the land of the latter under a tenancy agreement, express or implied, and includes-

(i)

any such person who continues in possession of the land after the determination of the tenancy agreement;

(ii)

the heirs, assignees, legal representatives of such person, or persons deriving rights through such person;

(iii)

a cultivating tenant;

(47)

"tope" means any land containing groups of fruit or nut-bearing trees including palmyra trees, constituting the main crop in such land, whether of spontaneous or artificial growth and includes orchards, but does not include trees on such bunds as are not within or adjunct to such groups of trees;

[Explanation.

[This Explanation was added by section 3(1) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Fifth Amendment Act, 1972 (Tamil Nadu Act 10 of 1974), which was deemed to have come into force on the 6th April 1960.]

- The expression "fruit or nut-bearing trees" shall not include plantain tree.]

(48)

"transferred territory" means the Kanyakumari district and the Shencot-tah taluk of the Tirunelveli district;

(49)

["trust" means a private trust or a public trust;] [[Substituted by section 3(2)(d) of the Tamil Nadu Land Reforms Fixation

of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972. Before its substitution, read as follows:

'(49) 'trust' means trust for a public purpose of a religious or charitable, or of an educational nature, and includes and temple, math, mosque, church or other place, by whatever name known, which is dedicated to, or for the benefit of, or used as of right by, any community or section thereof as a place of public religious worship.]]

3A.

[Certain special definitions.

[Inserted by section 3(2) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

- Notwithstanding anything contained in this Act, if, by virtue of the operation of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971), the total extent of land held by any person exceeds the ceiling area, then, in relation to such person and in this Act unless the context otherwise requires,-

(i)

"date of the commencement of this Act" means the date specified by the Government under sub-section (2) of section 1 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971);

(ii)

"notified date" means the date specified by the Government in a notification which shall be a date subsequent to the date specified under sub-section (2) of section 1 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

3B.

[Certain special definitions.

[Inserted by section 3(2) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

- Notwithstanding anything contained in this Act, if, by virtue of the operation of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972), the total extent of land held by any person exceeds the ceiling area, then, in relation to such person and in this Act, unless the context otherwise requires,-

(i)

"date of the commencement of this Act" means the 1st day of March 1972;

(ii)

"notified date" means the date specified by the Government in a notification, which shall be a date subsequent to the date of the publication of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972), in the Tamil Nadu Government Gazette.]

3C.

[Certain special definitions.

[Inserted by section 3(2) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

- Notwithstanding anything contained in this Act, if, by virtue of the operation of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 20 of 1972), the total extent of land held by any person exceeds the ceiling area, then, in relation to such person and in this Act, unless the context otherwise requires,-

(i)

"date of the commencement of this Act" means the 1st day of March 1972;

(ii)

"notified date" means the date specified by the Government in a notification which shall be a date subsequent to the date of publication of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972, in the Tamil Nadu Government Gazette.]

3D.

[Certain special definitions.

[Inserted by section 3(2) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

- Notwithstanding anything contained in this Act, if, by virtue of the operation of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972, the total extent of land held by any person exceeds the ceiling area,

then, in relation to such person and in this Act, unless the context otherwise requires,-

(i)
"date of the commencement of this Act" means the 1st day of March 1972;

(ii)
"notified date" means the date specified by the Government in a notification, which shall be a date subsequent to the date of the publication of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972, in the Tamil Nadu Government Gazette.]

3E.

[Certain special definitions.

[Inserted by section 3(2) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

- Notwithstanding anything contained in this Act, if by virtue of the operation of section 3 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fifth Amendment Act, 1972 (Tamil Nadu Act 10 of 1974), the total extent of land held by any person exceeds the ceiling area, then, in relation to such person and in this Act, unless the context otherwise requires,-

(i)
"date of the commencement of this Act" means-

(a)
for the period before the 15th day of February 1970, the 6th day of April 1960;

(b)
for the period commencing on the 15th day of February 1970, the 15th day of February 1970;

(ii)
"notified date" means the date specified by the Government in a notification, which shall be a date subsequent to the date of the publication of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fifth Amendment Act, 1972 (Tamil Nadu Act 10 of 1974), in the Tamil Nadu Government Gazette.]

4.

Act to override other laws, contracts, etc.

- The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force, or any custom, usage or contract or decree or order of a Court or other authority.

Chapter II

Fixation of Ceiling on land Holdings

5.

[Ceiling area. [[Substituted for the original clause (a) by section 3(4)(a)(i) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972.

'(a) Subject to the provisions of Chapter VIII, the ceiling area in the case of every person and, subject to the provisions of sub-sections (4) and (5) and of Chapter VIII, the ceiling area in the case of every family consisting of not more than five members, shall be 30 standard acres. In the said clause, for the figures and words '30 standard acres' the figures and words '15 standard acres' were earlier substituted by section 2(2)(a) of the Tamil Nadu Land (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972).]]

(1)
1(a) Subject to the provisions of sub-sections (3-A), (3-B) and (3-C) and of Chapter VIII, the ceiling area in the case of every person (other than the institutions referred to in clauses (c) and (d) and subject to the provisions of sub-sections (3-A), (3-B), (3-C), (4) and (5) and of Chapter VIII, the ceiling area in the case of every family consisting of not more than five members shall be 15 standard acres.]

(b)
The ceiling area in the case of every family consisting of more than five members shall [subject to the provisions of sub-sections (3-A), (3-B), (3-C), (4) and (5)] [[Substituted for 'subject to the provisions of sub-sections (4) and (5)' by section 3(4)(a)(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972.

'(a) Subject to the provisions of Chapter VIII, the ceiling area in the case of every person and, subject to the provisions of subsections (4) and (5) and of Chapter VIII, the ceiling area in the case of every family consisting of not more than five members, shall be 30 standard acres. In the said clause, for the figures and words '30 standard acres' the figures and words '15 standard acres' were earlier substituted by section 2(2)(a) of the Tamil Nadu Land (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972).]] and of Chapter VIII, be [15 standard acres]

[Substituted for the figures and words '30 standard acres ' by section 2(2)(a) of the Tamil Nadu Land Reforms (Reduction of Ceiling* on Land) Act, 1970 (Tamil Nadu Act 17 of 1970) which was deemed to have come into force on the 15th February 1970.]

together with an additional 5 standard acres for every member of the family in excess of five.

(c)

[(i) The ceiling area in the case of the institutions mentioned in column (1) of the Table below and in existence on the date of the commencement of this Act, shall be the extent specified in the corresponding entry in column (2) thereof:

[Added by section 3(4)(a)(iii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972) which was deemed to have come into force on the 1st March 1972.]

Provided that such extent was held by such institutions on the date of the commencement of this Act.

(1)

(2)

(1)

Any College affiliated to or recognised by any University under any law or rule relating to education.

40 (Forty) standard acres.

(2)

Any High School or equivalent school recognised by the Government or University under any law or rule relating to education.

20 (Twenty) standard acres.

(3)

Any Elementary School or Higher Elementary School or other equivalent institution recognised by the Government under any law or rule relating to education.

10 (Ten) standard acres.

(4)

Any Student's Hostel.

25 (Twenty-five) standard acres.

(5)

Any Polytechnic Institution

25 (Twenty-five) standard acres.

(6)

Any Agricultural School

25 (Twenty-five) Standard acres.

(7)

Any Orphanage.

25 (Twenty-five) standard acres.

(ii)

Notwithstanding anything contained in sub-clause (i), no such institution as is referred to in that sub-clause; and-

(a)

holding land, on the date of the commencement of this Act, less than the extent specified in the corresponding entry in column (2) of the Table under sub-clause (i), shall acquire by any means whatsover, after that date, any land in excess of the extent so held, and

(b)

holding no land at all on the date of the commencement of this Act, shall acquire by any means whatsoever, after that date, any land.

Explanation. - In calculating the extent of land held on the date of commencement of this Act, by any of the institutions mentioned above, the extent of land held by such institution and the extent of land apportioned under sub-section (3-B) shall be taken into account.]

(d)

(i)

The Ceiling area in the case of a public trust of a charitable nature in existence on the date of the commencement of this Act (other than such trusts under which the institutions referred to in clause (c)(i) are the beneficiaries) shall be 5 (five) standard acres:

Provided that such extent of land is held by such trust on the date of the commencement of this Act.

(ii)

Notwithstanding anything contained in sub-clause (i), no such public trust of a charitable nature as is referred to in sub-clause (i) and-

(A)

holding land on the date of the commencement of this Act less than five standard acres shall acquire by any means whatsoever, after that date, any land in excess of the extent so held; and

(B)

holding no land at all on the date of the commencement of this Act shall acquire by any means whatsoever, after that date, any land.

(2)

For the purposes of this section, all the lands held individually by the members of a family or jointly by some or all of the members of such family shall be deemed to be held by the family.

(3)

(a)

In calculating the extent of land held by a member of a family or by an individual person, the share of the member of the family or of the individual person in the land held by an undivided Hindu family, a Marumakkattayam tarward, an Aliyasanthana family or a Nambudiri Illom shall be taken into account.

(b)

In calculating the extent of land held by a family or by an individual person, the share of the family or of the individual person in the land held by a firm, society or association of individuals (whether incorporated or not) or by a company (other than a non-agricultural company) shall be taken into account.

Explanation. - For the purposes of this section-

(a)

the share of a member of a family or of an individual person in the land held by an undivided Hindu family, a Marumakkattayam tarward, an Aiiyasanthana family or a Nambudiri Illom, and

(b)

the share of a family or of an individual person in the land held by a firm, society or association of individual (whether incorporated or not), or by a company (other than a non-agricultural company), shall be deemed to be the extent of land-

(i)

which, in case such share is held on the date of the commencement of this Act, would have been allotted to such member, person or family had such land been partitioned or divided, as the case may be, on such date; or

(ii)

which, in case such share is acquired in any manner whatsoever after the date of the commencement of this Act, would be allotted to such member, person or family if a partition or division were to take place on the date of the preparation of the draft statement under sub-section (1) of section 10.

[(3-A) (i) For the purposes of this Act, the land owned by a private trust shall be deemed to be land owned by the beneficiaries under the private trust and each such beneficiary shall be deemed to be the owner of the land to the extent of the share of his beneficial interest in the said trust;]

[Sub-sections (3-A), (3-B) and (3-C) were inserted by section 3(4)(b) of the Tamil Nadu Land Reforms (Fixation of

Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972) which was deemed to have come into force on the 1st March 1972.]

(ii)

In calculating the extent of land held by such beneficiary for the purpose of this Act, such extent of the share of the land as is mentioned in clause (i) shall be taken into account.

Explanation. - For the purpose of this sub-section, the trustee of a private trust shall be deemed to be a beneficiary under such private trust, if any income or part thereof from such private trust is enjoyed by him or his heirs, or by his family or the family of his heirs;

(iii)

(a)

The land held by the public trust referred to in the Explanation to clause (36-A) of section 3 shall be deemed to be held by the founder of the trust or his heirs or the family of the founder or of his heirs.

(b)

In calculating the extent of land held by such founder or his heirs or such family, the extent of the land held by the public trust shall be taken into account.

(iv)

(a)

Where any of the institutions mentioned in clause (c) of sub-section (1), is a beneficiary under a public trust, the land owned by such public trust shall be deemed to be land owned by such institution and each such institution shall be deemed to be the owner of the land for the purpose of this Act to the extent of the share of the beneficial interest in such public trust.

(b)

In calculating the extent of land held by such institution, such extent of the share of the land as is mentioned in sub-clause (a) shall be taken into account.

(3-B) (a) Notwithstanding anything contained in this Act, where the income from a public trust in existence on the date of the commencement of this Act, is appropriated for the establishment or maintenance of one or more institutions referred to in column (1) of the Table under sub-clause (i) of clause (c) of subsection (1), the ceiling area in the case of such public trust shall be the extent of standard acres, which is equal to the total extent of land calculated in the manner specified below for all categories of institutions:-

Number of institutions in each category mentioned in column (1) of the Table x number specified in the corresponding entry in column (2) thereof:

Provided that such extent of land was held by such trust on the date of the commencement of this Act.

(b)

Notwithstanding anything contained in clause (a), no such public trust as is referred to in that clause and-

(i)

holding land on the date of the commencement of this Act less than the extent allowed under clause (a) shall acquire by any means whatsoever after that date, any land in excess of the extent so held; and

(ii)

holding no land at all on the date of the commencement of this Act, shall acquire by any means whatsoever after the date, any land.

(3-C) Notwithstanding anything contained in this Act, [but subject to the provisions of section 37-B and section 73]

[Inserted by section 4(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1985 (Tamil Nadu Act 29 of 1987)]

, no land shall be held by any public trust which is created after the date of the commencement of this Act.

(4)

(a)

Subject to the provisions of sub-section (5), where the stridhana land held by any female member of a family together with the other land held by all the members of that family, is in excess of [15 standard acres]

[Substituted for the figures and words '30 standard acres ' by section 2(2)(b) of the Tamil Nadu (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

, the female member concerned may hold, in addition to the extent of land which the family is entitled to hold under

sub-section (1), stridhana land not exceeding 10 standard acres:

Provided that where any extent of stridhana land held by a female member is included in the extent of land which the family is entitled to hold under sub-section (1) and in case where the extent so included is-

(i)

10 or more than 10 standard acres, she shall not be entitled to hold any stridhana land in addition to the extent so included; or

(ii)

less than 10 standard acres, she may hold, in addition to the extent so included, an extent of stridhana land, which together with the extent so included, shall not exceed 10 standard acres.

(b)

Where the extent of stridhana land held under clause (a) by any female member of a family consisting of more than five members-

(i)

is 5 or more than 5 standard acres, she shall not be deemed to be a member of that family for the purposes of clause (b) of sub-section (1); or

(ii)

is less than 5 standard acres, the additional extent of 5 standard acres allowed under clause (b) of sub-section (1) shall be reduced by the same extent as the extent of stridhana land so held.

Illustrations

(a)

An undivided Hindu family consists of husband A, his wife and his three sons B, C and D and the wife of B and grandsons E and F. B is a major and C and D are minors. E and F are the minor sons of B. The extent of land held by the undivided Hindu family is [40 standard acres]

[Substituted by Tamil Nadu Act 17 of 1970, which was deemed to have, come into force on the 15th February 1970.]

, that is to say, A's share and the share of his sons in the land held by the undivided Hindu family is [10 standard acres]

[Substituted by Tamil Nadu Act 17 of 1970, which was deemed to have come into force on the 15th February 1970.]

each. A's wife has [15 standard acres]

[Substituted by Tamil Nadu Act 17 of 1970, which was deemed to have come into force on the 15th February 1970.]

of stridhana land and B's wife has [10 standard acres]

[Substituted by Tamil Nadu Act 17 of 1970, which was deemed to have come into force on the 15th February 1970.]

of stridhana land.

For the purpose of ceiling A's family and B's family will each constitute a separate [section 3(14)].

As family consists of himself, his wife and his minor sons C and D. If the share of A in the land held by the undivided Hindu family, namely, [10 standard acres]

[Substituted by Tamil Nadu Act 17 of 1970, which was deemed to have come into force on the 15th February 1970.]

is included within the [15 standard acres]

[Substituted by Tamil Nadu Act 17 of 1970, which was deemed to have come into force on the 15th February 1970.]

allowed under sub-section (1) of section 5, the wife's stridhana land to the extent of [5 standard acres] may be included to make up [15 standard acres]

[Substituted by Tamil Nadu Act 17 of 1970, which was deemed to have come into force on the 15th February 1970.]

[section 5(4)]. [The wife can hold, in addition, 5 standard acres as stridhana land. All the members of A's family will, therefore, be together entitled to hold 20 standard acres and the remaining 25 standard acres will be treated as surplus land]

[Substituted by Tamil Nadu Act 17 of 1970, which was deemed to have come into force on the 15th February 1970.]

.

B's family consists of himself, his wife and his minor sons E and F. If the stridhana land of B's wife, namely, [10 standard acres]

[Substituted by Tamil Nadu Act 17 of 1970, which was deemed to have come into force on 15.2.1970.]

is included within the [15 standard acres]

[Substituted for '20 standard acres', '50 standard acres', '20 standard acres', '50 standard acres', '50 standard acres' and '20 standard acres' by section 2(2)(c)(iii) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970]

(Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]
allowed under sub-section (1) of section 5, the share of B and his sons in the land held by the undivided Hindu family to the extent of [5 standard acres]

[Substituted for '20 standard acres', '50 standard acres', '20 standard acres', '50 standard acres', '50 standard acres' and '20 standard acres' by section 2(2)(c)(iii) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

maybe included to make up [15 standard acres]

[Substituted for '20 standard acres', '50 standard acres', '20 standard acres', '50 standard acres', '50 standard acres' and '20 standard acres' by section 2(2)(c)(iii) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

[section 5(4)]. All the members of B's family will, therefore, be together entitled to hold [15 standard acres]

[Substituted for '20 standard acres', '50 standard acres', '20 standard acres', '50 standard acres', '50 standard acres' and '20 standard acres' by section 2(2)(c)(iii) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

and the remaining [5 standard acres]

[Substituted for '20 standard acres', '50 standard acres', '20 standard acres', '50 standard acres', '50 standard acres' and '20 standard acres' by section 2(2)(c)(iii) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15.02.1970.]

will be treated as surplus land.

(b)

A family consists of husband and his wife. The husband is a member of an undivided Hindu family and his share in the land held by the undivided Hindu family is [10 standard acres]

[Substituted for '25 standard acres', '20 standard acres', '20 standard acres', '50 standard acres', '10 standard acres' and '50 standard acres' respectively by sections 2(2)(d)(i) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

. The wife has stridhana land of [10 standard acres]

[Substituted for '25 standard acres', '20 standard acres', '20 standard acres', '50 standard acres', '10 standard acres' and '50 standard acres' respectively by sections 2(2)(d)(i) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

. If the entire stridhana land of [10 standard acres]

[Substituted for '25 standard acres', '20 standard acres', '20 standard acres', '50 standard acres', '10 standard acres' and '50 standard acres' respectively by sections 2(2)(d)(i) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

held by the wife is included within the [15 standard acres]

[Substituted for '25 standard acres', '20 standard acres', '20 standard acres', '50 standard acres', '10 standard acres' and '50 standard acres' respectively by sections 2(2)(d)(i) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

allowed under sub-section (1) of section 5, then, an extent to 5 standard acres of the share of the husband in the undivided Hindu family may be included to make up 15 standard acres. 5 standard acres will be treated as surplus land and the wife is not entitled to hold any additional extent of stridhana land [section 5(4)].

But, if the [10 standard acres]

[Substituted for the figure and were '25 standard acres', '30 standard acres', '5 standard acres', '30 standard acres', '5 standard acres' and '30 standard acres' respectively by sections 2(2)(d)(ii)(a) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

which is the share of the husband in the undivided Hindu Family is included within the [15 standard acres]

[Substituted for the figure and were '25 standard acres', '30 standard acres', '5 standard acres', '30 standard acres', '5 standard acres' and '30 standard acres' respectively by sections 2(2)(d)(ii)(a) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

allowed under sub-section (1) of section 5, then, an extent of [5 standard acres]

[Substituted for the figure and were '25 standard acres', '30 standard acres', '5 standard acres', '30 standard acres', '5 standard acres' and '30 standard acres' respectively by sections 2(2)(d)(ii)(a) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

of stridhana land of the wife could also be included to make up [15 standard acres]

[Substituted for the figure and were '25 standard acres', '30 standard acres', '5 standard acres', '30 standard acres', '5 standard acres' and '30 standard acres' respectively by sections 2(2)(d)(ii)(a) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

. The wife may retain additional [5 standard acres]

[Substituted for the figure and were '25 standard acres', '30 standard acres', '5 standard acres', '30 standard acres', '5 standard acres' and '30 standard acres' respectively by sections 2(2)(d)(ii)(a) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

of stridhana land [section 5(4)]. [There will be no surplus land.]

[Substituted for 'Ten standard acres will be treated as surplus land' by section 2(2)(d)(ii)(b) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

(c)

A Muslim family consists of the husband, his wife and his two minor sons. The wife has [15 standard acres]

[Substituted for the figure and were '30 standard acres', '50 standard acres', '10 standard acres' and '40 standard acres' respectively by section 2(2)(e) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

of stridhana land and the minor sons have no property. The husband has [25 standard acres]

[Substituted for the figure and were '30 standard acres', '50 standard acres', '10 standard acres' and '40 standard acres' respectively by section 2(2)(e) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

. If the entire extent of land which the family is entitled to hold under sub-section (1) of section 5 consists of the land owned by the husband only, then, the wife can hold additional [10 standard acres]

[Substituted for the figure and were '30 standard acres', '50 standard acres', '10 standard acres' and '40 standard acres' respectively by section 2(2)(c) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

[section 5(4)]. The remaining [15 standard acres]

[Substituted Tamil Nadu Act 17 of 1970 which was deemed to have come into force on the 15th February 1970.]

will be treated as surplus land.

(d)

A Christian family consists of the husband, his wife and his two minor sons. The husband, and the minor sons have no property. The wife has stridhana land of [20 standard acres]

[Substituted for the words '40 standard acres', '30 standard acres' and '10 standard acres' by section 2(2)(f) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

. The family can retain [15 standard acres]

[Substituted for the words '40 standard acres', '30 standard acres' and '10 standard acres' by section 2(2)(f) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

. The remaining [5 standard acres]

[Substituted for the words '40 standard acres', '30 standard acres' and '10 standard acres' by section 2(2)(f) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

will be treated as surplus land and the wife is not entitled to hold any additional extent of stridhana land [section 5(4)].

(5)

Notwithstanding anything contained in sub-section (1) and in sub-section (4) and in Chapter VIII, the total extent of the land held or deemed to be held by any family [shall, in no case, exceed 30 standard acres]

[Substituted for 'shall in no case exceed 40 standard acres' by section 3(2) of the Tamil Nadu Land Reforms (fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972), which was deemed to have come into force on the 1st March 1972 (The figures and words '40 standard acres' were earlier substituted for the figures and words '60 standard acres' by section 3(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972) which was deemed to have come into force on the 1st March 1972.)]

(6)

In calculating the extent of land held or deemed to be held by any person, the extent of land which may revert to such person, immediately after the death of any limited owner shall, during the lifetime of the limited owner, be excluded.

6.

Basis of calculation of the extent of land held by the founder of a [public trust]

[This word 'public ' was inserted by section 3(5) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972.]

- Where under the terms of a [public trust]

[This word 'public ' was inserted by section 3(5) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972.]

interest either in the land in respect of which the [public trust]

[This word 'public ' was inserted by section 3(5) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972.]

is created or in the land income from such land is reserved in favour of the founder of such [public trust]

[This word 'public ' was inserted by section 3(5) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972.]

or of any other person. The authorized officer shall declare the extent of land which bears of a to the total extent of land in respect of which the [public trust]

[This word 'public' was inserted by section 3(5) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972.]

is created, the same proportion as such interest bears to the total interest in such land or the income therefrom. The extent of the land so declared shall, with effect from the date of such declaration, be deemed to be held by the founder or such other person and shall be taken into account in calculating the extent of land held by him. The extent so declared shall cease to be the [public trust]

[This word 'public' was inserted by section 3(5) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972.]

property from the date of such declaration, but shall be subject to any other liability that may be subsisting on such land: Provided that the extent of such liability shall bear same proportion to the entire liability as the extent so declared bears to the total extent.

7.

Ceiling on holding land.

- On and from the date of the commencement of this Act, no person shall, except as otherwise provided in this Act, but subject to the provisions of Chapter VIII, be entitled to hold land in excess of the ceiling area:

Provided that while calculating the total extent of land held by any person, any extent in excess of the ceiling area and not exceeding half an acre in the case of wet land and one acre in the case of dry land shall, irrespective of the assessment of such land, be excluded.

8.

Furnishing of return by person holding land in excess of the standard acres.

(1)

[[Within thirty days]

[Substituted for the words 'within ninety days from such date as may be specified in the notification issued by the Government in this behalf by section 2(3)(b)(i) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act,

1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]
from the notified date], every person, who on the date: of the commencement of this Act, held, deemed to have held,
land [in excess of the ceiling area]

[Substituted for 'in excess of 15 standard acres' by section 3(6) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972. (These figures and words '15 standard acres' were earlier substituted for the figures and words '30 standard acres' by section 2(3)(b)(ii) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.)]

shall, in respect of all land held or deemed to have been held by such person on such date, furnish to the authorized officer within whose jurisdiction the holding of such person or the major part thereof is situated, a return containing the following particulars, namely:-

- (i)
particulars of all the land;
- (ii)
particulars of the members of the family and of the stridhana land held by each female member of the family;
- (iii)
particulars of any interest either in the land held by a trust or in the income from such land reserved in his favour or in favour of any members of his family;

(iv)
[Omitted by Tamil Nadu Act 39 of 1972, which was deemed to have come into force on the 1st March 1972.]

(v)
particulars of land-

(a)
interspersed among plantations, or

(b)
contiguous to plantations, if any in existence [on the date of the commencement]

[Substituted for the words 'on 6th day of April 1969' by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 30 of 1972

), which was deemed to have' come into force on the 6th April 1960.]
of this Act in any area [***]

[The words 'other than a hill area ' were omitted by section 3(4) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972), which was deemed to have come into force on the 1st March 1972.]

and which land such person desires to hold for extended or ancillary purposes of the plantation;

(vi)
particulars of the encumbrances, if any, over the land together with the name and address of the creditor;

(vii)
particulars of any pending litigation respecting the land or part thereof;

(viii)
particulars of the land which such person desires to retain within the ceiling area and the land which he desires to be declared as surplus land;

(ix)
particulars of the land held by tenant, if any, and the name and address of such tenant; [and]

[Added by section 3(3)(a)(i) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

(x)
[Omitted by section 3(3)(a)(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

(xi)
such other particulars as may be prescribed.

[Explanation I.

[Substituted for the original Explanation I by section 2(3)(b)(iii) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on The 15th February 1970.]

- In the case of a member of the Armed Forces, the reference to ninety days shall be deemed to be a reference to one year.]

Explanation II. - Where land is held or deemed to be held by-

(a)

an individual, the return shall be furnished by him or any person authorized by him in writing in this behalf;

(b)

a person who is a minor, lunatic, idiot, or is subject to a like disability, the return shall be furnished by the guardian, manager or other person in-charge of such person or of the property of such person;

(c)

a company or other corporate body, the return shall be furnished by any person competent to act for such company or body in this behalf.

Explanation III. - Where land is held or deemed to be held by a family, the return shall be furnished by the person in management of such family or of the property of such family and the return so furnished shall be binding on the other members of the family:

Provided that the authorized officer shall give to the other members of the family a reasonable opportunity of making their representations and of adducing evidence, if any, in respect of such return and shall consider such representations and evidence before the preparation of the draft statement under subsection (1) of section 10.

(2)

[***]

[Omitted by section 3(3)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971)]

9.

Collection of information.

(1)

If any person who has held or is deemed to have held land [in excess of ceiling area]

[Substituted for 'in excess of 15 standard acres' by section 3(6) of Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972.]

fails to furnish the return under information section 8 or furnishes an incorrect or incomplete return under that section, the authorized officer may, by notice, require such person to furnish the return or the additional particulars, as the case may be, within the time specified in the notice, or within such further time not exceeding thirty days as the authorized officer may, in his discretion, allow.

(2)

(a)

Where any person, on whom notice under sub-section (1) has been served, fails to furnish the return, or the additional particulars, as the case may be, within the time specified in that notice, or within the further time allowed by the authorized officer under sub-section (1), the authorized officer may obtain in such manner as may be prescribed the necessary information either by himself or through such agency as he thinks fit.

(b)

The authorized officer shall, as soon as may be, after obtaining the information under clause (a), give to the person concerned a reasonable opportunity of making his representation and of adducing evidence, if any, in respect of such information and consider any such representation and evidence and pass such orders as he deems fit.

(3)

Where the authorized officer finds from the return furnished under section 8, or under sub-section (1), or the additional particulars, if any, furnished under sub-section (1), or from the informations obtained by the authorized officer under clause (a) of sub-section (2) that the person concerned desires to hold-

(a)

(i)

any land interspersed among plantations, or

(ii)

any land contiguous to any plantation, in existence [on the date of the commencement of this Act]

[Substituted for 'on the 6th day of April 1960' by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1974 (Tamil Nadu Act 30 of 1974), which was deemed to have come into force on the 6th April 1960.]

in any area [xxx]

[Substituted for the words 'other than a hill area' by section 3(5) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

, [xxx]

[The word 'or' was omitted by section 3(4)(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

;

(b)

[***]

[Omitted by section 3(4)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972)]

(4)

[***]

[Omitted by section 3(4) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971)]

10.

Preparation and publication of draft statement as regards land in excess of the ceiling area.

(1)

On the basis of the return furnished under sub-section (1) of section 8 and the basis of the representation and evidence under the proviso to Explanation III to sub-section (1) of section 8 or on the basis of the return furnished under sub-section (1) of section 9 and the additional particulars, if any, furnished under that sub-section, or on the basis of the information obtained by the authorized officer under clause (a) of sub-section (2) of section 9 and the orders passed on the representation and the evidence, if any, under clause (b) of sub-section (2) of section 9, as the case may be, the authorized officer shall, subject to the provisions of sub-section (2), (3) and (4) and after making such enquiry as he deems fit, prepare a draft statement in respect of each person holding or deemed to have held land in excess of the ceiling area. Such draft statement shall contain the following particulars, namely:-

(i)

the name and address of the person;

(ii)

particulars of all land held by such person and the total extent of such land;

(iii)

particulars of the members of the family and of the stridhana land held by each female member of the family;

(iv)

particulars of any interest either in the land held by a trust or in the income from such land reserved in his favour or in favour of any member of his family;

(v)

[***]

[Omitted by section 3(5)(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

(vi)

particulars of land-

(a)

interspersed among plantations, or

(b)

contiguous to any plantation, in existence [on the date of the commencement of this Act]

[Substituted for 'on the 6th day of April 1960' by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1974 (Tamil Nadu Act 30 of 1974), which was deemed to have come into force on 6th April 1960.]

in any area [***]

[The words 'other than a hill area' were omitted by section 3(6) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

and which land such person desires to hold for extension or ancillary purposes, of the plantation;

(vii)
particulars of encumbrances, if any over the land together with the name and address of the creditor;

(viii)
particulars of the land which such person desires to retain within the ceiling area;

(ix)
the extent of the ceiling area of the person;

(x)
particulars of the land which may be comprised within the ceiling area;

(xi)
particulars of the land held by tenant if any and the name and address of such tenant;

(xii)
particulars of the land proposed to be declared as surplus land; [and]

[Added by section 3(5)(i) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

(xiii)
[[***]

[Omitted by section 3(5)(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

(xiv)
such other particulars as may be prescribed.

(2)
(a)
For the purpose of calculating for the first time [after the date of the commencement of this Act]

[Inserted by Tamil Nadu Act 17 of 1970.]
, the ceiling area of a family holding land on the date of the commencement of this Act in excess of [15 standard acres]
[Substituted for the figures and words '30 standard acres' by section 2(5)(a)(ii) of the Tamil Nadu Land Reforms (Reduction on Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970).]

, the authorized officer shall take into account only those members of that family who are alive on the notified date. But, for the purpose of calculating the ceiling area of such family for the second or for any subsequent time, the authorized officer shall take into account only those members of that family who are alive on the date of the preparation of the draft statement under sub-section (1).

(b)
For the purpose of calculating the ceiling area of any other family [for the first time after the date of commencement of this Act, or for any subsequent time]

[Substituted for the words 'for the first or for any subsequent time' by section 2(5)(b) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970).]

, the authorized officer shall take into account only those members of that family who are alive on the date of the preparation of the draft statement under sub-section (1).

(3)
If any person has failed to specify the particulars of the land which he desires to retain within his ceiling area, the authorized officer shall, as far as practicable, specify in the draft statement, the land which is capable of easy and convenient enjoyment as the land to be retained by such person within his ceiling area.

(4)
If any person has specified the particulars of the land which he desires to retain within his ceiling area, the authorised

officer shall, as far as practicable, [but subject to the provisions of sub-section (4-A) and (4-B), declare the same land as comprised within his ceiling area:]

[Inserted by section 3(1)(i) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Sixth Amendment Act 1972 (Tamil Nadu Act 7 of 1974).]

Provided that where, in the opinion of the authorised officer, the utility of any land or part thereof held by any person has been diminished by any wilful act of such person, after the date of the commencement of this Act, the authorized officer shall declare such land or any part thereof as comprised within his ceiling area:

Provided further that the authorized officer shall, subject to such conditions as may be prescribed, declare the share of any person in the land held by any agricultural company, a co-operative society or a land mortgage bank, or any part of such share as comprise within the ceiling area:

Provided also that, subject to the above provisions, the land which the authorized officer proposes to declare as surplus land under clause (xii) of subsection (1) shall, as far as practicable, be such as is capable of easy and convenient enjoyment.

[(4-A) Notwithstanding anything contained in sub-section (4), where the transfer or partition of any land has been declared to be void under section 22, it shall be the duty of the authorised officer to include, subject to the provisions of sub-section (4-B), such land within the ceiling area of the transfer or the person effecting the partition, as the case may be, as if no such transfer or partition had taken place:

Provided that in respect of the land so included nothing in this sub-section shall affect the rights of the transferee or of the person in whose favour the partition was effected.]

[Inserted by section 3(1)(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Sixth Amendment Act 1972 (Tamil Nadu Act 7 of 1974).]

(4-B) Where the transfer of any land has been declared to be void under section 22 and where the extent of the land so transferred is in excess of the ceiling area of the transferor, the land so transferred shall be included within the ceiling area of the transferor in the following order of preference:-

- (i)
firstly, land transferred to a person who was landless immediately before that date of such transfer and who was not related to the transferor or any member of his family;
- (ii)
secondly, land transferred to a cultivating tenant who was cultivating that land immediately before the date of such transfer;
- (iii)
thirdly, land transferred to a person who was not related to the transferor or any member of his family; and
- (iv)
land transferred to others.

Explanation. - In this sub-section, "landless person" means a person who does not hold any land.

(5)
The draft statement shall be published and a copy thereof shall be served on the persons concerned, the tenants, creditors and all other persons who, in the opinion of the authorised officer, are interested in the land to which such draft statement relates, together with a notice stating that any objection to the draft statement shall be preferred [within thirty days]

[Substituted for the words 'within sixty days ' by section 3(5)(b)(i) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

from the service of such notice. The authorized officer shall duly consider any objection received within the time specified in the said notice from the persons on whom a copy of the draft statement has been served or any objection received [within thirty days]

[Substituted for the words 'within sixty days ' by section 3(5)(b)(i) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

from the date of the publication of the draft statement from any other person. The authorized officer shall, after giving the objector a reasonable opportunity of being heard and of adducing evidence, if any, and, subject to such rules as may be made, pass such order as he deems fit.

[***]

[This proviso was omitted by section 3(5)(b)(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

11.

Authorised Officer to decide question of title in certain cases.

(1)

If while considering the objections received under sub-section (5) of section 10 or otherwise, the authorised officer finds that any question has arisen regarding the title of a person to any land and such question has not already been finally determined by, or is not pending before a competent Court, the Land Tribunal or other authority, the authorised officer may, subject to the provisions of sub-section (2), decide such question summarily in such manner as may be prescribed and may pass such order as he deems fit.

(2)

Where in the opinion of the authorised officer, the decision of a question under sub-section (1) involves a substantial question of law or of fact, he shall, for reasons to be recorded in writing, refer the question to the Land Tribunal.

(3)

The order of the authorised officer under sub-section (1) shall not be subject to any appeal or revision, but any party may, within three months from the date of service of a copy of such order, institute a suit in the Land Tribunal within whose jurisdiction the land or the major part thereof is situated to have the order set aside or modified, but subject to the final result of such suit, if any, the order of the authorised officer shall be final.

12.

Publication of final statement.

- After the disposal of the objections, if any, preferred under sub-section (5) of section 10, and after passing the order, if any, under sub-section (1) of section 11, the authorised officer shall, subject to the provisions of this Act and the rules made thereunder, make necessary alterations in the draft statement in accordance with the order passed on the objections aforesaid and the order, if any, passed under sub-section (1) of section 11, and shall declare the surplus land held by each person. The authorised officer shall, thereafter, publish a final statement specifying therein the entire land held by the person, the land to be retained by him within the ceiling area and the land declared to be surplus land and such other particulars as may be prescribed and cause a copy thereof to be served on the persons referred to in sub-section (5) of section 10. Such a statement shall, subject to the provisions of section 14, be conclusive evidence of the facts stated therein.

13.

Exclusion of certain land from calculation of ceiling area.

(1)

Notwithstanding anything contained in sections 11 and 12, the authorised officer shall, in calculating the extent of land held by any person, exclude-

(i)

the land in respect of which any question of title is pending before a competent Court, or the [Land Tribunal]

[Substituted for the words 'Land Tribunal' by section 3(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1983 (Tamil Nadu Act 3 of 1984).]

[xxx]

[The words 'or the Special Appellate Tribunal' were omitted by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 2003 (Tamil Nadu Act 26 of 2003).]

or other authority; [and]

[Added by section 3(6)(a) of the Tamil Nadu Land Reforms (fixation of Ceiling on Land) Fourth Amendment]

(ii)

[***]

[(Omitted by section 3(6)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972) which was deemed to have come into force on the 1st March 1972).]

(iii)

the land in respect of which the question whether such land could be permitted to be used for the extension or for ancillary purposes, of the plantation in existence [on the date of the commencement of this Act]

[Substituted for the words 'on the 6th day of April 1960' by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling

Land) Third Amendment Act, 1974 (Tamil Nadu Act 30 of 1974).]

in any area [xxx]

[The words 'other than hill areas' were omitted by section 3(7) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

is pending before the Land Board;

and where after such exclusion, the land held by such person is in excess of the ceiling area, he shall declare the land in excess to be surplus land. The land so declared as surplus land shall be incorporated in the final statement published under section 12.

(2)

[***]

[Omitted by section 3(6) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971), which was deemed to come into force on the 1st March 1972.]

14.

Amendment of final statement in certain cases.

(1)

As soon as may be, after the final disposal of the proceeding or suit relating to the question of title of any land excluded under clause (i) of sub-section (1) of section 13, the authorised officer shall-

(i)

amend the final statement published under section 12, or

(ii)

where there is no such final statement, prepare a final statement, if necessary, under section, 12, in accordance with the decision of the Court or the 3 [Land Tribunal [xxx]

[Substituted for the words 'Land Tribunal' by section 3(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1983 (Tamil Nadu Act 3 of 1984).]

] or other authority, as the case may be.

(2)

As soon as may be after the Land Board has decided-

(a)

[***]

[Clause (a) and the word 'or' at the end were omitted by section 3(7) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972) which was deemed to have come into force on the 1st March 1972.]

(b)

under section 31 whether any land excluded under clause (iii) of subsection (1) of section 13 could be permitted to be used for extension, or for ancillary purposes of any plantation, the authorised officer shall-

(i)

amend the final statement published under section 12, or

(ii)

where there is no such final statement prepare a final statement, if necessary under section 12, in accordance with the decision of the Land Board.

(3)

[***]

[Omitted By Section 3(7)(I) Of The Tamil Nadu Land Reforms (Fixation Of Ceiling On Land) Amendment Act, 1971 (Tamil Nadu Act 41 Of 1971).]

(4)

The final statement, amended or prepared under subsection [(1) or (2)]

[This brackets, figures and words were substituted for the brackets figures and words '(1), (2) or (3)' by sub-section 3(7)(ii) by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

shall be published and the authorized officer shall cause a copy of the final statement as so amended or prepared to be served on the persons referred to in subsection (5) of section 10.

15.

Power to rectify bona fide mistakes and clerical errors.

- Notwithstanding anything contained in sections 12 or 14, the authorized officer, may, either of his own motion or on the application of any of the parties,-

(a)

if he is satisfied that a bona fide mistake has been made in regard to any entry in the final statement published under section 12 or 14, make the necessary corrections therein;

(b)

at any time, correct any clerical or arithmetical mistake in regard to any entry in such final statement.

16.

Possession of land held by possessory mortgage to revert to the possessory mortgagor in certain cases.

(1)

Where any land held by any person as possessory mortgagor is in excess of the ceiling area of such person, the possession of the land in such excess shall, with effect from the date of publication of the final statement under section 12 or 14-

(a)

in any case where the total holding of the possessory mortgagor is not in excess of the ceiling area, revert to the possessory mortgagor;

(b)

in any case where the total holding of the possessory mortgagor is in excess of the ceiling area, and where he desires the land mortgaged by him or any part thereof to be included within his ceiling area in the return furnished by him under section 8, revert to him subject to the condition that the land so reverted together with the other land held by him does not exceed the ceiling area.

(2)

Where the possession of the land in excess held by a possessory mortgagee or any part thereof does not revert to the possessory mortgagor under sub-section (1), the Government may acquire such land under section 18.

(3)

(a)

(i)

The possessory mortgagor to whom possession of the land mortgaged revert under sub-section (1), shall pay the mortgage money due to the possessory mortgagee in respect of that land.

(ii)

Where possession of a part only of the land mortgaged reverts to the possessory mortgagor under sub-section (1), the possessory mortgagor shall pay to the possessory mortgage, such amount of the mortgage money as bears to the entire amount of the mortgage money, the same proportion as the value of the part aforesaid on the date of such reversion bears to the value of the entire extent of the land mortgaged on the said date.

(iii)

Where no agreement can be reached in respect of the mortgage money payable under sub-clause (i) or (ii), the authorised officer shall, subject to the provisions of sub-clause (iv) and after making such enquiry as he deems fit, decide amount so payable.

(iv)

Where in the opinion of the authorised officer, the decision of a question under sub-clause (iii) involves a substantial question of law or of fact, he shall, for reasons to be recorded in writing, refer the question to the Land Tribunal.

(b)

The land or any part thereof, the possession of which reverts to the possessory mortgagor under sub-section (1) shall be the security for the payment of the mortgage money.

(c)

The mortgage money referred to in clause (a) shall, for the purpose of Article 132 of the First Division of the First Schedule to the Indian Limitation Act, 1908 [(Central Act IX of 1908)]

[See now the Limitation Act, 1963 (Central Act 36 of 1963).]

, be deemed to have become due with effect from the date of reversion under sub-section (1), and shall carry interest at

the rate of five and a half per cent per annum from the said date.

Explanation. - In this sub-section, "mortgage money" means the money payable in accordance with the provisions of the [Tamil Nadu]

[Substituted for word 'Madras' by The Tamil Nadu Adoptions of Laws order 1969 as amended by the Tamil Nadu Adoptions of Laws (Second Amendment) Order, 1969.]

Agriculturists Relief Act, 1938 ([Tamil Nadu]

[Substituted for word 'Madras' by The Tamil Nadu Adoptions of Laws order 1969 as amended by the Tamil Nadu Adoptions of Laws (Second Amendment) Order, 1969.]

Act IV of 1938).

(4)

Where the possession of any land or any part thereof is likely to revert to the possessory mortgagor under sub-section (1), the authorised diall first fix the ceiling area of the possessory mortgagee.

17.

Possession of land held by tenant to revert to the landowner in certain cases.

(1)

Where any land held by any person as tenant is in excess of the extent of land which he is entitled to hold under section 5, the possession of the land in such excess shall, with effect from the date of the publication of the final statement under section 12 or 14, revert to the landowner where and to the extent to which the land of the landowner himself is not liable to be declared as surplus land in accordance with the provisions of this Act.

(2)

Where in respect of any land, the possession of which reverts to the landowner under sub-section (1), the contract of tenancy provides for the continuance of the tenancy after the expiry of the agricultural year immediately succeeding the date of such reversion, such landowner shall pay [xxx]

[The words 'as compensation' were omitted by section 5(i)(a)(A) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979) which was deemed to have come into force on the 20th April 1972.]

to the tenant an amount equivalent to one-eighth of [the annual value of the land calculated in the manner specified in Part I of Schedule III.]

[Substituted for the words 'the fair rent calculated in the manner specified in paragraph 4 of Part I of Schedule III' by section 7(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979) which was deemed to have come into force on the 27th October 1978.]

Out of [such amount]

[Substituted for the words 'such compensation' by section 5(i)(a)(B) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979) which was deemed to have come into force on the 20th April 1972.]

, three-fourths shall be paid to the cultivating tenant and one-fourth to the intermediary, if any.

(3)

If any dispute arises in regard to the amount [xxx]

[The words 'of compensation' were omitted by section 5(i)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

under sub-section (2), either party may make an application to the authorised officer within whose jurisdiction the land or the major part thereof is situated, for deciding such dispute. The authorised officer shall decide such dispute in accordance with such procedure as may be prescribed.

18.

Acquisition of surplus land.

(1)

After the publication of the final statement under section 12 or 14, the Government shall, subject to the provisions of section 16 and 17, publish a notification to the effect that the surplus land is required for a public purpose.

(2)

As soon as may be after the publication of a notification under sub-section (1), the authorised officer shall-

(a)

cause to be published in every village or town in which any part of the land specified in such notification is situated a proclamation containing the terms of the notification;

(b)

cause a copy of the notification to be served on the persons concerned, the creditors, persons whose names appear in the final statement published under section 12 or 14 and such other persons as may be specified in the rules made by the Government.

(3)

On the publication of the notification under sub-section (1), the land specified in the notification together with the trees standing on such land and building [machinery, plant, apparatus, wells, filter points or power lines]

[Substituted for 'machinery, plant or apparatus' by section 3(8) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

, constructed, erected or fixed on such land and used for agricultural purposes shall, subject to the provisions of this Act, be deemed to have been acquired for a public purpose and vested in the Government free from all encumbrances [with effect from the date of such publication]

[Substituted for the words 'with effect from the date of the commencement of this Act' by section 4(1)(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act 1978 (Tamil Nadu Act 25 of 1978).]

and all right, title and interest of all persons in such land with effect from the said date, be deemed to have been extinguished:

Provided that where there is any crop standing on such land [on the date of such publication]

[Substituted for the words 'on the date of the publication of the notification under sub-section (1)' by section 4(1)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1978 (Tamil Nadu Act 25 of 1978).]

, the authorised officer may, subject to such conditions as may be prescribed, permit the harvest of such crop by the person who had raised such crop.

[(3-A) [***]]

[Omitted by section 4(l)(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1978 (Tamil Nadu Act 25 of 1978).]

(4)

Subject to the rules made under sub-section (5), the authorised officer may, at any time after the publication of the notification under sub-section (1), take possession of any land specified in the said notification.

(5)

The Government may make rules-

(a)

specifying the classes of tenants, who may be allowed to continue in possession of the land;

(b)

permitting any co-operative society registered or deemed to have been registered under the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Co-operative Societies Act, 1932, [[Tamil Nadu]

[Now Tamil Nadu Co-operative Societies Act, 1983 (Tamil Nadu Act 30 of 1983).]

Act VI. of 1932)] or under the Travancore-Cochin Co-operative Societies Act, 1951 (Travancore-Cochin Act X of 1952) or any land mortgage bank to which the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Co-operative Land Mortgage Banks Act, 1934 [(Tamil Nadu Act X of 1934)]

[Now the Tamil Nadu Co-operative Land Development Banks Act, 1934 (Tamil Nadu Act X of 1934).]

applies or any agricultural company to continue in possession of the land notwithstanding anything contained in sections 5 and 7 even after the publication of the notification under sub-section (1). Such rules may also provide for the condition subject to which the person referred to in clause (a) and (b) may continue in possession of land.

18A.

[Direction by Land Commissioner.

[Inserted by section 3(8) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1978

(Tamil Nadu Act 39 of 1972).]

- Where, for any reason, the extent of any land held by any person has not been included in the total extent of the land held by such person for the purposes of this Act, the Land Commissioner may, at any time, direct the authorised officer to include such land in such total extent and the ceiling area shall be calculated or recalculated, as the case may be, in accordance with the provisions of this Act, and accordingly, the provisions of section 9 and the other provisions of this Act shall, as far as may be, apply as if the extent of the land so included were mentioned in the return required to be furnished under section 8.]

18B.

[Power of Government to modify notification under section 18(1) consequent on correction under section 15.

[Inserted by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1974 (Tamil Nadu Act 15 of 1974).]

- Where the authorised officer has made any correction under section 15 in the final statement published under section 12 or 14, the Government may, by notification, make the necessary consequential or incidental modification in the notification published under subsection (1) of section 18.]

18C.

[Power of Government to cancel or modify notification under section 18(1) in certain cases.

[Inserted by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1974 (Tamil Nadu Act 15 of 1974).]

- Where, as a result of any decision in any appeal or revision or other proceeding or in pursuance of a direction under section 18-A, the notification published under sub-section (1) of section 18 requires cancellation or modification, the Government may, by notification, cancel or modify such notification to give effect to such decision and nothing in this section shall be deemed to prevent the issue of a fresh notification by the Government under sub-section (1) of section 18 in accordance with the provisions of this Act.]

18D.

[Land not to have vested in certain cases.

[Inserted by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1974 (Tamil Nadu Act 15 of 1974).]

(1)

Where any notification,-

(a)

is modified under section 18-B or 18-C, as the case maybe, by way of omission (whether relating to extent or survey number or otherwise), the land to which such omission relates, or

(b)

is cancelled under section 18-C, the surplus land specified in such notification, shall be deemed never to have vested in the Government and the authorised officer shall make the necessary consequential modification in [the assessment roll] concerned. Any amount paid [under section 50]

[Substituted-for the words 'by way of compensation' by section 5(ii)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

in respect of such land shall be recovered by the Government as if it were an arrear of land revenue.

(2)

The land referred to in sub-section (1) shall stand reverted with effect from the date of the publication of the notification effecting the modification or cancellation, as the case may be, to the person lawfully entitled to such land and any assignment of such land by the Government to any person prior to such date shall be deemed to have been cancelled. No claim shall be enforceable in respect of such land against the Government or any person deriving rights from them, for the period from the date of the vesting of such land in the Government and ending with the date of reversion under this sub-section.]

18E.

[Vesting of land newly included.

[Inserted by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1974 (Tamil Nadu Act 16 of 1974).]

- Where any notification is modified under section 18-B or 18-C byway of inclusion, the land to which such inclusion

relates shall be deemed to have vested in the Government as if such land were included in a notification issued under sub-section (1) of section 18 and accordingly, the provisions of this Act shall apply to the land so vested.]

18F.

[[Amount payable by]

[Inserted by section 4(2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1978 (Tamil Nadu Act 25 of 1978).]

persons in possession of the property vested in the Government.

(1)

Every person who, after the date of vesting of the property in the Government under sub-section (3) of section 18, is in possession of, or deriving any benefit from, such property, shall be liable to pay to the Government for the period for which he is in such possession or deriving such benefit after such vesting, an amount [xxx]

[The words 'as compensation ' were, omitted by section 5(iii)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

for the use, occupation or enjoyment of that property as the authorised officer may fix in the prescribed manner. Such officer shall take in to consideration such factors as may be prescribed.

(2)

Any amount payable to the Government under sub-section (1) shall be recoverable as arrears of land revenue.]

Chapter III

Ceiling on future Acquisition and Restriction on Certain Transfers

19.

Declaration to be made before the registering authority in certain cases.

(1)

On and after the notified date, no document relating to any transfer of land either by sale, gift, exchange, lease, [possessory mortgage]

[Substituted for the word 'mortgage' by section 3 of the. Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1965 (Tamil Nadu Act 10 of 1965) which deemed to have come into force on the 2nd May 1962.]

, surrender, agreement, settlement, or otherwise, shall be registered unless a declaration in writing in made in duplicate in such form as may be prescribed and filed by the transferee before the registering authority under the Indian Registration Act, 1908 [(Central Act XVI of 1908)]

[Now Registration Act, 1908 (Central Act XVI of 1908).]

, as to the total extent of land held by him.

(2)

The registering authority referred to in sub-section (1) shall forward within such time and in such manner as may be prescribed, one copy of the declaration referred to in sub-section (1) to the authorised officer, within whose jurisdiction the land which is the subject-matter of the transfer or the major part thereof is situated.

(3)

On receipt of the copy of the declaration under sub-section (2), the authorised officer may obtain such information as may be necessary and take such action as he deems fit in accordance with the provisions of this Act, and in accordance with such rules as may be made in this behalf.

20.

Penalty for future acquisition in contravention of section 7.

(1)

If, as a result of any transfer of land either by sale, gift (other than gift made in contemplation of death), exchange, surrender, agreement, settlement or otherwise effected on or after the notified date, the extent of land held by the transferee exceeds the ceiling area, then, the right, title or interest accrued, in his favour by virtue of such transfer in the land in excess of the ceiling area shall, as a penalty for contravention of the provisions of section 7, be deemed to have been transferred to the Government with effect from the date of such transfer, on a declaration made by the authorised officer within whose jurisdiction such excess land or the major part thereof is situated. The authorised officer shall record in writing the reasons for such declaration:

Provided that-

(a)

no such declaration shall be made unless the transferor and the transferee have been given a reasonable opportunity of being heard and of adducing evidence, if any,

(b)

the transferee shall be liable for payment of the consideration for, and to discharge other liabilities under, such transaction and the transferor shall have no claim for such consideration against the Government, otherwise than in respect of such land,

(c)

no suit or other proceeding by the transferee shall lie in any court for the refund of the consideration for any such transaction.

Explanation. - For the purpose of this sub-section, "transfer" does not include inheritance, bequest, lease or possessory mortgage.

(2)

The Government may make rules providing for the manner in which any right, title or interest transferred to the Government under sub-section (1) shall be disposed of.

20A.

[Penalty for future acquisition in contravention of certain provision.

[Inserted by section 3(7) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972(Tamil Nadu Act 37 of 1972).]

(1)

Any acquisition of any land made in contravention of the provisions of sub-section (2) of section 2, of sub-clause (ii) of clause (c) of sub-section (1), sub-clause (ii) of clause (d) of sub-section (1), clause (b) of sub-section (3-B); and of subsection (3-C) of section 5, shall be null and void and any land which is so acquired shall, as a penalty for such contravention, be deemed to have been transferred to the Government with effect from the date of such acquisition on a declaration made by the authorised officer within whose jurisdiction such land or the major part thereof is situated. The authorised officer shall record in writing the reasons for such declaration: Provided that-

(a)

no such declaration shall be made unless the transferor and the transferee have been given a reasonable opportunity of being heard and of adducing evidence, if any,

(b)

the transferee shall be liable for the payment of the consideration for, and to discharge other liabilities under such transaction and the transferor shall have no claim for such consideration against the Government, otherwise than in respect of such land,

(c)

no suit or other proceeding by the transferee shall lie in any Court for the refund of the consideration for any such transaction.

(2)

The Government may make rules providing for the manner in which any right, title or interest transferred to the Government under sub-section (1) shall be disposed of.]

21.

Ceiling on future acquisition by inheritance, bequest or by sale in execution of decree, etc..

(1)

If, on or after the date of the commencement of this Act-

(a)

any person acquires by inheritance or bequest from any person;

(b)

and before the notified date, any person acquires by sale in execution of a decree or order of a Civil Court or of an award or order of any other lawful authority;

any land, which, together with the land, if any, already held by him, exceeds in the aggregate the ceiling area, then, he shall, within ninety days from the notified date or from the date of such acquisition, whichever is later, furnish to the authorised officer within whose jurisdiction his holding or the major part thereof is situated, a return containing the following particulars, namely:-

- (i)
particulars of the land already held by him and those of the land so acquired;
- (ii)
particulars of the land which he desires to retain within the ceiling area;
- (iii)
particulars of the date of the acquisition;
- (iv)
particulars of the manner of acquisition and of the documents, if any, in which such acquisition was made;
- (v)
the name and description of the person who held the land immediately before the date of acquisition;
- (vi)
particulars of the land held by tenant, if any, and the name and address of such tenant; and
- (vii)
such other particulars as may be prescribed.

Explanation. - In this sub-section, request shall include gift made in contemplation of death.

[***]

[Explanation II was omitted by section 2(6)(a) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970) which was deemed to come into force on the 15th February 1970.]

(2)
If, as a result of marriage or adoption on or after the date of the commencement of this Act, the extent of land held by any person exceeds in the aggregate the ceiling area, then, he shall, within ninety days from the notified date or from the date of marriage or adoption, as the case may be, whichever date is later, furnish to the authorised officer within whose jurisdiction his holding or the major part thereof situated, a return containing the following particulars, namely:-

- (i)
particulars of the land held before the date of the marriage or adoption;
- (ii)
particulars of the land held after the date of marriage or adoption; and
- (iii)
such other particulars as may be prescribed.

[Explanation was omitted by section 2(6)(b) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

[This Explanation was omitted by section 2(6)(b) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970).]

(3)
If he furnishes the return or fails to furnish the return or furnishes an incorrect or incomplete return within the period specified in sub-section (1) or sub-section (2), the provisions of section 9 and other provisions of this Act shall, as far as may be, apply as if it were a return required to be furnished under section 8.

21A.

[Certain portions and transfers to be valid.

[Inserted by section 2(7) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) 1970 Tamil Nadu Act 17 of 1970).]

- Notwithstanding anything contained in section 22 or in any other provision of this Act and in any other law for the time being in force, where, [after the 15th day of February 1970, but before the 2nd day of October 1970]-

- (a)
any person has effected by means of a registered instrument a partition of his holding or part thereof; or
- (b)
any parent or grand-parent has voluntarily transferred any land on account of natural love and affection to any minor son, unmarried daughter minor grand-son, or unmarried grand-daughter in the male line; or
- (c)
any person has voluntarily transferred any land-
- (i)

to any educational institution; or

(ii)

hospital,

of a public nature solely for the purposes of such institution or hospital; such partition or transfer shall be valid:

Provided that in the case of transfer to such educational institutions or hospital, the land transferred absolutely vests in the institutions or hospital and the entire income from such land is appropriated for the institution or hospital.]

22.

[Transfer or partition]

[The words 'or partition' were omitted by section 2(8)(a) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970) and these words were substituted for the word 'Transfer' by section 4(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Sixth Amendment Act, 1972 (Tamil Nadu Act 7 of 1974).]

made on or after the date of the commencement of this Act, but before the notified date.

(1)

Where, on and after the date of the commencement of this Act, but before the notified date, any person has transferred any land held by sale, gift (other than gift made in contemplation of death), exchange, surrender, settlement or in any other manner whatsoever except by request [or has effected a partition of his holding or part thereof]

[The words 'or has effected a partition of his holding or part thereof omitted by section 2(8)(b) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1979) which was deemed to have come into force on the 15th February 1970, and again inserted by section 4(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Sixth Amendment Act, 1972 (Tamil Nadu Act 7 of 1974) which was deemed to have come into force on the 2nd October 1970.]

, the authorised officer with in whose jurisdiction such land, holding or the major part thereof situated may after notice to such person and other persons affected by such transfer [or partition]

[The words 'or partition' were omitted by section 2(8)(a) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970) and these words were substituted for the word 'Transfer' by section 4(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Sixth Amendment Act, 1972 (Tamil Nadu Act 7 of 1974).]

and after such enquiry as he thinks fit to make [declare the transfer or partition to be void if he finds that the transfer or the partition, as the case may be]

[Substituted for the words 'declare the transfer to be void if he finds that the transfer' by section 4(d) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Sixth Amendment Act, 1972 (Tamil Nadu Act 7 of 1974).]

, defeats any of the provisions of this Act.

(2)

For the purpose of sub-section (1), if any transfer or partition has the effect of reducing the extent of surplus land in excess of the ceiling area, such transfer or partition, whether bona fide or not, shall be construed as defeating the provisions of this Act.

23.

[Transfer or sub-division made or effected before the publication of notification under sub-section (1) of section 18.

[Substituted for the original section by section 3 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1974 (Tamil Nadu Act 32 of 1974).]

(1)

Subject to the provisions of section 20, for the purpose of fixing, for the first time [after the date of the commencement of this Act], the ceiling area of any person holding land on the date of the commencement of this Act in excess of [15 standard acres]

[Inserted by section 2(9)(a) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1979).]

-

(a)

any transfer, whether by sale (including sale in execution of a decree or order of a Civil Court or of an award or order of any other lawful authority) or by gift (other than gift made in contemplation of death), exchange, surrender, settlement or otherwise; or

(b)

any sub-division (including sub-division by a decree or order of a Civil Court or any other lawful authority) whether by partition or otherwise;

effected on or after the notified date and before the publication of a notification under sub-section (1) of section 18 shall be, and shall be deemed always to have been, void and accordingly the authorised officer shall calculate the ceiling area of such person as if no such transfer or sub-division had taken place.

Explanation. - This sub-section shall, on and from the 15th day of February 1970, have effect as if for the figures and words "30 standard acres", the figures and words "15 standard acres" had been substituted.

(2)

It shall be the duty of the authorised officer to include the land so transferred or sub-divided, within the ceiling area of the transferor or the person who held the land immediately before such sub-division, as the case may be, as if no such transfer or sub-division had taken place.]

Chapter IV

Constitution of the Land Board

24.

Constitution of the Land Board.

- [(1) The Government may constitute for the State a Board called the [Tamil Nadu Land Board]

[By virtue of section 6 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972) on and from the date of publication of the said Act, the Land Board existing on that date stood abolished, the members thereof ceased to hold office as such and the consequences specified in the said section followed.]

].

(2)

The Land Board shall consist of-

[***]

[Clause (a) was omitted by section 2(l)(a)(i) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1983 (Tamil Nadu Act 2 of 1984).]

(b)

the Land Commissioner, ex-officio;

(c)

[The Chief Conservator of Forests, ex-officio;] [[Substituted for the original clauses (c) and (d) by section 3(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) 4th Amendment Act, 1972 (Tamil Nadu Act 39 of 1972). Before its substitution, clauses (c) and (d) read as follows:

'(c) the Director of Animal Husbandry, ex-officio;

(d)

two members nominated by the Government.]]

(cc)

[The Director of Land Reforms, ex-officio.]

[Substituted by section 2(1)(a)(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) 4th Amendment Act, 1972 (Tamil Nadu Act 39 of 1972). Before its substitution, clauses (c) and (d) read as follows:]

(3)

The member referred to in [clause (b)]

[Substituted for 'clause (a)' by section 2(1)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1983 (Tamil Nadu Act 2 of 1984).]

of sub-section (2) shall be the Chairman of the Land Board. The Secretary to the Land Board shall be a Gazetted Officer nominated by the Government, but he shall not be entitled to vote.

(4)

(a)

The term of office of a member referred to in clause [(d)]

[Substituted for 'clause (a) or (d)' by section 2(1)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1983 (Tamil Nadu Act 2 of 1984).]

of sub-section (2) shall be three years or such shorter period as the Government may fix and such member shall be

eligible for re-nomination.

(b)

Any member referred to in clause [(d)]

[Substituted for 'clause (a) or (d)' by section 2(1)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1983 (Tamil Nadu Act 2 of 1984).]

of sub-section (2) shall be deemed to have vacated his seat if he absents himself without excuse, sufficient in the opinion of the Land Board, from the meetings of the Land Board, for a period of three consecutive months reckoned from the date of the commencement of his term of office or of the last meeting which he attended, as the case may be, or if, within the said period less than three meetings have been held, absents himself from three consecutive meetings held after the said date:

Provided that no meeting from which a member absents himself shall be counted against him under this clause if due notice of that meeting was not given to him.

(5)

A member referred to in clause (a) of sub-section (2) may, at any time by notice in writing to the Government, and a member referred to in clause (d) of that sub-section may, at any time, by notice in writing to the Chairman, resign his office, but he shall continue in office until the nomination of his successor.

(6)

(a)

A casual vacancy in the office of a member referred to in clause (a) or (d) of sub-section (2) shall be filled by fresh nomination.

(b)

The person nominated to fill a casual vacancy under clause (a) shall hold office for a period of three years or for such shorter period as the Government may fix and he shall be eligible for re-nomination.

(d)

two members nominated by the Government."

25.

Functions of the Land Board.

- The Land Board shall perform such functions as are assigned to it by or under this Act.

[26 to 29.

[Omitted by section 3(10) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

[***]

30.

Application to the Land Board for future acquisition of land interspersed among or continuous to any plantation.

- Any owner of plantation in existence [on the date of the commencement of this Act]

[Substituted for 'on the 6th day of April 1960' by section 1 of the Tamil Nadu Land Reforms (Fixation of Ceiling) on Land) Third Amendment Act, 1974 (Tamil Nadu Act 30 of 1974).]

in any area [xxx]

[The words 'other than hill areas ' were omitted by section 3(8) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972) which was deemed to have come into force on the 1st March 1972.]

desiring to acquire in excess of the ceiling area land which is interspersed among plantations or is contiguous to any plantation and which may be required for the extension, or for ancillary purposes, of the plantation shall make an application to the Land Board for permission to acquire such land. Every such application shall be in writing and shall contain-

(a)

the extent and other particulars of the land proposed to be acquired and those of the land, if any, held by the applicant;

(b)

such other particulars as may be prescribed.

31.

Decision of the Land Board in respect of land interspred among or contiguous to any plantation.

- On receipt of a copy of the return, additional particulars or information, as the case may be, forwarded by the authorised officer under clause (a) of sub-section (3) of section 9 or on receipt of the application under section 30, the Land Board shall, after making such enquiry and inspection of the land and the plantation specified in the application as it deems fit and after satisfying itself that the land in respect of which permission is required is necessary for the extension, or for ancillary purposes, of the plantation, grant the permission for the whole or part of such land and subject to such conditions as it deems fit, or refuse to grant such permission:

Provided that the extent of land which is contiguous to any plantation and in respect of which land permission is granted under this section shall in no case exceed twenty per centum of the total extent of such plantation.

32.

Matters to be considered by the Land Board in granting or refusing permission under section 31.

- The Land Board shall, in deciding whether to grant or refuse permission under section 31, take into consideration, the following matters, namely:-

(i)

area under plantation and area required for ancillary purposes of the plantation;

(ii)

programme for extension of the plantation;

(iii)

lands necessary for factories, labour quarters, playgrounds, hospitals, schools and other ancillary buildings; and

(iv)

such other matters as may be prescribed.

33.

Cancellation of permission granted under section 31.

- The Land Board may cancel the permission granted under section 31-

(a)

on the breach of any condition specified by the Land Board under section 31, or

(b)

if the land in respect of which the permission was granted is used for any purpose other than for the purpose of extension, or for ancillary purposes, of the plantation, or

(c)

if the person concerned has obtained the permission by fraud or misrepresentation:

Provided that no such permission shall be cancelled unless a reasonable opportunity has been given to the person likely to be affected by such cancellation, to show cause against such cancellation.

34.

Decision of the Land Board to be final.

- The decision of the Land Board granting or refusing permission under [section 31]

[Substituted for the words and figures 'section 27 or 31' and 'section 29 or 33' respectively by section 3(11) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972) which was deemed to have come into force on the 1st March 1972.]

or cancelling permission under [section 33]

[Substituted for Tamil Nadu Act 39 of 1972 which was deemed to have come into force on the 1st March 1972.]

shall be final and shall not be called in question in any Court.

35.

Meetings of the Land board.

(1)

The Land Board shall meet at such times and the places and shall observe such rules of procedure in regard to the transaction of business at its meetings as may be prescribed.

(2)

The Chairman, or in his absence, such member as may be chosen by the members present from among themselves shall preside at a meeting of the Land Board.

(3)

No member of the Land Board shall vote on, or take part in, the discussion of any question coming up for consideration

at a meeting of the Land Board, if the question is one in which he is directly or indirectly interested.

(4)

All questions at a meeting of the Land Board shall be decided by a majority of the votes of the members present and voting and in the case of an equality of votes, the Chairman or in his absence, the member presiding shall have a second or casting vote.

(5)

All communications and orders of the Land Board shall be issued by the Secretary or by such officer subordinate to him as may be authorised by the Land Board in this behalf.

36.

Power of Land Board to rectify bona fide mistakes and clerical errors.

- The Land Board may, either of its own motion or on the application of any of the parties-

(a)

if it is satisfied that a bona fide mistake has been made in regard to any decision, make the necessary correction therein;

(b)

at any time, correct any clerical or arithmetical mistake in its decision.

37.

Act of Land Board not to be invalidated by informality.

- No act of the Land Board shall be deemed to be invalid by reason only of a defect in its constitution or on the ground that the Chairman or any member had ceased to hold his office or by reason of such act having been done during the period of any vacancy in the office of the Chairman or any member of the Land Board.

Chapter IV

A Permission by Government to Hold Excess Land by Industrial or Commercial Undertakings

37A.

Industrial or commercial undertaking to apply to Government for permission to hold excess land.

- [(1) If any industrial or commercial undertaking desires to acquire any land in excess of the ceiling area or desires to hold land acquired in excess of the ceiling area, it shall make an application to the Government for permission to acquire such land or for permission to hold such acquired land as the case may be. Every such application shall be in writing and contain such particulars as may be prescribed:

Provided that an application for permission to hold such acquired land shall be made within such period as may be prescribed.]

[Substituted by Act No. 23 of 2010, dated 6.6.2010, w.e.f. 1.3.1972.]

Explanation. - In this section, "industrial or commercial undertaking" means any industrial or commercial undertaking (other than a co-operative society) which bona fide carries on any industrial or commercial operation.

(2)

The Government may grant the permission for the whole or part of the land specified in the application, subject to such conditions as they deem fit or refuse to grant such permission. The order granting such permission shall contain the particulars of the land in respect of which such permission is granted.

(3)

The Government shall, in deciding whether to grant or refuse the permission under sub-section (2), take into consideration the following factors, namely:-

(a)

the nature of the industrial or commercial operation;

(b)

whether the excess land is required for immediate use or use in future; and

(c)

such other particulars as may be prescribed.

(4)

Notwithstanding anything contained in this Act, no industrial or commercial undertaking which has been approved by the Government under clause (iv) of section 73 before the date of the publication of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act 1972 (Tamil Nadu Act 20 of 1972) in the Tamil Nadu Government Gazette, shall be entitled to hold or acquire land in excess of the ceiling area unless such industrial or commercial undertaking

has obtained the permission of the Government under this section in respect of such excess land.

(5)

The Government may cancel the permission in respect of any land granted under this section on the breach of any condition specified by the Government.

37B.

[Public trust to apply to Government for permission to hold or acquire land for educational or hospital purposes.

[This section was inserted by section 4(2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1961 (Tamil Nadu Act 29 of 1987).]

- [(1) Notwithstanding anything contained in this Act, but subject to the provisions of section 73:-

(a)

If any public trust created before the 1st March 1972 desires to acquire any land in excess of the ceiling area or desires to hold land acquired in excess of the ceiling area; and

(b)

If any public trust created after the 1st March 1972 desires to acquire any land or desires to hold land acquired, for the purpose of,-

(i)

establishing any educational institution or hospital; or

(ii)

expanding any existing educational institution or hospital by way of addition to, alteration of, or improvement to, any educational institution or hospital,

It shall make an application to the Government, for permission to acquire such land or for permission to hold such acquired land, as the case may be. Every such application shall be in writing and shall contain such particulars as may be prescribed:

Provided that an application for permission to hold such acquired land shall be made within such period as may be prescribed,.]

[Explanation.

[This Explanation was substituted by section 4(1)(b)(hi) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1961 (Tamil Nadu Act 29 of 1987).]

- In this section,-]

(A)

"educational institution" means any college (including engineering or medical or agricultural or veterinary college) or any school or other equivalent institution or any polytechnic institution;

(B)

"hospital" means any place for the reception and treatment of persons suffering from illness or injury and include any maternity home, asylum, infirmary, lying-in-hospital or any place for the reception and treatment of persons during convalescence, but does not include a dispensary.

(2)

The Government may grant the permission [prospectively]

[This word was substituted by section 4(1)(c)]

for the whole or part of the land specified in the application, subject to such conditions as they deem deem fit, or refuse to grant such permission. The order granting such permission shall contain the particulars of the land in respect of which such permission is granted.

(3)

The Government shall, in deciding whether to grant or refuse the permission under sub-section (2), take into consideration, the following factors, namely:-

(a)

the purposes and objectives of the public trust [xxx]

[These words were omitted for the words 'or educational institution or hospital as the case may be ' by section 4(1)(d) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Lind) Amendment Act, 1961 (Tamil Nadu Act 29 of 1987).]

;

(b)

whether the land is required for immediate use or use in future; and

(c)

such other particulars as may be prescribed.

(4)

The Government may cancel the permission in respect of any land granted under this section on the breach of any condition specified by the Government.]

Chapter V

[38 to 49.

[Sections 38 to 49 under Chapter V were Omitted by section 3(9) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

[***]

Chapter VI

[Amount Payable for Land Acquired]

[The additional assessment, additional water-cess or surcharge payable under the Tamil Nadu Additional Assessment and Additional Water-cess Act, 1963 (Tamil Nadu Act 8 of 1963) or the Tamil Nadu Land Revenue and Water-cess (Surcharge) Act, 1965 (Tamil Nadu Act 34 of 1965, as the case may be, shall not deemed to be land revenue for the purpose of calculating standard acre under the Tamil Nadu Act

58 of 1961

. Please see section 17(ii) of the Tamil Nadu Act 8 of 1963 and section 15(vi) of the Tamil Nadu Act 34 of 1965.]

50.

Determination of This heading was [amount]

[substituted for the heading 'Compensation 'by section 5(iv) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

for land acquired by the Government.

(1)

Every person whose right, title or interest in any land is acquired by the Government under Chapter II shall be paid [an amount]

[Substituted for the word 'compensation' by section 5(1)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

according to the rate specified in Schedule III [as in force on the date of acquisition of such right, title or interest in any such land]

[Substituted for the word 'compensation' by section 5(1)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

.

[Explanation. - It is hereby declared that for the purposes of this sub-section "person" shall include family and that where any right, title or interest in any land held by a family or deemed to be held by a family under sub-section (2) of section 5, is acquired by the Government under Chapter II, the amount payable under this sub-section shall be determined in respect of the whole of such right, title or interest of the family in such land as a unit, whether such right, title or interest is held individually or jointly by some or all of the members of that family.]

[This Explanation was added by section 4 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

(2)

Any person claiming any [amount]

[Substituted for the word 'compensation' by section 5(v)(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

under sub-section (1) may, [within thirty days]

[Substituted for the words 'within sixty days ' by section 3(12)(i)(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) 4th Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

from the date of the publication of the notification under sub-section (1) of section 18 [xxx]

[The words 'or within such further time not exceeding thirty days as the authorised officer may in his discretion allow' were omitted by section 3(12)(i)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) 4th Amendment Act,

1972 (Tamil Nadu Act 39 of 1972).]

, prefer the claim before the authorised officer in such form and containing such particulars as may be prescribed.

(3)

(a)

The authorised officer shall determine the amount [xxx]

[The words 'of compensation ' were omitted by section 5(v)(d)(A) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

at the rate specified in Schedule III, and prepare [a draft assessment roll]

[Substituted for the words 'a draft compensation assessment roll' by section 5(v)(d)(B) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

in such manner and containing such particulars as may be prescribed. He shall cause it to be published together with-

(i)

a statement that the amount [xxx]

[The words 'of compensation' were omitted by section 5(v)(d)(A) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

specified therein is the entire amount [xxx]

[The words 'of compensation' were omitted by section 5(v)(d)(A) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

payable for all interests in the land and that subject to the other provisions of this Act, the persons named therein are the only persons who are entitled thereto in the proportion stated therein, and

(ii)

a notice stating that objections, if any, in respect of any entry in the draft may be preferred by any person in such manner as may be prescribed [within thirty days]

[Substituted for the words 'within sixty days', by section 3(12)(ii)(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act

30 of 1972

).]

from the date of the publication.

[***]

[Proviso was omitted by section 3(12)(ii)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972)]

(b)

The authorised officer shall cause to be served on the persons whose names appear in the draft aforesaid a copy of the draft together with a copy of the said statement and of the said notice.

(4)

The authorised officer shall consider any objection which may be preferred under sub-section (3) and after giving the parties a reasonable opportunity of being heard and of adducing evidence, if any, pass such order as he thinks fit and record the reasons therefor.

(5)

When such objection, if any, in regard thereto has been finally disposed of, the authorised officer shall make such alteration in [the draft assessment roll]

[Substituted for the word 'the draft compensation assessment roll' by section 5(v)(e) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

as may be necessary to give effect to any order made in regard to the objection and shall cause the draft so altered to be published finally in such manner as may be prescribed.

(6)

If no objection is preferred within the period specified in the notice published under sub-section (3), [xxx]

[The words 'or within the further time allowed by the authorised officer that sub-section' were omitted by section 7(2)(i) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

the authorised officer shall cause '[the draft assessment roll] to be published finally in such manner as may be prescribed.

(7)

Every entry in the [xxx]

[The word 'compensation' was omitted by section 5(v)(f)(A) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

assessment roll published finally under sub-section (5) or sub-section (6) shall, except as provided in this Act, be final and conclusive evidence of-

(a)

the matters referred to therein;

(b)

the nature of the interest of the persons name therein; and

(c)

the apportionment of the [amount]

[The word substituted for the word 'compensation' by section 5(v)(f)(B) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

among the persons claiming interest in the [amount]

[The word substituted for the word 'compensation' by section 5(v)(f)(B) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

.

(8)

When the [xxx]

[The word 'compensation ' was omitted by section 5(v)(g) of the Tamil Nadu Land Reforms Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

assessment roll has been published finally under sub-section (5) or sub-section (6), the authorised officer shall, within such time as may be prescribed, endorse a certificate thereon stating the date of the final publication thereof and shall date and subscribe the same with his name and official designation and such certificate shall be conclusive proof of such publication and the date of such publication.

(9)

The authorised officer may, if he is satisfied either of his own motion or on the application of any of the parties that a bona fide mistake has been made in regard to any entry in the [draft assessment roll or in the]

[Inserted by section 7(2)(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

[xxx]

[The word 'compensation ' was omitted by section 5(v)(g) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

assessment roll as published finally, make necessary correction therein and on such correction being made, the provisions of sub-sections (3) to (8) shall, as far as may be, apply thereto.

(10)

Notwithstanding anything contained in sub-section (9), the authorised officer may at any time correct either of his own motion or on the application of any of the parties any clerical or arithmetical mistake in regard to any entry in the [draft assessment roll or in the]

[The word 'compensation ' was omitted by section 5(v)(g) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

assessment roll as published finally.

51.

Claims of mortgages or charge holder on surplus land.

(1)

Where any surplus land acquired under the provisions of this Act is subject to a mortgage or charge subsisting on the date of the acquisition, the mortgagee or the charge holder shall, where the amount due to him or part thereof can be fixed by agreement, be paid such amount or part. Where no such agreement can be reached, the mortgagee or the charge holder shall [within sixty days]

[Substituted for the words 'within ninety days' by section 3(13) of the Tamil Nadu Land Reforms (Fixation of Ceiling on

Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

from the date of the acquisition, prefer a claim in such manner as maybe prescribed before the authorised officer who shall, subject to the provisions of sub-section (3), decide the claim in such manner as may be prescribed and record the reasons for the decision.

(2)

Where there are more claimants than one, the authorised officer shall settle the order in which each claimant is entitled to receive the amount due to him and, in doing so, he shall be guided by the appropriate provisions of the Transfer or Property Act, 1882 (Central Act IV of 1882).

(3)

Where, in the opinion of the authorised officer, the decision of a claim under sub-section (1) or sub-section (2) involves a substantial question of law or of fact, he shall, for reasons to be recorded in writing, refer the claim to the Land Tribunal for decision.

(4)

If the amount of claim allowed to the mortgage or the charge holder by the authorised officer exceeds [the amount payable under section 50, the entire amount payable under the said section 50]

[Substituted for 'the amount of compensation payable under section 50, the entire amount of such compensation' by section 5(vi) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

shall be paid to the mortgagee or the charge holder, as the case may be, and the balance may be recovered by the mortgagee or the charge holder in accordance with law for the time being in force.

52.

Claims of limited owner on surplus land.

(1)

Where any surplus land acquired under the provisions of this Act is held by a limited owner on the date of the acquisition, the amount [xxx]

[The words 'of compensation' were omitted by section 5(vii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

so payable in respect of such surplus land under section 50 shall, subject to such conditions as may be prescribed, be kept in deposit before such authority as maybe prescribed. The authorised officer shall direct payment of the interest accruing from the amount [xxx]

[The words 'of compensation' were omitted by section 5(vii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

so deposited to the person or persons who would, for the time being, have been entitled to the possession of the said land:

Provided that where the limited owner has created an encumbrance over the surplus land referred to in this section, the whole or any portion of the interest aforesaid shall be paid to the encumbrancer, to the extent to which the encumbrancer is entitled and the balance shall be paid to the person or persons who would, for the time being, have been entitled to the possession of the said land.

(2)

The amount [xxx]

[The words 'of compensation' were omitted by section 5(vii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

referred to in sub-section (1) shall remain so deposited until the same is paid to any person or persons becoming absolutely entitled thereto.

53.

Claims of maintenance holder on surplus land.

- Where any surplus land acquired under the provisions of this Act is on the date of the acquisition subject to a charge for payment of maintenance to another, the amount [xxx]

[Substituted for 'the amount of compensation payable under section 50, the entire amount of such compensation' by section 5(vi) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

payable in respect of such surplus land under section 50 shall, subject to such conditions as may be prescribed, be kept in deposit before such authority as may be prescribed. Such amount [xxx]

[Substituted for 'the amount of compensation payable under section 50, the entire amount of such compensation' by section 5(vi) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

shall be deemed to be substituted security and shall continue to remain such security till the death of the maintenance holder or till the right to receive maintenance ceases to exist or till the liability to pay maintenance is discharged.

54.

[Amount payable]

[Substituted for the word 'compensation' by section 5(viii)(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

to certain tenants.

(1)

Where the contract of tenancy provides for the continuance of the tenancy in respect of any surplus land that vests in the Government under section 18, after the expiry of the agricultural year immediately succeeding the date of such vesting, the tenant shall be entitled to [an amount]

[Substituted for the word 'compensation' by section 5(v)(b)(A) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

as specified in Schedule IV:

Provided that such tenant shall not be entitled to any [amount]

[Substituted for the word 'compensation' by section 5(viii)(b)(B) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979)]

in respect of such surplus land also under sub-section (1) of section 50.

(2)

The [amount]

[Substituted for the word 'compensation' by section 5(viii)(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

referred to in sub-section (1) shall be apportioned between the cultivating tenant and the intermediary concerned in the manner specified in Schedule IV.

55.

Mode of payment of [amount]

[Substituted for the word 'compensation' by section 5(ix)(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

.

(1)

[The amount payable under section 50]

[Substituted for 'The amount of compensation' by sections 5(ix)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

as finally determined under this Act shall, within such period as may be prescribed, be paid either in cash or in bonds or partly in cash and partly in bonds as the Government may deem fit.

(2)

The bonds shall be issued on such terms and carry such rate of interest as may be prescribed. The interest shall be paid-

(i)

in the case of any land held by any person referred to in clause (a) or (b) of sub-section (5) of section 18 with effect from the date of the publication of the notification under sub-section (1) of section 18; and

(ii)

in any other case, with effect from the date of taking possession of the land under sub-section (4) of section 18.

Chapter VII

Survey and Settlement of Land in the Transferred Territory

56.

Survey of lands in the transferred territory.

(1)

Every land in the transferred territory or part thereof shall, if such land or part thereof has not been surveyed in accordance with the provisions contained in the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Survey and Boundaries Act, 1923 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act VIII of 1923), be surveyed in accordance with the provisions of that Act [xxx]

[The words 'within a period of three years from the date of the publication of this Act' were omitted by section 5 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1965 (Tamil Nadu Act 10 of 1965).]

.

(2)

The cost of the survey, except so much as is payable under the provisions of section 8 of the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Survey and Boundaries Act, 1923 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act VIII of 1923), shall be borne by the Government.

57.

Manner of effecting ryotwari settlement.

(1)

The Settlement Officer shall effect [xxx]

[The words 'within a period of three years from the date of the publication of this Act' were omitted by section 5 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1965 (Tamil Nadu Act 10 of 1965).]

ryotwari settlement of every land in the transferred territory or part thereof in accordance with a settlement notification framed and published by the Government for the purpose.

(2)

The said notification shall embody the principles adopted in making ryotwari settlements in ryotwari areas, and shall adopt-

(a)

the rates of assessment set out in the settlement notification in force on such date and in such district as may be specified by the Government;

(b)

if more than one such notification is in force in that district, the rates set out in one of those notifications which the Government consider to be the most appropriate to the case.

(3)

Neither the settlement notification nor any order passed in pursuance thereof shall be liable to be questioned in any Court of law.

(4)

For the removal of doubts, it is hereby declared that nothing in this section shall be construed to be in derogation of any law relating to the levy of tax on land in force in the transferred territory.

58.

Appointment and functions of Settlement Officer.

(1)

As soon as may be, after the date of the publication of this Act, the Government shall appoint one or more Settlement Officers to carry out the functions and duties assigned to them by or under this Chapter.

(2)

Every Settlement Officer shall be subordinate to the Land Commissioner and shall be guided by such lawful instructions

as he may issue, from time to time, and the Land Commissioner shall also have power to cancel or revise any of the orders, acts or proceedings of the Settlement Officer.

58A.

[Ryotwari settlement to be effected under [Tamil Nadu Act]

[Inserted by section 6 of the Tamil Nadu land Reforms (Fixation of Ceiling on Land) Amendment Act, 1965 (Tamil Nadu Act 10 of 1965).]

30 of 1964 in certain cases.

(1)

Notwithstanding anything contained in this Chapter, the provisions of sections 56 to 58 shall cease to apply to every land in the transferred territory (other than the Sreepadam land belonging to the Sreepadam Palace) and in respect of such land survey shall be made and ryotwari settlement shall be effected in accordance with the provisions of the [Tamil Nadu]

[Substituted for 'Madras' by the Tamil Nadu Adaptation of laws order, 1965 as amended by the Tamil Nadu Adaptation of laws (Second Amendment) Order, 1969.]

(Transferred Territory) Ryotwari Settlement Act, 1964 ([Tamil Nadu]

[Substituted for 'Madras' by the Tamil Nadu Adaptation of laws order, 1965 as amended by the Tamil Nadu Adaptation of laws (Second Amendment) Order, 1969.]

Act 30 of 1964) and for the purposes of this Act such survey and settlement shall be deemed to be made and effected under this Chapter.

(2)

The provisions of sections 56 to 58 shall continue to apply to the Sreepadam land belonging to the Sreepadam Place.]

[Chapter VII]

[The provision of the Chapter are made permanents by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act 1972 (Tamil Nadu Act 10 of 1972).]

Cultivating Tenants Ceiling Area

59.

[

[Omitted by section 3 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act 1972 (Tamil Nadu Act 10 of 1972).]

[***]

60.

Definition of cultivating tenants ceiling area.

- In this Chapter, "cultivating tenants ceiling area" means 5 standard acres held by any person partly as cultivating tenant and partly as owner or wholly as cultivating tenant.

Explanation. - For the purposes of this Chapter, "cultivating tenant" includes any tenant who is in actual possession of land, but does not contribute his own physical labour or that of any member of his family in the cultivation of such land.

60A.

[Certain definitions for the purposes of this Chapter.

[Inserted by section 2(10) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970) which was deemed to have come into force on the 15th February 1970.]

- In the Chapter, "date of the publication of this Act" and "notified date" shall, respectively, mean "the 2nd May 1962" and "the 2nd October 1962"]

61.

Person holding land as cultivating tenant to furnish return in certain cases.

(1)

Every cultivating tenant who hold on the notified date land in excess of the cultivating tenants ceiling area shall, within ninety days from the said date, furnishing to the authorised officer a return containing the following particulars, namely:-

(i)

particulars of the land, if any, which he holds as owner;

(ii)

particulars of the land which he holds as cultivating tenant;

(iii)

particulars of the name and address of the landowner concerned; and

(iv)

such other particulars as may be prescribed.

[Explanation.

[Added by section 6(iv) of the Tamil Nadu Tenancy (Amendment) Act, 1965 (Tamil Nadu Act 9 of 1965).]

- In the case of a member of the Armed Forces, the return under sub-section (1) shall be furnished within six months after the Proclamation of Emergency has ceased to operate.]

(2)

If any cultivating tenant who has held land in excess of the cultivating tenant's ceiling area, fails to furnish the return under sub-section (1) or furnishes an incorrect or incomplete return under that sub-section, the authorised officer may, by notice, require such cultivating tenant to furnish the return or the additional particulars, as the case may be, within the time specified in the notice or within such further time not exceeding thirty days as the authorised officer may, in his discretion, allow.

(3)

(a)

Where any cultivating tenant on whom notice under sub-section (2) has been served fails to furnish the return or the additional particulars, * as the case may be, within the time specified in that notice or within the further time if any allowed by the authorised officer under sub-section (2), the authorised officer may obtain in such manner as may be prescribed the necessary information either by himself or through such agency as he thinks fit.

(b)

The authorised officer shall, as soon as may be after obtaining the information under clause (a), give to the cultivating tenant concerned a reasonable opportunity of making his representation and of adducing evidence, if any, in respect of such information and consider any such representation and evidence and pass such orders as he deems fit.

62.

Authorised officer to take possession of land in excess of the cultivating tenant's ceiling area.

- On the basis of the return furnished under sub-section (1) of section 61 or on the basis of the return furnished under sub-section (2) of that section, and the additional particulars, if any, furnished under that sub-section, or on the basis of the information obtained by the authorised officer under clause (a) of sub-section 61, and the orders passed on the representation and the evidence, if any, under clause (b) of sub-section (3) of that section, the authorised officer shall, subject to such rules as may be made in his behalf and subject to the rights of the owner of the land, take possession on behalf of the Government, of the land held by the person as cultivating tenant and in excess of the cultivating tenant's ceiling area:

Provided that the authorised officer shall not take possession of such land unless he has given a reasonable opportunity of being heard to the land owner and the cultivating tenant concerned:

Provided further that the authorised officer shall give in such manner as may be prescribed, not less than three months notice in writing intimating the cultivating tenant of his decision to take possession of the land and the notice shall expire with the end of the agricultural year in which such notice is given:

[Provided further that the authorised officer may, for reasons to be recorded in writing, permit the possession of the land held by the person as cultivating tenant and in excess of the cultivating tenant's ceiling area, if the total extent of such excess land does not exceed half an acre in the case of wet land and one acre in the case of dry land, irrespective of the assessment of such land:]

[Inserted by section 3(10) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972), which was deemed to have come into force on the 1st March 1972.]

Provided also that where there is any crop standing on such land on the date of the expiry of the notice aforesaid, the authorised officer may postpone taking possession of the land and permit the harvest of such crop by the person who had raised such crop.

[Explanation. - Notwithstanding anything contained in this Act, for the purpose of the third proviso, "acre" means ordinary acre.]

[Inserted by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1998 (Tamil Nadu Act 36 of 1998).]

63.

Liability of the Government to pay rent.

(1)

With effect on and from the date on which the authorised officer takes possession of the land under section 62, Government shall be deemed to be the tenant of the owner of the land.

(2)

In respect of the land referred to in sub-section (1), the Government shall be liable to pay annually to the owner of such land fair rent as calculated in the manner specified in paragraph 4 of Part I of Schedule III. Such rent shall be paid in cash or in kind in accordance with such rules as may be made by the Government.

(3)

If any dispute arises in regard to the rent payable under sub-section (2), either party may make an application to the Land Tribunal within whose jurisdiction the land referred to in sub-section (1) or the major part thereof is situated for deciding such dispute.

64.

Authorised officer to distribute possession of land.

(1)

The authorised officer shall distribute possession of the land, the possession of which he has taken under section 62, to the landless persons or to persons holding land below the cultivating tenant's ceiling area.

(2)

The distribution under sub-section (1) shall be in accordance with such rules and subject to such conditions as may be prescribed. Such rules may also provide for the manner of recovery of any amount due to the Government from, and the manner of evicting, the person to whom such distribution is made.

65.

Authorised officer empowered to summarily dispossess persons in certain cases.

- The authorised officer may summarily dispossess-

(i)

any person to whom any land has been distributed under section 64, if such person fails to comply with the conditions subject to which the distribution was made, or contravenes any rule made under this Chapter;

(ii)

any other person occupying such land except in accordance with the provisions of this Chapter or the rules made there under.

66.

[Amount payable]

[Substituted for the word 'compensation' by section 5(x)(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979), which was deemed to have come into force on the 20th April 1972.] to tenants in certain cases.

(1)

Where, in respect of any land the possession of which has been taken by the authorised officer under section 62, the contract of tenancy provides for the continuance of the tenancy after the expiry of the agricultural year immediately succeeding the date of taking such possession, the Government shall pay to the tenant [an amount]

[Substituted for the word 'compensation' by section 5(x)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979), which was deemed to have come into force on the 20th April 1972.] as provided in sub-section (2).

(2)

The [amount]

[Substituted for the word 'compensation ' by section 5(x)(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

payable to any tenant under sub-section (1) shall be one-eighth of [the annual value of the land calculated in the manner specified in Part I of Schedule III]

[Substituted for 'the fair rent for the land calculated in the manner specified in paragraph 4 of Part I of Schedule III' by section 7(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of

1979) which was deemed to have come into force on the 27th October 1978.]

. Out of such [amount]

[Substituted for the word 'compensation' by section 5(x)(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979), which was deemed to have come into force on the 20th April 1972.]
, three-fourths shall be paid to the cultivating tenant and one-fourth to the intermediary, if any.

(3)

If any dispute arises in regard to the amount [xxx]

[The words 'of compensation' were, omitted by section 5(x)(d) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979), which was deemed to have come into force on the 20th April 1972.]

payable under sub-section (2) either party may make an application to the Land Tribunal within whose jurisdiction the land or the major part thereof is situated for deciding such dispute.

67.

Certain claims for arrears of rent not to be enforced against Government.

- No claim of any person to any arrear of rent or any other amount accrued or due in respect of any land for the period prior to the date of taking possession of such land under section 62 shall be enforced by any Court whether in execution of a decree or otherwise against the Government or against any person holding the land under the Government.

68.

Landowner's right to resume under [Tamil Nadu Act]

[Substituted for the word 'Madras Act' by paragraph 3(2) of the Tamil Nadu Adaptation of Laws Order, 1970.]
XXV of 1955 not affected.

- Nothing contained in this Chapter shall be deemed to affect the right of any land owner under the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Cultivating Tenants Protection Act, 1955, ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXV of 1995), to resume possession for purpose of personal cultivation of the land the possession of which has been taken by the authorised officer under this Chapter and for the purposes of such resumption the Government shall be deemed to be the cultivating tenant in respect of the land aforesaid.

69.

Furnishing of return on acquisition by lease of any land in excess of cultivating tenant's ceiling area.

(1)

If, on or after the notified date, any person acquires by lease any land which together with the land, if any, already held by him, exceeds in the aggregate the cultivating tenant's ceiling area, he shall, within ninety days of such acquisition, furnish to the authorised officer within whose jurisdiction the land or the major part thereof is situated, a return containing such particulars as may be prescribed.

(2)

If he furnishes the return or fails to furnish the return or furnishes an incorrect or incomplete return, within the period specified in sub-section (1), the provisions of sub-sections (2) and (3) of section 61 and other provisions of this Chapter shall, as far as may be, apply as if it were a return required to be furnished under sub-section (1) of section 61.

70.

Removal of doubts.

- For the removal of doubts, it is hereby declared that nothing in this Chapter shall apply to any land held by any sugar factory as tenant.

71.

Effect of certain Acts.

- The provisions of the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Cultivating Tenants Protection Act, 1955 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXV of 1955). the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Cultivating Tenants (Payment of Fair Rent) Act, 1956 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXIV of 1956), the Tiruchirappalli Kaiaeruvaram and Mattuvaram Act, 1958 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXXVI of 1958) and any other law relating to tenancy shall, except in so far as they are inconsistent with any of the provision of this Chapter, continue in force.

72.

Provisions of this Chapter to override other provisions.

- The provisions of this Chapter shall, subject to the provisions of section 17, have effect notwithstanding anything inconsistent therewith contained in any other provision of this Act.

Chapter IX

Exemptions

73.

Exemptions.

- Except as otherwise provided in sub-sections (2) and (3) of section 5 and in section 6, nothing contained in this Act shall apply to-

(i)

any land held by the Central Government or any State Government or any local authority;

(ii)

[any land held by any University constituted by any law;]

[Substituted for the original clause (ii) by section 3(9) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1972 (Tamil Nadu Act 37 of 1972), which was deemed to have come into force on the 1st March 1972.]

(iii)

[any land assigned by the Government to and held by, any Land Colonisation Co-operative Society;]

[Substituted for the original clause (iii) by section 3(4) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fifth Amendment Act, 1972 (Tamil Nadu Act 10 of 1974) which was deemed to have come into force on the 6th April 1960. Before its substitution, read as follows: '(iii) any land owned by such co-operative societies other than societies registered or deemed to have been registered under the Madras Co-operative Societies Act 1972 (Madras Act VI of 1932) or under the Travancore-Cochin Co-operative Societies Act, 1951 (Travancore-Cochin Act X of 1952)] as are approved by the Government;]

(iv)

[any land in respect of which the Government have granted permission to any industrial or commercial undertaking under section 37-B and such permission continues in force: [[Substituted for the original clause (iv) by section 3(11)(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972), which was deemed to have come into force on the 1st March 1972. Before its substitution, read as follows:

'(iv) any land held by any industrial or commercial undertaking (other than a co-operative society) which, in the opinion of the Government, bona fide carries on any industrial or commercial operation and which is approved by the Government:]]

Provided that such land shall be exempt only so long as the conditions, if any, specified by the Government are complied with;]

(v)

[The words "or educational institutions or hospital" were omitted by section 4(1) dated the Tamil Nadu land reforms on hand) Amendment under Tamil Nadu Act 55 of 1987.]

[Substituted for the word on the 6th day of April 1960' by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1974 (Tamil Nadu Act 30 of 1974).]

(vi)

all plantations in existence [on the date of the commencement of this Act]

[Substituted by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Third Amendment Act, 1974 (Tamil Nadu Act 30 of 1974), which was deemed to have come into force on the 6th April 1960, for the expression 'on 6th day of April 1960', which in turn was substituted for the expression 'on the date of the commencement of this Act' by section 3(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fifth Amendment Act 1972 (Tamil Nadu Act 10 of 1974), which was deemed to have come into force on the 6th April 1960.]

:

[Provided that such plantations shall be exempt only so long as they continue to be plantations;]

[Proviso was added by section 2 of the Tamil Nadu Land Reforms (Fixation Ceiling on Land) Second Amendment Act, 1975 (Tamil Nadu Act 21 of 1975) which was deemed to have come into force on the 6th April 1960.]

(vii)

lands converted on or before the 1st day of July 1959 into orchards or topes or areca nut gardens, whether or not such lands are contiguous or scattered:

Provided that such land shall be exempt only so long as they continue to be orchards, topes or areca nut gardens;

(viii)

any land used exclusively for growing fuel trees [on the 6th day of April 1960]

[Substituted for the words 'on the date of the commencement of this Act' by section 3(3) of the Tamil Nadu Land Reforms (Fixation Ceiling on Land) Fifth Amendment Act, 1972 (Tamil Nadu Act 10 of 1974) which was deemed to have come into force on the 6th April 1960.]

;

Provided that such land shall be exempt only so long as such land is used for such purpose;

(ix)

Gramdan land and land donated for purposes of the Bhoodan Yagna;

(x)

[[xxx]

[Omitted by section 3(14) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

(xi)

any land-

(a)

interspersed among plantations, or

(b)

contiguous to any plantation,

in existence [on the date of the commencement of this Act]

[These words were re-substituted for the words, '6th day of April 1960' by section 3(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fifth Amendment Act, 1972 (Tamil Nadu Act 10 of 1974).]

in any area [xxx]

[The words 'other than a hill area ' were omitted by section 3(11)(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

and in respect of which the Land Board has granted permission under section 31 and such permission continues in force;

(xii)

any land awarded for gallantry to defence personnel.

Provided that such land shall be exempt only for the lifetime of the person to whom the award was granted.

(xiii)

[***]

[Omitted by section 3(10) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

Provided that such approval shall be subject to such conditions as may be prescribed. Provided further that such land shall be exempt only so long as the said conditions are complied with;"

[74 to 75.

[Omitted by section 3(11) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

[***]

Chapter X

Land Tribunals

76.

Constitution of Land Tribunals.

(1)

The Government shall constitute as many Land Tribunals as maybe necessary for the purposes of this Act.

(2)

Each Land Tribunal shall consist of one person only who shall be [xxx]

[The words 'a judicial officer not below the rank of Subordinate Judge or' were omitted by section 3(e) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Lind) Amendment Act, 1993 (Tamil Nadu Act 3 of 1984).]

[an officer not below the rank of District Revenue Officer.]

[Added by section 7(4) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979), which was deemed to come into force on the 27th October 1978.]

76A.

[Transfer of appeals from one Land Tribunal to another.

[Added by section 7(5) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979), which was deemed to come into force on the 27th October 1978.]

(1)

The Land Commissioner may, either suo motu or on application, for reasons to be recorded in writing, transfer an appeal pending before a Land Tribunal to another Land Tribunal.

(2)

The Land Commissioner may, when exercising the powers under sub-section (1), direct the stay of further proceedings before a Land Tribunal.

(3)

No order under this section adversely affecting a person shall be possessed unless that person has had a reasonable opportunity of being heard.]

77.

Jurisdiction and powers of Land Tribunals.

(1)

Each Land Tribunal shall have such jurisdiction and over such areas as the Government may, by notification, from time to time, determine.

(2)

If any question is referred by the authorised officer to the Land Tribunal for its decision under sections 11(2), 16(3)(a)(iv) or 51(3), the Land Tribunal shall decide such question.

(3)

Every Land Tribunal shall have the same powers as are vested in a Civil Court under the Code of Civil Procedure, 1908 (Central Act V of 1908).

Chapter X

A [Omitted]

[Chapter X-A (sections 77-A to 77-J) was inserted by the Tamil Nadu Lind Reforms (Fixation of Ceiling on Land) Amendment Act, 1983 and subsequently omitted by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 2003 (Tamil Nadu Act 26 of 2003).]

Chapter XI

Appeals and Revision

78.

Appeal to Land Tribunal.

(1)

Against any decision of the authorized officer under section 9(2)(b), 10(3), (4), (5), 16(3)(a)(iii), 20,22,50(4), 51(1), (2), 52,61(3)(b) or 102(2)(b), the Government may, within ninety days from the date of the decision, and any person aggrieved by such decision, may, [within thirty days]

[Substituted for the words 'within sixty days' by section 3(5)(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

from the date of such decision, appeal to the Land Tribunal.

(2)

The Land Tribunal may admit an appeal presented after the expiration of the period mentioned in sub-section (1), [but not exceeding thirty days]

[Inserted by section 3(15)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

, if it is satisfied that the party concerned had sufficient cause for not presenting it within the said period.

(3)

On receipt of an appeal under sub-section (1), the Land Tribunal, after giving the parties a reasonable opportunity of being heard, shall-

(a)

determine a case finally;

(b)

remand a case;

(c)

take additional evidence or require such evidence to be taken by the authorized officer.

79.

Appeal to the [High Court]

[Substituted for the words 'Special Appellate Tribunal' the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 2003 (Tamil Nadu Act 26 of 2003).]

.

(1)

Against a decision of the Land Tribunal under section 11(3) or 77(2), the Government may, within sixty days from the date of the decision and any person aggrieved by such decision may, within thirty days from the date of the decision, appeal to the [High Court]

[Substituted for the words 'Special Appellate Tribunal' the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 2003 (Tamil Nadu Act 26 of 2003).]

:

Provided that the [High Court]

[Substituted for the words 'Special Appellate Tribunal' the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 2003 (Tamil Nadu Act 26 of 2003).]

may admit an appeal presented after the expiration of the said period if it is satisfied that the party concerned had sufficient cause for not presenting it within the said period.

(2)

The [High Court]

[Substituted for the words 'Special Appellate Tribunal' the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 2003 (Tamil Nadu Act 26 of 2003).]

, after giving the parties a reasonable opportunity of being heard, shall-

(a)

determine a case finally;

(b)

remand a case;

(c)

take additional evidence or require such evidence to be taken by the Land Tribunal.

Explanation. - In this section and in section 78, "date of the decision" means the date on which such decision is communicated to the party concerned.

80.

Limitation Act to apply to appeal under section 78 or 79.

- The provisions of section 4 and of sub-section (1) and (2) of section 12 of the Indian Limitation Act, 1908 [(Central Act IX of 1908)]

[See now the Limitation Act, 1963 (Central Act 36 of 1963).]

shall, as far as may be, apply to any appeal under section 78 or 79.

81.

[

[Omitted section 3(16) of the Tamil Nadu Land Reforms (Fixation of Ceiling on land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972), which was deemed to come into force on the 1st March 1972.]

[***]

82.

Revision by the Land Commissioner.

- The Land Commissioner may call for and examine the record of any authorized officer in respect of any proceeding [under sections 9(3), 12, 13,14(1), 14(2), 17(3), 18(4), 50(5) or 50 (9) or the record of any proceeding under sub-section (2) of section 54]

[Substituted for the words 'under section 9(3), 17(3) or 18(4)' by section 31,17(i) of Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

and in respect of any other proceeding under this Act not being a proceeding in respect of which a suit or an appeal [xxx]

[The words 'or revision ' were omitted by section 3(17)(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth amendment Act, 1972 (Tamil Nadu Act 39 of 1972).]

to the Land Tribunal is provided by this Act to satisfy himself as to the regularity of such proceeding or the correctness, legality or propriety of any decision or order passed thereon, and if, in any case, it appear to the Land Commissioner that any such proceeding, decision or order should be modified, annulled, reversed or remitted for reconsideration, he may pass orders accordingly:

Provided that the Land Commissioner shall not pass any order prejudicial to any party unless he has been given a reasonable opportunity of being heard.

83.

[Revision by High Court.

[Inserted by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 2003 (Tamil Nadu Act 26 of 2003).]

- Subject to the provisions of section 79, every Land Tribunal shall be deemed to be a Court subordinate to the High Court for the purpose-of section 115 of the Code of Civil Procedure, 1908 (Central Act V of 1908) and its orders shall be liable to revision by the High Court under the provisions of that section.]

84.

Power to stay.

- The [High Court]

[Substituted for the words 'Special Appellate Tribunal' by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 2003 (Tamil Nadu Act 26 of 2003).]

, the Land Tribunal or the Land Commissioner may stay the execution of any decision or order pending the exercise of its or his powers under this Chapter.

Chapter XII

Penalties and Procedure

85.

Penalty for failure to furnish return.

(1)

If any person who is under an obligation to furnish a return under this Act, refuses or wilfully fails to furnish the return within the time specified in the notice under sub-section (1) of section 9 or under sub-section (2) of section 61 or within

the further time, if any, allowed by the authorised officer under those sub-sections, he shall be punishable with fine which may extend to [two thousand rupees]

[Substituted for the words 'two hundred rupees ' by section 2(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Second Amendment, Act, 1987 (Tamil Nadu Act 4 of 1988).]

.

(2)

If any person who, after having been convicted under sub-section (1), continues to refuse or to wilfully fail to furnish the return, he shall be punishable with fine which may extend to fifty rupees for each day after the previous date of conviction during which he continues so to offend.

86.

Penalty for failure to furnish information under section 102.

- If any person refused or wilfully fails to furnish the information under sub-section (1) of section 102 within the time specified in the notice under that sub-section or within the further time, if any, allowed by the authorized officer under that sub-section, such person shall be punishable with fine which may extend to [two thousand rupees].

[Substituted for the words 'two hundred rupees' by section 2(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Second Amendment, Act, 1987 (Tamil Nadu Act 4 of 1988).]

87.

Penalty for furnishing false return or information.

- If any person who is under an obligation to furnish any return or information under this Act, furnishes any return or information which he knows or has reason to believe to be false, he shall be punishable with fine which may extend to [two thousand rupees].

[Substituted for the words 'one thousand rupees' by section 2(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Second Amendment, Act, 1987 (Tamil Nadu Act 4 of 1988).]

88.

Penalty for making false declaration under section 19.

- If any person makes any declaration before the registering authority under sub-section (1) of section 19 which he knows or has reason to believe to be false, he shall be punishable with fine not exceeding [two thousand rupees].

[Substituted for the words 'one thousand rupees' by section 2(d) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Second Amendment, Act, 1987 (Tamil Nadu Act 4 of 1988).]

88A.

[Penalty for furnishing return showing land subject to void transfer or partitions under section 22 as surplus land.

[Inserted by section 5 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Sixth Amendment Act, 1972 (Tamil Nadu Act 7 of 1974).]

- Where the transfer or partition of any land has been declared to be void under section 22, and if any person has in the return furnished by him under this Act specified such land to be declared as surplus land of the transferor or of the person effecting the partition, the person so furnishing the return shall be punishable with imprisonment which may extend to six months or with fine which may extend to two thousand rupees or with both.]

89.

Penalty for acquisition by lease or possessory mortgage in excess of the ceiling area.

- If any person, on or after the notified date, voluntarily acquires by lease or possessory mortgage any land which together with the land, if any, already held by him exceeds in the aggregate the ceiling area, he shall be punishable with fine not exceeding [two thousand rupees]

[Substituted for the words 'one thousand rupees' by section 2(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1987 (Tamil Nadu Act 4 of 1988).]

.

90.

Penalty for contravention of any lawful order.

- If any person wilfully contravenes any lawful order passed under this Act or obstructs any person from lawfully taking possession of any land under any of the provisions of this Act, he shall be punishable-with fine which may extend to [two thousand rupees]

[Substituted for the words 'five hundred rupees' by section 2(f) of the Tamil Nadu Land Reforms (Fixation of Ceiling on

Land) Second Amendment Act, 1987 (Tamil Nadu Act 4 of 1988).]

.

91.

Penalty for cutting trees or for removing any machinery, etc.

- If any person, after the date of vesting in the Government of any land acquired under this Act and before the disposal of such land under this Act, cuts or causes to be cut, trees on the land, or removes or causes to be removed, any building, [machinery, plant, apparatus, wells, filter points or power lines]

[Substituted for the words 'machinery, plant, or apparatus' by section 3(8) of Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

constructed, erected or fixed on the land and used for agricultural purposes, or does or causes to be done any act likely to diminish the utility of the land, he shall be punishable with imprisonment for a term which may extend to one year, or with fine not exceeding [two thousand rupees]

[Substituted for the words 'one thousand rupees' by section 2(g) of Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

or with both.

92.

Offences by companies.

(1)

If the person committing an offence under this Act is a company, the company as well as every person in charge of, and responsible, to, the company for the conduct of its business at the time of the commission of the offence shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of such offence.

(2)

Notwithstanding anything contained in sub-section (1), where an offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation. - For the purpose of this section-

(a)

"company" means any body corporate and includes a firm or other association of individuals, and

(b)

"director", in relation to a firm, means a partner in the firm.

93.

Cognizance of offences.

(1)

No Court shall take cognizance of any offence punishable under this Act except on complaint in writing made by the authorised officer or any officer empowered by him by special order.

(2)

No Court inferior to that of a Presidency Magistrate or a Magistrate of the first class shall try any offence punishable under this Act.

According to clauses (a) and (c) of the sub-section (3) of section 3 of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974), any reference to a Magistrate of the First Class shall be construed as a reference to Judicial Magistrate of the First Class and any reference to a Presidency Magistrate shall be construed as a reference to a Metropolitan Magistrate with effect on and from 1st April 1974.

Chapter XIII

Disposal of Land Acquired by the Government under this Act

94.

Disposal of land acquired by the Government.

(1)

Subject to the provisions of sub-section (2), [and section 94-A]

[Inserted by Tamil Nadu Act 41 of 1971.]

, the Government may, after taking into consideration the objects specified in the preamble, make rules providing for the manner in which any land acquired by the Government under this Act shall be disposed of.

[***]

[Proviso was omitted by section 7(6) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979), which was deemed to have come into force on the 27th October 1978.]

(2)

(a)

In the disposal of the land acquired by the Government under this Act, the Government shall give preference to any person who completely dispossessed of his holding, or whose extent of holding is reduced below [three acres of dry land or one and a half acres of wet land]

[Substituted for the words 'Three standard acres by section 3(i) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1980 (Tamil Nadu Act 8 of 1980).]

held by him partly as cultivating tenant and partly as owner or wholly as cultivating tenant, by virtue of the provisions of this Act.

[***]

[Clause (b) was omitted by section 3(14)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

[Explanation.

[Added by section 3(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1979 (Tamil Nadu Act 8 of 1980).]

- Where a person holds both dry land and wet land, then, for the purpose of calculating the extent of his holding under this clause, one acre of wet land shall be deemed to be equal to two acres of dry land.]

94A.

[Rules in respect of surplus land held by sugar factory and acquired by Government.

[Sections 94-A, 94-B and 94-C were inserted by section 3(15) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

(1)

Where any surplus land acquired by the Government under this Act was held by any sugar factory immediately before the date of the acquisition, the Government shall make arrangement for the cultivation of such land with sugarcane for supply to the sugar factory concerned.

(2)

The Government may make rules in respect of the lands referred to in sub-section (1) for the cultivation of sugarcane through a corporation (including a company) owned or controlled by the State and for such other matters in connection with the administration of such lands.

(3)

Notwithstanding anything contained in sub-section (1) or sub-section (2), the Government may, by notification, direct that it is not compulsory to cultivate sugarcane in any such land as is referred to in sub-section (1) and on the issue of such notification, the land concerned may be cultivated either with sugarcane or with any other crop.

(4)

Nothing in this section shall be construed as preventing the Government from making rules under section 94 providing for the manner of disposal of any surplus land acquired under this Act and held by any sugar factory immediately before the date of acquisition and accordingly the Government may make rules under section 94 providing for the disposal of such land.]

94B.

[Certain lands to be held as tenant by the corporation.

[Sections 94-A, 94-B and 94-C were inserted by section 3(15) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

(1)

Notwithstanding anything contained in section 17 or any other provision of this Act or in any other law for the time being

in force, where immediately before the date of the commencement of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971, any land is held as tenant by any sugar factory under a contract of tenancy which is subsisting and where such land is within the ceiling area of the landowner concerned, such land shall be deemed to be held as tenant by the corporation (including a company), if any, referred to in sub-section (2) of section 94-A for the unexpired period of the contract [and for a period of [eight-years]] after the expiry of such contract and accordingly the said contract of tenancy shall force and effect against the said corporation and may be enforced or acted upon as fully and effectually as if in the place of the sugar factory, the corporation had been a party thereto [and the amount of rent payable under the contract of tenancy shall be continued to be paid to the land owner by the corporation]:

[Added by section 2(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1975 (Tamil Nadu Act 11 of 1975).]

[Provided that where the said corporation is of opinion that any land held by it under any such contract of tenancy, is no longer required for the purpose of that corporation, then, the said corporation may terminate such contract of tenancy in respect of such land, and release such land to the landowner concerned.]

[Added by section 2(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1981 (Tamil Nadu Act 59 of 1981).]

(2)

Nothing in this Act shall apply to any land referred to in sub-section (1) only so long as such land is deemed to be held as tenant by the corporation (including a company) under sub-section (1).]

94C.

[Exemption in respect of land held by sugar factory for research purposes.

[Sections 94-A, 94-B and 94-C were inserted by section 3(15) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

- Except as otherwise provided in sub-sections (2) and (3) of section 5 and in section 6, nothing contained in this Act shall apply to any extent of land not exceeding 100 standard acres held by a sugar factory solely for research and seed farm purposes.

(2)

The question whether any land is held solely for research and seed farm purposes shall be decided by the Government.]

Chapter XIV

Miscellaneous

95.

Conversion of one kind of land into another not to affect ceiling area in certain cases.

- Notwithstanding anything contained in this Act, where on account of any improvements made in the land by or at the cost of the person holding such land, one kind of lands specified in clause (40) of section 3 is converted into another kind of the lands specified in the said clause after the date of the publication of the final statement under section 12 or 14, such conversion shall not be taken into account in calculating the extent of land held by such person. But, where such conversion takes place as a result of any irrigation project constructed at the cost of the Government, the land so converted shall be reduced to standard acres according to the proportion specified in the clause aforesaid, and the ceiling area of such person shall be fixed in accordance with the provisions of this Act.

96.

Decrease in number of members of family not to affect ceiling area.

- Notwithstanding anything contained in this Act, the extent of ceiling area which a family is entitled to hold under the provisions of this Act, immediately after the date of the publication of the final statement under section 12 or 14, shall not be reduced by reason only of any decrease after the said date in the number of members on such family:

[Provided that nothing contained in this section shall be deemed to affect the refixation of the ceiling area under the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970.]

[Added by section 2(11) of the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970), which was deemed to have come into force on the 15th February 1970.]

97.

Appointment of Land Commissioner.

- The Government may appoint any [member of the Board of Revenue]

[By virtue of section 10(1) of the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980) any

reference to the Member of the Board of Revenue shall be deemed to be a reference to the Appropriate Authority specified in the notification under sub-section (1) of section 4 of the said Act.]

as Land Commissioner for the State to exercise such powers and discharge such duties as are assigned to him by or under this Act.

98.

[

[Omitted by section 3(j) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1983 (Tamil Nadu Act 3 of 1984).]

[***]

99.

Transfer of proceedings from one authorized officer to another.

(1)

On the application of any of the parties or of his own motion-

(a)

the Collector of the district may, at any stage after giving the parties a reasonable opportunity of being heard, transfer any application or other proceeding under this Act pending before any authorized officer in the district for disposal to any other authorized officer in the same district.

(b)

the Land Commissioner may, at any stage after giving the parties a reasonable opportunity of being heard, transfer any application or other proceeding under this Act pending before any other authorized officer in any other district.

(2)

Where any application or proceeding has been transferred under sub-section (1), the authorized officer to whom such transfer is made may, subject to any special directions given in the order of transfer, either hold the inquiry denovo or proceed from the stage at which the said application or other proceeding stood when it was transferred.

100.

Returns and reports.

- The authorized officer, [the Land Commissioner or the Land Board]

[Substituted for the words 'the Land Commissioner, the Land Board or the 'Sugar' Factory Board' by section 3(17) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

shall furnish to the Government such returns, statistics, accounts and other information as the Government may, from time to time require.

101.

Authorised officer empowered to obtain information from Court, etc.

- The authorized officer may obtain from any Court, Land Board, [xxx]

[These words 'Sugar Factory Board' were omitted by section 3(18) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

Land Tribunal or other authority any information relating to any proceeding pending before the authorized officer, and such Court, Land Board, [xxx]

[These words 'Sugar Factory Board' were omitted by section 3(18) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

Land Tribunal or authority, as the case may be, shall, if such information be available with it, furnish him with such information within a reasonable period.

102.

Authorized officer empowered to obtain information from persons.

(1)

For the purpose of carrying into effect the provisions of this Act, the authorized officer may, by notice, require any person to furnish any information relating to the extent of land held by such person, the number of members of the family, if any, of such person, and such other particulars as maybe prescribed. The person aforesaid shall furnish the information to the authorized officer within such time as may be specified in the notice or within such further time not exceeding thirty days as the authorized officer may, in his discretion, allow.

(2)

(a)

Where any person on whom notice under sub-section (1) has been served fails to furnish the information within the time specified in that notice or within the further time allowed by the authorized officer under sub-section (1), the authorized officer may obtain, in such manner as may be prescribed, the necessary information either by himself or through such agency as he thinks fit.

(b)

The authorized officer shall, as soon as may be after obtaining the information under clause (a), give to the person concerned a reasonable opportunity of making his representation and of adducing evidence, if any, in respect of such information and consider any such representation and evidence and pass such orders as he deems fit.

103.

Costs.

- The costs of, and incidental to, all proceedings before the authorized officer, Land Commissioner, Land Board, [xxx]
[These words 'Sugar Factory Board' were omitted by section 3(19) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

Land Tribunal or other authority shall be in his or its discretion.

104.

Power to enter upon land.

- The authorized officer or any person acting under his orders may, at any time, enter upon any land, but not a dwelling house, with such other officers or persons as he considers necessary and make a survey and take measurements thereof or do any other act which he considers necessary for carrying out the purposes of this Act.

105.

Indemnity.

(1)

No suit, prosecution or other legal proceeding shall lie against the authorized officer, Land Board, [xxx]

[These words 'Sugar Factory Board' were omitted by section 3(20) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

Land Commissioner, [xxx]

[Substituted for the words 'High Court' by section 3(k) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1983 (Tamil Nadu Act 3 of 1984) and the words 'Land Tribunal, Special Appellate Tribunal' were omitted by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 2003 (Tamil Nadu Act 26 of 2003).]

or other authority for anything which is in good faith done or intended to be done in pursuance of this Act or any rule or order made thereunder.

(2)

No suit or other legal proceeding shall lie against the Government for any damage caused or likely to be caused by virtue of any provision of this Act or by anything which is in good faith done or intended to be done in pursuance of this Act or any rule or order made thereunder.

106.

Preparation of record of rights.

- The Government may, for the purpose of this Act, cause to be prepared and published a record of rights in accordance with such rules as may be made by them.

107.

Bar of jurisdiction of Civil Courts.

- Except as otherwise provided in this Act, no Civil Court shall have jurisdiction to decide or deal with any question which is by or under this Act required to be decided or dealt with by the authorised officer, Land Board, 1[xxx] the Land Commissioner, the Land Tribunal or other authority.

108.

Court fees.

- The Court-fee payable in respect of-

(a)

any suit under sub-section (3) of section 11, shall be twenty-five rupees;

- (b)
any appeal to the Land Tribunal under section 78, shall be five rupees;
- (c)
any appeal to the High Court under section 79, shall be twenty-five rupees;
- (d)
any application for revision by the Land Tribunal under section 81 or for revision by the Land Commissioner under section 82, shall be one rupee;
- (e)
any application for revision by the High Court under section 83 shall be ten rupees;
- (f)
any other case, shall be such fee as may be prescribed.

109.

Delegation of powers.

- The Government may, by notification, direct that any power exercisable by the Land Commissioner or any authorized officer under this Act or the rules made there under, shall in relation to such matters and subject to such conditions, as may be specified in such notification, be exercisable also by such officer or authority subordinate to the Government, as maybe specified in the notification.

110.

Power to make rules.

(1)
The Government may make rules to carry out the purposes of this Act.

(2)
In particular, and without prejudice to the generality of the foregoing power, such rules may provide for-

- (a)
all matters expressly required or allowed by this Act to be prescribed;
- (b)
the manner of service of notice under this Act;
- (c)
the manner of giving reasonable opportunity or of adducing evidence under this Act;

(d)
[***]
[Clause (d) was omitted by section 3(18) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Fourth Amendment Act, 1972 (Tamil Nadu Act 39 of 1972)]

(e)
the place at which and the manner in which the draft statement under sub-section (5) of section 10 and the final statement under section 12 or 14 may be published;

(f)
the manner of service of a copy of the final statement under section 12 or 14;

(g)
the manner of publication of a proclamation under clause (a) of subsection (2) of section 18;

(h)
the qualifications which shall be possessed by the members nominated under clause (d) of sub-section (2) of section 24;

(i)
the manner in which the draft [xxx]

[The word 'compensation' was omitted by section 5(xi)(a) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

assessment roll may be published under sub-section (3) of section 50;

(j)
the manner of apportionment of the [amount]

[This word was substituted for the Word 'Compensation' by section 5 (xi)(b) of the Tamil Nadu Land Reforms (Fixation of

Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

payable under this Act among the persons claiming interest in such [amount]

[This word was substituted for the Word 'Compensation ' by section 5 (xi)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

;

(k)

the procedure to be followed by the authorized officer under this Act;

(l)

the terms and conditions of service of the Chairman and members of the Land Board [xxx]

[The words 'and of the Sugar Factory Board' were omitted by section 3 (22) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1971 (Tamil Nadu Act 41 of 1971).]

;

(m)

the manner in which, and the officer by whom fair rent shall be ascertained for the purposes of this Act;

(n)

the circumstances under, and the conditions subject to which, and the authority or officer before whom any amount [xxx]

[The words 'of compensation' were omitted by section 5(xi)(c) the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

payable under this Act may be kept in deposit;

(o)

the manner of payment of the amount [xxx]

[The words 'of compensation' were omitted by section 5(xi)(c) the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

so deposited to the persons entitled thereto; and

(p)

the manner of communicating to the party concerned every decision or order in any proceeding against which an appeal or revision is provided for by this Act.

(q)

[the period within which an application for revision under section 82 may be presented.]

[Inserted by section 2 of the Tamil Nadu Land Reforms (Fixation of Ceiling land) Amendment Act, 1973(Tamil Nadu Act 8 of 1979).]

111.

[

[Omitted by section 3(12) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972), which was deemed to have come into force on the 1st March 1972.]

[***]

112.

Rules [xxx]

[Words 'and orders ' were omitted by section 3(13)(a) of the Tamil Nadu Land Reforms (fixation of ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

to be placed before the Legislature.

(1)

All rules made under this Act [xxx]

[Words 'other than those made under section 94' was omitted by section 7(7)(i) of the Tamil Nadu Land Reform (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

[xxx]

[Words 'and all orders made under section III' were omitted by section 3(13)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

shall be published in the Fort St. George Gazette and, unless they are expressed to come into force on a particular day, shall come into force on the day on which they are so published.

(2)

Every rule made under this Act [xxx]

[Words 'other than these made under section 94' was omitted by section 7(7)(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

[xxx]

[These words and figures 'and every order made under section III' were omitted by section 3(13)(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

shall, as soon as possible after it is made, be placed on the table of [the Legislative Assembly]

[Substituted by the Tamil Nadu Adaptation of Laws Order, 1987.]

and if, before the expiry of the session in which it is so placed or the next session, [the Legislative Assembly agrees]

[Substituted by the Tamil Nadu Adaptation of Laws Order, 1987.]

in making any modification in any such rule [xxx]

[Words 'or order' were omitted by section 3(13)(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

or the Legislative Assembly agrees that the rule [xxx]

[Words 'or order' omitted by Tamil Nadu Act 20 of 1972.]

should not be made, the rule These [xxx]

[words 'or order' were omitted by section 3(13)(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

shall, thereafter, have effect, only in such modified form or be of no effect, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule [xxx]

[These words 'or order' were omitted by section 3(13)(c) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

.

[Schedule I]

[Schedule I was omitted by section 3(14) of the Tamil Nadu Land Reforms (Fixation of ceiling on Land) Second Amendment Act, 1972 (Tamil Nadu Act 20 of 1972).]

II

[See section 3(27)]

Sl. No.

District

Taluk

Revenue No. and name of village

Extent of the lease hold

(1)

(2)

(3)

(4)

(5)

1.

Ghingleput

Saidapet

13. Grant Lyor

Whole village

2.

Do.

Ponneri

143. Karadiputhur

Do.

3.

Do.

Do.

147. Kannankottai

Do.

4.

Do.

Do.

150. Thervoy

Do.

5.

Do.

Do.

151. Kandigai

Do.

6.

Do.

Do.

180. Pappakuppara alias Ahrneliimanga-piiram

Do.

7.

[Chennai]

[Substituted for word 'Madras' by City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

-

121. Ikkattutangal

Do.

8.

Salem

Harur

317. Hunisanahalli

Do.

9.

Do.

Do.

318. Sillarahalli

Do.

10.

Do.

Do.

321. Regadahali

Do.

11.

Do.

Do.

322. Motankurichi

Do.

III

(See section 50)

[Part I]

[This Part I to Schedule was substituted by section 7(8) of the Tamil Nadu land Reforms (Fixation of ceiling on Land) Amendment Act, 1979.]

(Land other than the land specified in Part II)

1. The amount payable to any, person under section 50 in respect of any land other than the land specified in Part II acquired by the Government under this Act shall be determined in the manner hereinafter in this Part specified.

Explanation. - For the removal of doubts, it is hereby declared that for the purpose of determining the amount under this Part, all lands acquired from a person by the Government under this Act shall be treated as a unit.

2. The annual value of the land shall be determined in the first instance.

3. The annual value of the land shall be:-

(i)

in the case of registered wet, dry or manavari land (other than dry or manavari land irrigated by direct flow or lift from any Government or private source of irrigation), twenty times the land revenue on the land;

(ii)

in the case of dry or manavari land irrigated from any Government source of irrigation,-

(a)

receiving supply by direct flow of water for two or more crops, twenty times the aggregate of,-

(A)

the land revenue on the land; and

(B)

rupees nine per acre;

(b)

by lift for one or more crops or receiving supply for only one crop by direct flow of water, twenty times the aggregate of,-

(A)

the land revenue on the land; and

(B)

rupees five per acre;

(iii)

in the case of dry or manavari land irrigated from private source of irrigation owned by any person in his own land, twenty times the aggregate of,-

(A)

the land revenue on the land; and

(B)

rupees five per acre;

(iv)

in the case of waste land, five times the land revenue on the land. Explanation.-In this Part, waste land shall mean the land remaining uncultivated for a period of five years immediately preceding the date of the publication of the notification under sub-section (1) of section 18;

(v)

in the case of forest land, five times the land revenue on the land.

Explanation. - Forest land for the purposes of this Part,-

(i)

shall include any land containing predominantly trees or shrubs or any vegetation of natural growth and such land shall be treated as forest land only, notwithstanding the existence the stray trees, if any, grown therein by human effort; and

(ii)

shall not include any waste land containing trees or shrubs: Provided that the annual value determined under items (i) to (v) of this paragraph shall, in no case, exceed Rs.350 per acre.

Explanation. - In this paragraph and in paragraph 6, land revenue shall in respect of any land have the same meaning as in Explanation I to section 3(40) and shall not include cess, surcharge, additional and special assessment charge for water, or any other levy on land.

4. The amount payable for the land other than forest land acquired by the Government under this Act shall be determined in accordance with the following scale, namely -

(i)

for the first sum of Rs. 3,000 or any portion thereof of the annual value of the land, ten times such sum or portion;

(ii)

for the next sum of Rs. 3,000 or any portion thereof of the annual value of the land, nine times such sum or portion;

(iii)

for the next sum of Rs. 3,000 or any portion thereof of the annual value of the land, eight times such sum or portion;

(iv)

for the next sum of Rs. 3,000 or any portion thereof of the annual value of the land, seven times such sum or portion;

(v)

for the next sum of Rs. 3,000 or any portion thereof of the annual value of the land, six times such sum or portion;

(vi)

for the balance of the annual value of the land, five times such balance.

5. The amount payable for trees on land other than forest land shall be the value of such trees on the date of the publication of the notification under subsection (1) of section 18 subject to the maximum specified below -

(i)

in the case of trees grown by human effort other than fruit bearing trees, Rs. 1,000 per acre;

(ii)

in the case of-

(a)

orchards;

(b)

plantation crops; or

(c)

fruit bearing trees, grown by human effort, Rs. 3,500 per acre;

(iii)

in the case of stray trees of spontaneous growth, Rs. 250 per acre: Provided that the total amount payable for trees under clauses (i) to (iii) shall not exceed Rs. 3,500 per acre.

6. The amount payable for the forest land including the trees on such land acquired by the Government under this Act shall be determined in accordance with the following scale, namely. -

(i)

for the first sum of Rs. 3,000 or any portion thereof of the annual value of the land together with the annual value of the trees, ten times such sum or portion;

(ii)

for the next sum of Rs. 3,000 or any portion thereof the annual value of the land together with the annual value of the trees, nine times such sum or portion;

(iii)

for the first sum of Rs. 3,000 or any portion thereof of the annual value of the land together with the annual value of the trees, eight times such sum or portion;

(iv)

for the first sum of Rs. 3,000 or any portion thereof of the annual value of the land together with the annual value of the trees, seven times such sum or portion;

(v)

for the first sum of Rs. 3,000 or any portion thereof of the annual value of the land together with the annual value of the trees, six times such sum or portion;

(vi)

for the balance of the annual value of the land together with the annual value of the trees, five times such sum or portion.

Explanation. - In this paragraph, the annual value of the trees shall mean forty times the land revenue on forest land:

Provided that notwithstanding anything contained in paragraph 4, where the lands acquired from a person by the Government under this Act include forest land and other land, the annual value of all such lands and the annual value of the trees on forest land shall be added together and the amount payable for such lands including the trees on such forest land, shall be determined in accordance with the scales specified in clauses (i) to (iv) of this paragraph, subject to the modification that the expression "the annual value of the land together with the annual value of the trees" shall be construed as "the annual value of the forest land and other land together with the annual value of the trees" on forest land.

7. The amount payable for any building, machinery, plant, apparatus, wells, filter points or power lines acquired under

this Act shall be the written down value [determined in accordance with the provisions of the Income - tax Act, 1961 (Central Act 43 of 1961)] of such building, machinery, plant, apparatus, wells, filter points or power lines, on the date of the publication of the notification under sub-section (1) of section 18.

8. The amount payable under this Part shall be the aggregate of the amount as calculated under -

"(i) paragraphs 4,5 and 7, in the case where land acquired is the land other than the forest land;

(ii)

paragraphs 6 and 7, in the case where land acquired is forest land;

(iii)

paragraphs 6, 5 and 7, in the case where lands acquired include forest land and other land as is referred to in the proviso to paragraph 6,

less the amount payable under section 54 to a tenant, in respect of the land concerned.

9. (a) In respect of any land in the transferred territory, 75 per cent of the amount [xxx]

[These words 'as compensation ' was omitted by section 5(xii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

calculated under this Part shall be payable in advance of the completion of the survey and ryotwari settlement of the land [made and effected, or deemed to be made and effected, under Chapter VI]

[These words were substituted by section 5(xiii)(b) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1979 (Tamil Nadu Act 11 of 1979).]

.

Part II ? Land Revenue of Which or Portion thereof has been Assigned

Where the amount of land revenue or portion thereof in respect of any land acquired by the Government under this Act has been assigned in favour of any person, the Government shall pay such person [xxx]

[The words 'as compensation ' was omitted by section 5(xii) of the Tamil Nadu Land Reforms (Fixation of Ceiling On Land) Amendment Act 1979 (Tamil Nadu Act 11 of 1979).]

twelve times the difference between such amount of land revenue or portion thereof and the proportionate quit-rent, jodi, kattubadi or other amount of like nature, if any, payable by such person to the Government.

IV

(See section 54)

1. The amount payable to any tenant under section 54 shall be one-eighth of the annual value for the land calculated in the manner specified in Part I of Schedule III.

2. Out of the amount referred to in paragraph 1, three-fourths shall be paid to the cultivating tenant and one-fourth to the intermediary, if any.

V

[Omitted]

Part I ? Salary

There shall be paid to the Chairman and the member of the Special Appellate Tribunal in respect of time spent on actual service, salary of the following rates per mensem, that is to say:-

Chairman - Rs. 3,500

Member - Rs. 2,750.

Provided that if an officer in service of the Government is appointed as a member, he shall be paid Rs. 2,750 of his grade pay, whichever is higher:

Provided further that, if the Chairman or a member of the Special Appellate Tribunal of the time of his appointment is in respect of a pension (other than a disability or wound pension) in respect of any previous service under the Government of India or under the Government of a State, his salary in respect of service as the Chairman or, as the case may be, member of the Special Appellate Tribunal, shall be reduced-

(a)

by the amount of that pension, and

(b)

if he has before such appointment, received in lieu of a portion of the pension due to him in respect of such previous service, the commuted value thereof, by the amount of that portion of the pension, and

(c)

if he has, before such appointment, received a retirement gratuity in respect of such previous service, by the pension equivalent of that gratuity.

Part II ? Allowance

The Dearness Allowance, House Rent Allowance, Travelling Allowance and other allowances payable to the Chairman and other members of the Special Appellate Tribunal shall be the same as payable to a member in the super-time scale of the Indian Administrative Service under the rules applicable to the members of such service for the time being in force.

Related AI tags, queries and research notes

Translation